be or be contracted to be in any way, directly or indirectly, by process of law or otherwise, conveyed, mortgaged, leased, or otherwise, transferred to, or acquired or held by, or for the benefit of any alien. The prohibitions of this section shall not apply to transfers or acquisitions by inheritance or between tenants in common. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 304, 42 Stat. 117.)

§ 85. Same; preference right to purchase land to persons declaring intention to become citizens.

The Commissioner of Public Lands of the Territory of Hawaii, with the approval of the governor, may give to any person who has legally declared his intention to become a citizen of the United States, and thereafter becomes such, and who has, or whose predecessors in interest have improved any parcel of public lands and resided thereon continuously for the ten years next preceding the application to purchase, a preference right to purchase so much of such parcels and such adjoining land as may reasonably be required for a home, at a fair price to be determined by three disinterested citizens to be appointed by the governor. In the determination of such purchase price, the commissioner may, if he deems it just and reasonable, disregard the value of the improvements on such parcel and adjoining land. If such parcel of public lands is reserved for public purposes, either for the use of the United States or the Territory of Hawaii, the commissioner may, with the approval of the governor, grant to such person a preference right to purchase public lands which are of similar character, value, and area, and which are situated in the same land district. The privilege granted by this section shall not extend to any original lessee or to an assignee of an entire lease of public lands. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 306, 42 Stat. 118.)

§ 86. Same; sale of agricultural land to persons declaring intention to become citizens.

The Commissioner of Public Lands of the Territory of Hawaii shall, with the approval of the board of public lands, sell to any person who has legally declared his intention to become a citizen of the United States, for residence purposes lots and tracts of agricultural lands, not exceeding three acres in area. (Apr. 30, 1900, ch. 339, § 73, 31 Stat. 154; May 27, 1910, ch. 258, § 5, 36 Stat. 444; July 9, 1921, ch. 42, § 308, 42 Stat. 118.)

Chapter 6.—IMMIGRATION

SUBCHAPTER I.—IMMIGRATION AND NATURALIZATION AGENCIES, OFFICERS, AND STATIONS

Sec.
100. Immigration and Naturalization Service.
101. Commissioner of Immigration and Naturalization; assistant commissioner; appointment; reports; quarters.
102. Same; administration of immigration laws; rules and regulations; contracts for support of distressed aliens; detail of immigration officers.
103. Same; administration of alien contract labor laws.
103a. Reimbursement of expenses incurred by other agencies of Federal, State, and local governments.
104. Repealed.
105. Division of information in Immigration and Naturalization Service; distribution of aliens; State agents.
106–106c. Repealed.
107. Commissioners of immigration; appointment.
108. Immigration officers; duties.
109. Officers and employees; appointment; compensation; promotion; travel expenses of officers and employees of Immigration and Naturalization Service; expenses incident to death of officers and employees; appropriation.
109a. Officers and employees; overtime services; extra compensation; length of working day.
109b. Same; extra compensation; payment.
109c. Same; disposition of money received as extra compensation.
109d. Same; employment of interpreters.
110. Arrest of aliens without warrant.
111. Special immigrant inspectors at Washington.
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113. Detail of inspectors and matrons on vessels carrying immigrant or emigrant passengers.
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115. Disposal of privileges at immigrant stations; sale of liquors.
116. Local jurisdiction over immigrant stations.
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SUBCHAPTER II.—REGULATION AND RESTRICTION OF IMMIGRATION IN GENERAL

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133. Covering taxes, fines, etc., into Treasury.
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135. State tax or charge on immigrants.
136. Aliens excluded.
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(b) Paupers, etc.
(c) Tubercular or other diseased persons.
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(d) (1) Draft evaders.
(e) Criminals.
(f) Polygamists.
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(h) Contract laborers.
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(j) Persons previously deported.
(k) Persons whose transportation is paid by others, etc.
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(m) Children under sixteen.
(n) Asiatics.
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(p) Aliens returning to unrelinquished domicile.
(q) Bonds for admission and return of inadmissible aliens.
(r) Accredited officials of foreign governments, etc.
137. Same; anarchists, etc.
(a) Anarchists.
(b) Opposers of organized government.
(c) Advocates of violent overthrow of Government, assault on Government officers, or destruction of property.
(d) Publishers, etc., of such doctrines.
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(f) Definition of advising, advocacy, teaching, or affiliation.
(g) Deportation.
(h) Reentry after deportation; punishment.
137a. Repealed.
137b. Alien instrumental musicians; applicability of contract labor provisions.
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137d. Same; admission for temporary period; conditions; bond.
138. Importation of aliens for immoral purposes; attempt to reenter after deportation; penalty.
139. Contract laborers; prepaying transportation or assisting importation; forfeiture and punishment.
140. Same; reward to informer.
141. Same; validity of contracts for labor of aliens made before importation.
142. Same; advertisement of employment.
143. Solicitation of immigration by transportation companies.
144. Bringing in or harboring or concealing certain aliens.
145. Bringing in aliens subject to disability or afflicted with disease.
146. Prevention of unauthorized landing of aliens; prima facie proof of landing.
147. Detention of aliens for observation and examination; inspectors to report condition of vessels.
148. Lists of alien passengers arriving or departing; record of resident aliens and citizens leaving for foreign country.
149. Grouping of alien passengers in lists; identification tickets.
150. Refusal or failure to furnish lists of alien passengers.
151. Inspection of alien passengers on arrival; temporary removal for examination.
152. Physical and mental examination of alien passengers; regulations.
153. Boards of special inquiry; appointment.
154. Immediate deportation of aliens brought in in violation of law; cost of maintenance and return.
155. Deportation of undesirable aliens generally.
156. Ports to which aliens to be deported; cost of deportation.
156a. Deportation of aliens engaged in narcotic traffic.
157. Deportation of aliens convicted of certain wartime offenses.
158. Admission, upon security, of aliens liable to be excluded as public charges or physically disabled.
159. Temporary detention and admission or deportation, in case of contagious disorder, of wife or minor child of naturalized alien or resident alien.
160. Landing stations for alien passengers transported from Canada or Mexico.
161. Interior immigrant stations.
162. Discrimination in rules and contracts for entry and inspection of aliens.
163. Aiding or assisting anarchists, etc., to enter; penalty.
164. Jurisdiction of district courts; duties of district attorneys.
165. Signing alien on ship's articles with intent to permit landing in violation of laws.
166. Landing of excluded seamen prohibited; temporary landing; deportation within three years.
167. Control of alien seamen.
(a) Detention of seamen on board vessel until after inspection; detention or deportation; penalty; clearance to vessels.
(b) Prima facie evidence of failure to detain or deport.
(c) Deportation; procedure.
168. Paying off or discharging excluded aliens employed on vessels; landing to allow reshipping.
169. Employment on passenger vessels of aliens afflicted with idiocy, etc.
170. Treatment in hospitals of alien seamen afflicted with certain diseases.
171. Lists of aliens employed on vessels arriving from foreign ports; reports of aliens illegally landed.
172. Posting of laws by agents of steamship companies.
173. Definitions: alien; United States; seaman; person.
174. Finality of decisions of immigration officers.
175. Application of laws to Philippine Islands.
176. Disposition of moneys received or paid for expenses of detained aliens.
177. International conference for regulation of immigration of aliens; special commissioners.
178. Laws unaffected; effect on repealed laws.
179. Blank forms of manifests and crew lists.
180. Reentry or attempted reentry of deported alien; penalty; deported seamen as entitled to landing privileges.
180a. Entry of alien at improper time or place; eluding examination or inspection; misrepresentation and concealment of facts; penalty.
180b. Deportation of alien sentenced to imprisonment.
180c. Information supplied Attorney General by Clerk of Court concerning convicted alien.
180d. Definition of terms used in sections 180–180d.
181. Deported aliens; reentry on permission granted by Attorney General.

SUBCHAPTER III.—QUOTA AND NONQUOTA IMMIGRANTS

201. Short title.
202. Immigration visas.
(a) Authority to issue; contents.
(b) Photograph of immigrants.
(c) Period of validity of visa.
(d) Notation on passport of number of visa.
(e) Entry on manifests or passenger lists of data concerning visas; surrender of visas at ports of inspection and transmittal to Department of Justice.
(f) Visas not to be issued, when.
(g) Visas not to entitle inadmissible aliens to entry.
(h) Fee for visa.
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203. Immigrant defined.
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204a, 204b. Native of Virgin Islands residing in foreign countries.
204c. Same; deportation as public charge.
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205. Quota immigrant defined.
206. Enumeration of preferences within quotas.
207. Applications for visas.
(a) Duplicate applications; form.
(b) Contents.
(c) Copies of dossier and other records.
(d) Statement as to membership in classes of aliens excluded.
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(f) Signature to and verification of application; one copy to be immigration visa when visaed; disposition of other copy.
(g) Verification of application by immigrant under age of eighteen.
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208. Nonquota immigration visas; when and how issued.
209. Visas of nonquota and preferred immigrants.
(a) Authority to issue.
(b) Persons entitled to; petition for; form and contents.
(c) Verification of petition; documentary evidence accompanying.
(d) Supporting statements accompanying.
(e) Action of Commissioner, Attorney General, and Secretary of State.
(f) Effect on rights of nonquota immigrants.
210. Reentry permits.
(a) Persons entitled to; application; form and contents; verification; photograph accompanying.
(b) Issue by Commissioner with approval of Attorney General; life of permit; form and contents of permit; photograph attached.
(c) Extension of life of permit.
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211. Immigration quotas; determination of national origin.
(a) Annual quota based on nationality; national origin; minimum quota.
(b) Annual quota for fiscal year beginning July 1, 1929; minimum quota.
(c) Determination of national origin.
(d) Inhabitants in continental United States in 1920.
(e) Determination of national origin; by whom made; procedure; presidential proclamation of quotas to be made on or before April 1, 1929.
(f) Immigration visas limited to quotas; monthly issue.
(g) Issue of visa to nonquota immigrant as quota immigrant.
212. Same; determination of nationality; reports.
(a) Country of birth; nationality of married persons; children.
(b) Statement of resident individuals of various nationalities.
(c) Effect of changes in political boundaries in foreign countries.
(d) Statements, etc., made annually.
(e) Annual report to President of quota of nationalities; proclamation of quotas..
212a. Same: Chinese persons.
212b. Same; Indians and races indigenous to India.
212c. Same; definitions; allocation to quota.
213. Compliance with immigration requirements; persons ineligible to citizenship; penalties.
(a) Persons not to be admitted.
(b) Readmission of legally admitted aliens who have temporarily departed without visas.
(c) Aliens ineligible to citizenship.
(d) Aliens inadmissible under clauses 2 and 3 of subdivision (a) of this section.
(e) Same; exhaustion of permitted visas issuable to quota immigrants.
(f) Fines not to be remitted or refunded.
213a. Deportation of alien securing visa through fraudulent marriage.
214. Deportation; procedure; alien children under age of sixteen.
215. Admission of persons excepted from definition of immigrant and nonquota immigrants; maintenance of exempt status.
216. Unlawful bringing of alien into United States by water; penalty; amount; clearance to vessels; remission or refundment.
217. Contracts with transportation lines; rules and regulations; entry from continguous territory.
218. Unused immigration visas; additional not to issue in lieu of.
219. Reentry permits; preparation, printing and distribution.
220. Penalties and offenses.
(a) Documents; forging, counterfeiting, etc., immigration visas or permits.
(b) False personation of another; using assumed or fictitious name; unlawful sale, etc., of visa or permit.
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221. Burden of proof upon entry of alien or in deportation proceedings.
222. Rules and regulations.
223. Quota law additional to other immigration laws.
224. Definitions.
225. Appropriation authorized.
226. Separability of provisions.
226a. American Indians born in Canada; right to cross Canadian border.
227, 228. Certain aliens admitted in excess of quotas permitted to remain.
229. Act May 19, 1921, chapter 8, in force for imposition, collection, and enforcement of penalties; deportation of aliens entering in violation thereof.
230. Certain alien residents conscripted or volunteering for service during World War lawfully readmitted.
Sec.
231. Admission into Puerto Rico of certain resident Spanish subjects.
232. Admission of alien spouses and minor children of members of United States armed forces during Second World War; medical examination.
233. Same; nonquota immigrant.
234. Same; readmission after temporary absence abroad.
235. Same; non-imposition of fines or penalties because of transportation to United States.
236. Same; commencement and termination of Second World War.

SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

241. "Alien veteran" defined; definitions of sections 203–205 and 224 of this title adopted.
242. Alien veteran as nonquota immigrant; head tax or fees; grounds for exclusion.
243. Status of child or spouse of "alien veteran."
244. Immigration visa; issuance within one year.
245. Deportation as public charge; prohibition.
246. Person bringing admissible alien veteran to port not subject to fine.

HISTORY OF IMMIGRATION AND NATURALIZATION AGENCIES

By acts Aug. 3, 1882, ch. 376, §§ 2, 3, 22 Stat. 214; Feb. 23, 1887, ch. 220, 24 Stat. 415 the administration of the immigration laws then in force was reposed in the Secretary of the Treasury. Subsequently, by act Mar. 3, 1891, ch. 551, § 7, 26 Stat. 1087, the office of the Superintendent of Immigration was created as a permanent immigration agency and he in turn was designated Commissioner General of Immigration under the heading "Bureau of Immigration" by act Mar. 2, 1895, ch. 177, § 1, 28 Stat. 780. Upon the establishment of the Department of Commerce and Labor, the Commissioner General of Immigration and the Bureau of Immigration were transferred to that Department by act Feb. 14, 1903, ch. 552, § 4, 32 Stat. 825 and thereafter were redesignated the Bureau of Immigration and Naturalization by act June 29, 1906, ch. 3592, § 1, 34 Stat. 596. The Bureau of Immigration and Naturalization was transferred to the Department of Labor upon its establishment by act Mar. 4, 1913, ch. 141, 37 Stat. 736, and divided into two bureaus to be known as the Bureau of Immigration and the Bureau of Naturalization, respectively. Ex. Ord. No. 6166, § 14, June 10, 1933, set out as note under section 132 of Title 5, Executive Departments and Government Officers and Employees, again consolidated these bureaus to form the Immigration and Naturalization Service, under a "Commissioner of Immigration and Naturalization", which was then transferred from the Department of Labor to the Department of Justice by 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, set out as note under section 133t of said Title 5.

CROSS REFERENCES

Enforcement of customs and immigration laws along Canadian and Mexican borders, see section 68 of Title 19, Customs Duties.

SUBCHAPTER I.—IMMIGRATION AND NATURALIZATION AGENCIES, OFFICERS, AND STATIONS

§ 100. Immigration and Naturalization Service.

There is created and established in the Department of Justice an Immigration and Naturalization Service. (Feb. 14, 1903, ch. 552, § 4, 32 Stat. 826; June 29, 1906, ch. 3592, § 1, 34 Stat. 596; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

HISTORY

History of immigration and naturalization agencies, see note preceding this section.

§ 101. Commissioner of Immigration and Naturalization; assistant commissioner; appointment; reports; quarters.

The office of the Commissioner of Immigration and Naturalization is created and established, and the President, by and with the advice and consent of the Senate, is authorized and directed to appoint such officer. He shall be an officer in the Department of Justice, and shall perform all his duties under the direction of the Attorney General, to whom he shall make annual reports in writing of the transactions of his office, together with such special reports, in writing, as the Attorney General shall require. The Attorney General shall provide him with a suitable, furnished office in the city of Washington, and with such books of record and facilities for the discharge of the duties of his office as may be necessary. There shall be an assistant commissioner who shall act as chief clerk and actuary. (Mar. 3, 1891, ch. 551, § 7, 26 Stat. 1085; Mar. 2, 1895, ch. 177, § 1, 28 Stat. 780; Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Feb. 5, 1917, ch. 29, § 23, 39 Stat. 892; Mar. 3, 1917, ch. 163, § 1, 39 Stat. 1118; Mar. 28, 1922, ch. 117, title II, 42 Stat. 486; Jan. 5, 1923, ch. 24, title II, 42 Stat. 1127; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Act Mar. 2, 1895, cited to text, changed "Superintendent of Immigration" to "Commissioner General of Immigration." The Commissioner General was subsequently made Commissioner of Immigration and Naturalization. See Ex. Ord. No. 6166, set out under section 132 of Title 5, Executive Departments and Government Officers and Employees.

Act Apr. 28, 1904, cited to text, changed "Secretary of the Treasury" to "Secretary of Commerce and Labor." Subsequently "Secretary of Labor" was substituted for "Secretary of Commerce and Labor", and still later "Attorney General" was inserted for "Secretary of Labor." See Act Mar. 4, 1913 and 1940 Reorg. Plan No. V, under this note.

Act Mar. 4, 1913, cited to text, transferred Commissioner General of Immigration from Department of Commerce and Labor to the Department of Labor. Commissioner General of Immigration later became Commissioner of Immigration and Naturalization and Attorney General was substituted for Secretary of Labor. See Ex. Ord. No. 6166 and 1940 Reorg. Plan No. V, under this note.

Act Feb. 5, 1917, cited to text, provided that Commissioner should perform his duties under the direction of the Secretary of Labor. Subsequently "Attorney General" was substituted for "Secretary of Labor". See 1940 Reorg. Plan No. V, under this note.

Act Mar. 3, 1917, cited to text, added provision that the Assistant Commissioner should also act as chief clerk and actuary.

Acts Mar. 28, 1922, and Jan. 5, 1923, both cited to text, reenacted provision that Assistant Commissioner should also act as chief clerk and actuary.

Ex. Ord. No. 6166, cited to text and set out as note under section 132 of Title 5, Executive Departments and Government Officers and Employees, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration." See note preceding section 100 of this title.

1940 Reorg. Plan No. V, cited to text and set out as note under section 133t as Title 5, is authority for the substitution of "Attorney General" and "Department of Justice" for "Secretary of Labor" and "Department of Labor", respectively. See note preceding section 100 of this title.

TRANSFER OF FUNCTIONS

Allotments of space in public buildings in the District of Columbia to be made by Public Buildings Administration of the Federal Works Agency, see 1939 Reorg. Plan No. I, §§ 301, 303, eff. July 1, 1939, 4 F. R. 2729, 53 Stat. 1426, 1427, set out following section 133t of Title 5, Executive Departments and Government Officers and Employees.

§ 102. Same; administration of immigration laws; rules and regulations; contracts for support of distressed aliens; detail of immigration officers.

The Commissioner of Immigration and Naturalization under the direction of the Attorney General shall have charge of the administration of all laws relating to the immigration of aliens into the United States, and shall have the control, direction, and supervision of all officers, clerks, and employees appointed thereunder. He shall receive a salary of $10,000 per annum. He shall establish such rules and regulations, prescribe such forms of bond, reports, entries, and other papers, and shall issue from time to time such instructions not inconsistent with law, as he shall deem best calculated for carrying out the provisions of this section and sections 101, 105, 108, 109, 113, 115, 116, 132, 136, 138, 139, 142–156, 158–166, 168, 169, 171, 173, 175, 177, and 178 of this title and for protecting the United States and aliens migrating thereto from fraud and loss, and shall have authority to enter into contract for the support and relief of such aliens as may fall into distress or need public aid, and to remove to their native country, or the country from whence they came, or to the country of which they are citizens or subjects, at any time after entry, at the expense of the appropriations for the enforcement of the provisions of such sections, such as fall into distress or need public aid from causes arising subsequent to their entry and are desirous of being so removed, but any person thus removed shall forever be ineligible for readmission except upon the approval of the Secretary of State and the Attorney General; he shall prescribe rules for the entry and inspection of aliens coming to the United States from or through Canada and Mexico, so as not unnecessarily to delay, impede, or annoy persons in ordinary travel between the United States and said countries, and shall have power to enter into contracts with transportation lines for the said purpose. It shall be the duty of the Commissioner of Immigration and Naturalization to detail officers of the Immigration and Naturalization Service from time to time as may be necessary, in his judgment, to secure information as to the number of aliens detained in the penal, reformatory, and charitable institutions (public and private) of the several States and Territories, the District of Columbia, and other territory of the United States, and to inform the officers of such institutions of the provisions of law in relation to the deportation of aliens who have become public charges. He may, with the approval of the Attorney General, whenever in his judgment such action may be necessary to accomplish the purpose of said sections, detail immigration officers for service in foreign countries; and, upon his request, approved by the Attorney General, the Federal Security Administrator may detail medical officers of the United States Public Health Service for the per-

formance of duties in foreign countries in connection with their enforcement. (Feb. 5, 1917, ch. 29, § 23, 39 Stat. 892; Ex. Ord. No. 6166, § 14, June 10, 1933; May 14, 1937, ch. 181, 50 Stat. 164; 1939 Reorg. Plan No. I, § 205, eff. July 1, 1939, 4 F. R. 2729, 53 Stat. 1425; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Oct. 29, 1945, ch. 438, 59 Stat. 551.)

CODIFICATION

Ex. Ord. No. 6166, cited to text and set out as note under section 132 of Title 5, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration". See note preceding section 100 of this title.

Act May 14, 1937, cited to text, amended provision respecting support and removal of aliens falling into distress or need of public aid.

1939 Reorg. Plan No. I, cited to text and set out in note under section 133t of Title 5, Executive Departments and Government Officers and Employees, transferred to Federal Security Administrator functions of Secretary of Treasury relating to administration of Public Health Service, except those relating to acceptance and investment of gifts.

1940 Reorg. Plan No. V, cited to text and set out as note under section 133t of Title 5, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1945—Act Oct. 29, 1945, cited to text, amended section by inserting sentence authorizing Commissioner's salary.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1903, ch. 1012, § 22, 32 Stat. 1219; Feb. 20, 1907, ch. 1134, § 22, 34 Stat. 905.

CROSS REFERENCES

Interior immigrant stations, see section 161 of this title.

§ 103. Same; administration of alien contract labor laws.

The Commissioner of Immigration and Naturalization, in addition to his other duties, shall have charge, under the Attorney General, of the administration of alien contract labor laws. (Mar. 2, 1895, ch. 177, § 1, 28 Stat. 780; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Act Mar. 4, 1913, cited to text, transferred Commissioner from Department of Commerce and Labor to Department of Labor; Ex. Ord. No. 6166, cited to text and set out as note under section 132 of Title 5, Executive Departments and Government Officers and Employees, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text and set out as note under section 133t of Title 5, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 103a. Reimbursement of expenses incurred by other agencies of Federal, State, and local governments.

The Attorney General may transfer to, or reimburse, any other department, agency, or office of Federal, State, or local governments, funds in such amounts as may be necessary for salaries and expenses incurred by them in rendering authorized assistance to the Department of Justice in connection with the administration and enforcement of the laws relating to immigration, naturalization, and alien registration. (June 28, 1941, ch. 258, title III, 55 Stat. 292; July 2, 1942, ch. 472, title II, 56 Stat. 483; July 1, 1943, ch. 182, title II, 57 Stat. 288; June 28, 1944, ch. 294, title II, § 1, 58 Stat. 412; May 21, 1945, ch. 129, title II, 59 Stat. 185; July 5, 1946, ch. 541, title II, 60 Stat. 462.)

§ 104. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Section, acts June 6, 1900, ch. 791, § 1, 31 Stat. 611; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, provided that the Commissicner of Immigration and Naturalization should have charge, under supervision of the Attorney General, of the administration of the Chinese exclusion laws.

§ 105. Division of information in Immigration and Naturalization Service; distribution of aliens; State agents.

There shall be maintained a division of information in the Immigration and Naturalization Service; and the Attorney General shall provide such clerical and other assistance as may be necessary. It shall be the duty of said division to promote a beneficial distribution of aliens admitted into the United States among the several States and Territories desiring immigration. Correspondence shall be had with the proper officials of the States and Territories, and said division shall gather from all available sources useful information regarding the resources, products and physical characteristics of each State and Territory, and shall publish such information in different languages and distribute the publications among all admitted aliens at the immigrant stations of the United States and to such other persons as may desire the same. When any State or Territory appoints and maintains an agent or agents to represent it at any of the immigrant stations of the United States, such agents shall, under regulations prescribed by the Commissioner of Immigration and Naturalization, subject to the approval of the Attorney General, have access to aliens who have been admitted to the United States for the purpose of presenting, either orally or in writing, the special inducements offered by such State or Territory to aliens to settle therein. While on duty at any immigrant station such agents shall be subject to all the regulations prescribed by the Commissioner of Immigration and Naturalization, who, with the approval of the Attorney General, may, for violation of any such regulations, deny to the agent guilty of such violation any of the privileges herein granted. (Feb. 5, 1917, ch. 29, § 30, 39 Stat. 895; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text and set out as note under section 132 of Title 5, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text and set out as note under section 133t of Title 5, Executive Departments and Government Officers and Employees, is authority for substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in act Feb. 20, 1907, ch. 1134, § 40, 34 Stat. 909.

CROSS REFERENCES

Interior immigrant stations, see section 161 of this title.

§§ 106–106c. Repealed. Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172.

Sections, acts June 29, 1906, ch. 3592, § 1, 34 Stat. 596; Mar. 2, 1929, ch. 536, §§ 1–3, 45 Stat. 1512, 1513; Apr. 19, 1934, ch. 154, § 6, 48 Stat. 598; June 8, 1934, ch. 429, 48 Stat. 926; Aug. 7, 1939, ch. 517, 53 Stat. 1243, related to registry of aliens. Present provisions relating to the same subject are contained in sections 728, 729, 742 (b), and 746 (*l*) of this title.

Effective date and saving clauses, see sections 906, 904 note, and 747 of this title.

§ 107. Commissioners of immigration; appointment.

CODIFICATION

Commissioners of immigration at the several ports, for whose appointment this section, acts Aug. 18, 1894, ch. 301, § 1, 28 Stat. 391; Aug. 1, 1914, ch. 223, § 1, 38 Stat. 666; June 5, 1920, ch. 235, § 1, 41 Stat. 936, provided, were abolished and functions transferred to "such district directors of immigration and naturalization" as the Commissioner shall designate by 1940 Reorg. Plan No. III, § 6, eff. June 30, 1940, 5 F. R. 2108, 54 Stat. 1233, set out as note under section 133t of Title 5, Executive Departments and Government Officers and Employees. Sections 8 and 9 of such plan provide for transfer of records, property, personnel and funds.

§ 108. Immigration officers; duties.

The duties of immigration officials in charge of districts, ports, or stations shall be of an administrative character, to be prescribed in detail by regulations prepared under the direction or with the approval of the Attorney General. (Feb. 5, 1917, ch. 29, § 23, 39 Stat. 892; 1940 Reorg. Plan No. III, § 6, eff. June 30, 1940, 5 F. R. 2107, 54 Stat. 1233; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

A reference in this section to commissioners of immigration was omitted upon the promulgation of 1940 Reorg. Plan No. III, cited to text and set out as note under section 133t of Title 5, Executive Departments and Government Officers and Employees, which abolished such offices. A reference to the Secretary of Labor was changed to refer to the Attorney General in view of 1940 Reorg. Plan No. V, cited to text and set out as note under section 133t of Title 5.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1903, ch. 1012, § 23, 32 Stat. 1219; Feb. 20, 1907, ch. 1134, § 23, 34 Stat. 906.

§ 109. Officers and employees; appointment; compensation; promotion; travel expenses of officers and employees of Immigration and Naturalization Service; expenses incident to death of officers and employees; appropriation.

Immigrant inspectors and other immigration officers, clerks, and employees shall be appointed and their compensation fixed and raised or decreased from time to time by the Attorney General, upon the recommendation of the Commissioner of Immigration and Naturalization and in accordance with the provisions of sections 632, 633, 635, 637, 638, and 640–642 of Title 5: *Provided*, That the Attorney General, in the enforcement of the law excluding contract laborers and induced and assisted immigrants, may employ, for such purposes and for detail upon additional service when not so engaged, without reference to the provisions of said sections, or to the various laws relative to the compilation of the Official Register, such persons as he may deem advisable and from time to time fix, raise, or decrease their compensation. He may draw annually from the appropriation for the enforcement of the laws regulating the immigration of aliens into the United States $200,000, or as much thereof as may be necessary, to be expended for the salaries and expenses of persons so employed and for expenses incident to such employment; and the accounting officers of the General Accounting Office shall pass to the credit of the proper disbursing officer expenditures from said sum without itemized account whenever the Attorney General certifies that an itemized account would not be for the best interests of the Government.

Immigrant inspectors shall be divided into five classes, as follows: Grade 1, salary $2,100; grade 2, salary $2,300; grade 3, salary $2,500; grade 4, salary $2,700; grade 5, salary $3,000; and, hereafter, inspectors shall be promoted successively to grades 2 and 3 at the beginning of the next quarter following one year's satisfactory service (determined by a standard of efficiency which is to be defined by the Commissioner of Immigration and Naturalization, with the approval of the Attorney General) in the next lower grade; and to grades 4 and 5 for meritorious service after no less than one year's service in grades 3 and 4, respectively: *Provided further*, That when officers, inspectors, or other employees of the Immigration and Naturalization Service are ordered to perform duty in a foreign country, or transferred from one station to another, in the United States or in a foreign country, they shall be allowed their traveling expenses in accordance with such regulations as the Attorney General may deem advisable, and they may also be allowed, within the discretion and under written orders of the Attorney General, the expenses incurred for the transfer of their wives and dependent minor children; their household effects and other personal property, including the expenses for packing, crating, freight, and drayage thereof in accordance with section 73c–1 of Title 5. The expense of transporting the remains of such officers, inspectors, or other employees who die while in, or in transit to, a foreign country in the discharge of their official duties, to their former homes in this country for interment, and the ordinary and necessary expenses of such interment and preparation for shipment at their posts of duty or at home, are hereby authorized to be paid on the written order of the Attorney General: *Provided further*, That the appropriation of such sum as may be necessary for the enforcement of this section is hereby authorized. (Feb. 5, 1917, ch. 29, § 24, 39 Stat. 893; June 10, 1921, ch. 18, § 304, 42 Stat. 24; May 29, 1928, ch. 864, 45 Stat. 954; Feb. 21, 1931, ch. 270, 46 Stat. 1205; May 2, 1932, ch. 156, 47 Stat. 145; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. III, § 6, eff. June 30, 1940, 5 F. R. 2108, 54 Stat. 1233; 1940 Reorg. Plan No. V; eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; June 20, 1942, ch. 426, 56 Stat. 373.)

REFERENCES IN TEXT

Word "section" in last proviso of second paragraph read "Act" in acts May 29, 1928, and June 20, 1942, both cited to text.

CODIFICATION

Act June 10, 1921, cited to text, is authority for the substitution of "accounting officers of the General Accounting Office" for "accounting officers of the Treasury".

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration". See note preceding section 100 of this title.

A reference in this section to the appointment of commissioners of immigration was omitted upon the promulgation of 1940 Reorg. Plan No. III, cited to text, which abolished such offices. See section 107 of this title.

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1942—Act June 20, 1942, cited to text, amended second paragraph.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1903, ch. 1012, § 24, 32 Stat. 1219; Feb. 20, 1907, ch. 1134, § 24, 34 Stat. 906.

CROSS REFERENCES

Additional increase in basic compensation rates, see section 942a of Title 5, Executive Departments and Government Officers and Employees.

Appropriation account for extra compensation for overtime in Immigration Service repealed and appropriation for that purpose made from general fund of Treasury, see section 725d of Title 31, Money and Finance.

Compensation of employees ineligible for prior appointment because of military service, see section 645a of Title 5, Executive Departments and Government Officers and Employees.

Increase in basic compensation rates, see section 942 of Title 5, Executive Departments and Government Officers and Employees.

§ 109a. Officers and employees; overtime services; extra compensation; length of working day.

The Attorney General shall fix a reasonable rate of extra compensation for overtime services of inspectors and employees of the Immigration and Naturalization Service who may be required to remain on duty between the hours of five o'clock postmeridian and eight o'clock antemeridian, or on Sundays or holidays, to perform duties in connection with the examination and landing of passengers and crews of steamships, trains, airplanes, or other vehicles, arriving in the United States from a foreign port by water, land, or air, such rates to be fixed on a basis of one-half day's additional pay for each two hours or fraction thereof of at least one hour that the overtime extends beyond five o'clock postmeridian (but not to exceed two and one-half days' pay for the full period from five o'clock post-meridian to eight o'clock antemeridian) and two additional days' pay for Sunday and holiday duty; in those ports where the customary working hours are other than those heretofore mentioned, the Attorney General is vested with authority to regulate the hours of such employees so as to agree with the prevailing working hours in said ports, but nothing contained in this section shall be construed in any manner to affect or alter the length of a working day for such employees or the overtime pay herein fixed. (Mar. 2, 1931, ch. 368, § 1, 46 Stat. 1467; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Immigration and Naturalization Service" for "Immigration Service"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor." See note preceding section 100 of this title.

§ 109b. Same; extra compensation; payment.

The said extra compensation shall be paid by the master, owner, agent, or consignee of such vessel or other conveyance arriving in the United States from a foreign port to the Attorney General, who shall pay the same to the several immigration officers and employees entitled thereto as provided in section 109a of this title. Such extra compensation shall be paid if such officers or employees have been ordered to report for duty and have so reported, whether the actual inspection or examination of passengers or crew takes place or not: *Provided,* That this section shall not apply to the inspection at designated ports of entry of passengers arriving by international ferries, bridges, or tunnels, or by aircraft, railroad trains, or vessels on the Great Lakes and connecting waterways, when operating on regular schedules. (Mar. 2, 1931, ch. 368, § 2, 46 Stat. 1467; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor." See note preceding section 100 of this title.

§ 109c. Same; disposition of money received as extra compensation.

Moneys collected on or after July 1, 1941, as extra compensation for overtime service of inspectors and employees of the Immigration Service pursuant to sections 109a and 109b of this title, shall be deposited in the Treasury of the United States to the credit of the appropriation for the payment of salaries, field personnel of the Immigration and Naturalization Service, and the appropriation so credited shall be available for the payment of such compensation. (Aug. 22, 1940, ch. 688, 54 Stat. 858.)

§ 109d. Same; employment of interpreters.

Provisions of law prohibiting or restricting the employment of aliens in the Government service shall not apply to the employment of interpreters in the Immigration and Naturalization Service (not to exceed ten permanent and such temporary employees as are required from time to time) where competent citizen interpreters are not available. (July 1, 1943, ch. 182, title II, § 1, 57 Stat. 288; June 28, 1944, ch. 294, title II, § 1, 58 Stat. 413; May 21, 1945, ch. 129, title II, 59 Stat. 186; July 5, 1946, ch. 541, title II, 60 Stat. 463.)

§ 110. Arrest of aliens without warrant.

Any employee of the Immigration and Naturalization Service authorized so to do under regulations prescribed by the Commissioner of Immigration and Naturalization with the approval of the Attorney General, shall have power without warrant (1) to arrest any alien who in his presence or view is entering or attempting to enter the United States in violation of any law or regulation made in pursuance of law regulating the admission, exclusion, or expulsion of aliens, or any alien who is in the United States in violation of any such law or regulation and is likely to escape before a warrant can be obtained for his arrest, but the person arrested shall be taken without unnecessary delay for examination before an officer of the Immigration and Naturalization Service having authority to examine aliens as to their

right to enter or remain in the United States; (2) to board and search for aliens any vessel within the territorial waters of the United States, railway car, aircraft, conveyance, or vehicle, within a reasonable distance from any external boundary of the United States; and (3) to make arrests for felonies which have been committed and which are cognizable under any law of the United States regulating the admission, exclusion, or expulsion of aliens, if the person making the arrest has reason to believe that the person so arrested is guilty of such felony and if there is likelihood of the person escaping before a warrant can be obtained for his arrest, but the person arrested shall be taken without unnecessary delay before the nearest available commissioner or before any other nearby officer empowered to commit persons charged with offenses against the laws of the United States; and such employee shall have power to execute any warrant or other process issued by any officer under any law regulating the admission, exclusion, or expulsion of aliens. (Feb. 27, 1925, ch. 364, title IV, 43 Stat. 1049; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Aug. 7, 1946, ch. 768, 60 Stat. 865.)

AMENDMENTS

1946—Act Aug. 7, 1946, cited to text, amended section to provide employees with the power to make arrests without warrant of aliens illegally in the United States with the restriction that the alien must be accorded a hearing without unnecessary delay, and to confer upon the personnel the power to make arrest for felonies cognizable under the immigration laws.

§ 111. Special immigrant inspectors at Washington.

Special immigrant inspectors, not to exceed three, may be detailed for duty in the service at Washington. (Mar. 2, 1895, ch. 177, § 1, 28 Stat. 780; Ex. Ord. No. 6166, § 14, June 10, 1933.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "service" for "bureau." See note preceding section 100 of this title.

§ 112. Same; officer and clerk enforcing alien contract labor laws.

Sections 39, 45, or 46 of Title 5 shall not be construed to prevent the Attorney General from detailing one officer and one clerk employed for the special duty of enforcing the alien contract labor provisions of the immigration laws, in pursuance of section 109 of this title for duty at the Department of Justice at Washington. (Mar. 4, 1915, ch. 147, § 1, 38 Stat. 1151; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" and "Department of Justice" for "Secretary of Labor" and "Department of Labor," respectively. See note preceding section 100 of this title.

SIMILAR PROVISIONS

Similar provisions were contained in act Mar. 3, 1901, ch. 853, 31 Stat. 1155.

§ 113. Detail of inspectors and matrons on vessels carrying immigrant or emigrant passengers.

The Attorney General is authorized and directed to enter into negotiations, through the Department of State, with countries vessels of which bring aliens to the United States, with a view to detailing inspectors and matrons of the United States Immigration and Naturalization Service for duty on vessels carrying immigrant or emigrant passengers between foreign ports and ports of the United States. When such inspectors and matrons are detailed for said duty they shall remain in that part of the vessel where immigrant passengers are carried; and it shall be their duty to observe such passengers during the voyage and report to the immigration authorities in charge at the port of landing any information of value in determining the admissibility of such passengers that may have become known to them during the voyage. (Feb. 5, 1917, ch. 29, § 11a, 39 Stat. 882; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Immigration and Naturalization Service" for "Immigration Service"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor." See note preceding section 100 of this title.

§ 114. Lease of immigrant station at Charleston.

The Attorney General is authorized, in his discretion, to lease for other than governmental purposes the property known as the Charleston immigration station, with the improvements thereon; and said Attorney General shall fix the amount of rental per annum to be paid therefor, which rental shall be a fair and just sum for property of like character, situation, and value and prescribe such conditions regarding the uses to be made of said property as he shall deem proper. All expenses of maintenance and repairs on the building and dock at said station shall be borne by the lessee or lessees. Any lease executed under this resolution may be terminated and the property reoccupied under such conditions as the Attorney General may prescribe. (Aug. 15, 1919, ch. 50, 41 Stat. 280; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor." See note preceding section 100 of this title.

§ 115. Disposal of privileges at immigrant stations; sale of liquors.

All exclusive privileges of exchanging money, transporting passengers or baggage, or keeping eating houses, and all other like privileges in connection with any United States immigrant station, shall be disposed of to the lowest responsible and capable bidder, after public competition, notice of such competitive bidding having been made in two newspapers of general circulation for a period of two weeks subject to such conditions and limitations as the Commissioner of Immigration and Naturalization, under the direction or with the approval of the Attorney General, may prescribe, and all receipts accruing from the disposal of privileges shall be paid into the Treasury of the United States. No such contract shall be awarded to an alien. No intoxicating liquors shall be sold at any such immi-

gration station. (Feb. 5, 1917, ch. 29, § 26, 39 Stat. 894; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1893, ch. 206, § 9, 27 Stat. 571; Mar. 3, 1903, ch. 1012, § 30, 32 Stat. 1220; Feb. 20, 1907, ch. 1134, § 30, 34 Stat. 907; Mar. 4, 1909, ch. 299, § 1, 35 Stat. 982.

§ 116. Local jurisdiction over immigrant stations.

For the preservation of the peace and in order that arrests may be made for crimes under the laws of the States and Territories of the United States where the various immigrant stations are located, the officers in charge of such stations, as occasion may require, shall admit therein the proper State and municipal officers charged with the enforcement of such laws, and for the purpose of this section the jurisdiction of such officers and of the local courts shall extend over such stations. (Feb. 5, 1917, ch. 29, § 27, 39 Stat. 894.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 9, 26 Stat. 1086; Mar. 3, 1903, ch. 1012, § 31, 32 Stat. 1220; Feb. 20, 1907, ch. 1134, § 31, 34 Stat. 908.

§ 117. Repealed. July 1, 1944, ch. 373, title VII, § 711, 58 Stat. 714, as renumbered Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049.

Section, acts Jan. 3, 1923, ch. 22, 42 Stat. 1101; Apr. 4, 1924, ch. 84, title I, 43 Stat. 75; Jan. 22, 1925, ch. 87, title I, 43 Stat. 775; Mar. 2, 1926, ch. 43, § 1, 44 Stat. 147; Jan. 26, 1927, ch. 58, § 1, 44 Stat. 1038; Mar. 5, 1928, ch. 126, title I, § 1, 45 Stat. 174; Dec. 20, 1928, ch. 39, title I, § 1, 45 Stat. 1039; May 15, 1930, ch. 289, title I, § 1, 46 Stat. 347; Feb. 23, 1931, ch. 277, title I, § 1, 46 Stat. 1228; July 5, 1932, ch. 430, title I, § 1, 47 Stat. 591; Mar. 3, 1933, ch. 212, title I, § 1, 47 Stat. 1500; Mar. 15, 1934, ch. 70, title I, § 1, 48 Stat. 435; May 14, 1935, ch. 110, 49 Stat. 229; June 23, 1936, ch. 725, § 1, 49 Stat. 1839; May 14, 1937, ch. 180, title I, 50 Stat. 149; Mar. 28, 1938, ch. 55, § 1, 52 Stat. 133; May 6, 1939, ch. 115, title I, § 1, 53 Stat. 668; June 26, 1940, ch. 428, title II, 54 Stat. 585; July 1, 1941, ch. 269, title II, 55 Stat. 481; July 2, 1942, ch. 475, title II, § 1, 56 Stat. 581; July 12, 1943, ch. 221, title II, § 1, 57 Stat. 193, related to use of the hospital at Ellis Island Immigration Station for the care of Public Health Service patients.

USE OF HOSPITAL AT ELLIS ISLAND BY PUBLIC HEALTH SERVICE

Provisions of prior years relating to the use of the hospital at Ellis Island by the Public Health Service were repealed by act July 1, 1944, ch. 373, title VII, § 711, 58 Stat. 714, renumbered Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049. However, the Labor-Security Appropriation Act, 1945, June 28, 1944, ch. 302, title II, § 201, 58 Stat. 558, which was not included in the repeals by said act of July 1, 1944, provided: "The Immigration and Naturalization Service shall permit the Public Health Service to use the hospitals at Ellis Island Immigration Station for the care of Public Health Service patients free of expense for physical upkeep, but with a charge of actual cost of fuel, light, water, telephone, and similar supplies and services, to be covered into the proper Immigration Service appropriations; and money collected by the Immigration Service on account of hospital expenses of persons detained in hospitals of the Public Health Service under the immigration laws and regulations shall be covered into the Treasury as miscellaneous receipts."

§ 118. Motor vehicles for enforcement of immigration and Chinese exclusion laws.

CODIFICATION

Section, acts June 12, 1917, ch. 27, § 1, 40 Stat. 170; Mar. 28, 1922, ch. 117, title II, 42 Stat. 487; Jan. 5, 1923, ch. 24, title II, 42 Stat. 1127; May 28, 1924, ch. 204, title IV, 43 Stat. 240; Feb. 27, 1925, ch. 364, title IV, 43 Stat. 1049; Apr. 29, 1926, ch. 195, title IV, 44 Stat. 371; Feb. 24, 1927, ch. 189, title IV, 44 Stat. 1223; Feb. 15, 1928, ch. 57, title IV, 45 Stat. 107; Jan. 25, 1929, ch. 102, title IV, 45 Stat. 1137; Apr. 18, 1930, ch. 184, title IV, § 1, 46 Stat. 216, expired with the appropriation acts of which it was a part.

SUBCHAPTER II.—REGULATION AND RESTRICTION OF IMMIGRATION IN GENERAL

§ 131. Control of immigration.

The jurisdiction, supervision, and control over the immigration of aliens into the United States, its waters, territories and any place subject to the jurisdiction thereof, are vested in the Department of Justice. (Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Act Mar. 4, 1913, cited to text, transferred the Immigration Service from the Department of Commerce and Labor to the Department of Labor; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Department of Justice" for "Department of Labor". See note preceding section 100 of this title.

§ 132. Head tax on aliens entering United States; lien on vessels, etc.

There shall be levied, collected, and paid a tax of $8 for every alien, including alien seamen regularly admitted as provided by law to enter the United States; but children under sixteen years of age who accompany their father or their mother shall not be subject to said tax. The said tax shall be paid to the collector of customs of the port or customs district to which said alien shall come, or, if there be no collector at such port or district, then to the collector nearest thereto, by the master, agent, owner, or consignee of the vessel, transportation line, or other conveyance or vehicle bringing such alien to the United States, or by the alien himself if he does not come by a vessel, transportation line, or other conveyance or vehicle or when collection from the master, agent, owner, or consignee of the vessel, transportation line, or other conveyance, or vehicle bringing such alien to the United States is impracticable. The tax imposed by this section shall be a lien upon the vessel or other vehicle of carriage or transportation bringing such aliens to the United States, and shall be a debt in favor of the United States against the owner or owners of such vessel or other vehicle, and the payment of such tax may be enforced by any legal or equitable remedy. The tax shall not be levied on account of aliens who enter the United States after an uninterrupted residence of at least one year immediately preceding such entrance in the Dominion of Canada, Newfoundland, the Republic of Cuba, or the Republic of Mexico, for a temporary stay, nor on account of otherwise ad-

missible residents or citizens of any possession of the United States, nor on account of aliens in transit through the United States, nor upon aliens who have been lawfully admitted to the United States and who later shall go in transit from one part of the United States to another through foreign contiguous territory, and the Commissioner of Immigration and Naturalization with the approval of the Attorney General shall issue rules and regulations and prescribe the conditions necessary to prevent abuse of these exceptions. The Commissioner of Immigration and Naturalization, under the direction or with the approval of the Attorney General, by agreement with transportation lines, as provided in section 102 of this title, may arrange in some other manner for the payment of the tax imposed by this section upon any or all aliens seeking admission from foreign contiguous territory. In the cases of aliens applying for admission from foreign contiguous territory and rejected, the head tax collected shall upon application, upon a blank which shall be furnished and explained to him, be refunded to the alien. (Feb. 5, 1917, ch. 29, § 2, 39 Stat. 875; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Proc. No. 2695, July 4, 1946, 11 F. R. 7511, 60 Stat. 1352.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

Former sixth sentence of this section, which provided that the tax, when levied upon aliens entering the Philippine Islands, shall be paid into the treasury of said Islands, to be expended for the benefit of such islands, was omitted as obsolete in view of the independence of the Philippine Islands, proclaimed by the President of the United States in Proc. No. 2695, July 4, 1946, cited to text and issued pursuant to section 1240 of Title 48, Territories and Insular Possessions, under which it is set out as a note.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Aug. 3, 1882, ch. 376, § 1, 22 Stat. 214; June 26, 1884, ch. 121, § 22, 23 Stat. 58; Aug. 18, 1894, ch. 301, § 1, 28 Stat. 391; Mar. 3, 1903, ch. 1012; § 1, 32 Stat. 1213; Mar. 22, 1904, ch. 749, 33 Stat. 144; Feb. 20, 1907, ch. 1134, § 1, 34 Stat. 898.

CROSS REFERENCES

Exemption of alien veterans of World War I from payment of head tax, see sections 241 (a), 242 and note under section 136 of this title.

§ 133. Covering taxes, fines, etc., into Treasury.

All head tax, all fines, rentals collected, and moneys received under the laws regulating the immigration of aliens into the United States, shall be covered into the Treasury to the credit of miscellaneous receipts. (Mar. 4, 1909, ch. 299, § 1, 35 Stat. 982.)

SIMILAR PROVISIONS

Provisions on this subject were contained in act Feb. 20, 1907, ch. 1134, § 1, 34 Stat. 898.

§ 134. Refunding erroneous head tax under act March 3, 1903.

CODIFICATION

Section, act Feb. 3, 1905, ch. 297, § 1, 33 Stat. 684, authorized refunds of head taxes erroneously collected under act Mar. 3, 1903, ch. 1012, § 1, 32 Stat. 1213, which was repealed by act Feb. 20, 1907, ch. 1134, § 43, 34 Stat. 911, and act Feb. 5, 1917, ch. 29, § 38, 39 Stat. 897.

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§ 135. State tax or charge on immigrants.

No tax or charge shall be imposed or enforced by any State upon any person immigrating thereto from a foreign country, which is not equally imposed and enforced upon every person immigrating to such State from any other foreign country. (R. S. § 2164.)

DERIVATION

Act May 31, 1870, ch. 114, § 16, 16 Stat. 144.

§ 136. Aliens excluded.

The following classes of aliens shall be excluded from admission into the United States:

(a) Idiots, imbeciles, etc.

All idiots, imbeciles, feeble-minded persons, epileptics, insane persons; persons who have had one or more attacks of insanity at any time previously; persons of constitutional psychopathic inferiority; persons with chronic alcoholism—

(b) Paupers, etc.

Paupers; professional beggars; vagrants—

(c) Tubercular or other diseased persons.

Persons afflicted with tuberculosis in any form or with a loathsome or dangerous contagious disease—

(d) Mental or physical defectives.

Persons not comprehended within any of the classes enumerated in paragraphs a, b, or c, who are found to be and are certified by the examining surgeon as being mentally or physically defective, such physical defect being of a nature which may affect the ability of such alien to earn a living—

(d) (1) Draft evaders.

Persons who have departed from the jurisdiction of the United States for the purpose of evading or avoiding training or service in the armed forces of the United States during time of war or during a period declared by the President to be a period of national emergency—

(e) Criminals.

Persons who have been convicted of or admit having committed a felony or other crime or misdemeanor involving moral turpitude: *Provided,* That nothing in sections 136 or 137 of this title shall exclude, if otherwise admissible, persons convicted, or who admit the commission, or who teach or advocate the commission of an offense purely political—

(f) Polygamists.

Polygamists or persons who practice polygamy or believe in or advocate the practice of polygamy—

(g) Prostitutes, procurers, or pimps.

Prostitutes, or persons coming into the United States for the purpose of prostitution or for any other immoral purpose; persons who directly or indirectly procure or attempt to procure or import prostitutes or persons for the purpose of prostitution or for any other immoral purpose; persons who are supported by or receive in whole or in part the proceeds of prostitution—

(h) Contract laborers.

Persons hereinafter called contract laborers, who have been induced, assisted, encouraged, or solicited to migrate to this country by offers or promises of employment, whether such offers or promises are

true or false, or in consequence of agreements, oral, written, or printed, express or implied, to perform labor in this country of any kind, skilled or unskilled; persons who have come in consequence of advertisements for laborers printed, published, or distributed in a foreign country: *Provided*, That skilled labor, if otherwise admissible, may be imported if labor of like kind unemployed cannot be found in this country, and the question of the necessity of importing such skilled labor in any particular instance may be determined by the Attorney General upon the application of any person interested, such application to be made before such importation, and such determination by the Attorney General to be reached after a full hearing and an investigation into the facts of the case: *And provided further*, That the provisions of sections 136, 137, 138, and 139 of this title applicable to contract labor shall not be held to exclude professional actors, artists, lecturers, singers, nurses, ministers of any religious denomination, professors for colleges, or seminaries, persons belonging to any recognized learned profession, or persons employed as domestic servants: *And provided further*, That whenever the President shall be satisfied that passports issued by any foreign Government to its citizens or subjects to go to any country other than the United States, or to any insular possession of the United States or to the Canal Zone, are being used for the purpose of enahling the holder to come to the continental territory of the United States to the detriment of labor conditions therein, the President shall refuse to permit such citizens or subjects of the country issuing such passports to enter the continental territory of the United States from such other country or from such insular possession or from the Canal Zone: *And provided further*, That nothing in the contract-labor provisions of sections 136, 137, 138, and 139 of this title shall be construed to prevent, hinder, or restrict any alien exhibitor, or holder of concession or privilege for any fair or exposition authorized by Act of Congress, from bringing into the United States, under contract, such otherwise admissible alien mechanics, artisans, agents, or other employees, natives of his country as may be necessary for installing or conducting his exhibit or for preparing for installing or conducting any business authorized or permitted under any concession or privilege which may have been or may be granted by any such fair or exposition in connection therewith, under such rules and regulations as the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, may prescribe both as to the admission and return of such persons—

(i) Public charges.

Persons likely to become a public charge—

(j) Persons previously deported.

Persons who have been excluded from admission and deported in pursuance of law, and who may again seek admission within one year from the date of such deportation, unless prior to their reembarkation at a place outside the United States or their attempt to be admitted from foreign contiguous territory the Attorney General has consented to their reapplying for admission—

(k) Persons whose transportation is paid by others, etc.

Persons whose tickets or passage is paid for with the money of another, or who are assisted by others to come, unless it is affirmatively and satisfactorily shown that such persons do not belong to one of the foregoing excluded classes; persons whose ticket or passage is paid for by any corporation, association, society, municipality, or foreign government, either directly or indirectly: *Provided*, That the provisions of this subchapter, relating to the payments for tickets or passage by any corporation, association, society, municipality, or foreign government shall not apply to the tickets or passage of aliens in immediate and continuous transit through the United States to foreign contiguous territory—

(*l*) Stowaways.

Stowaways, except that any such stowaway, if otherwise admissible, may be admitted in the discretion of the Attorney General—

(m) Children under sixteen.

All children under sixteen years of age, unaccompanied by or not coming to one or both of their parents, except that any such children may, in the discretion of Attorney General, be admitted if in his opinion they are not likely to become a public charge and are otherwise eligible—

(n) Asiatics.

Unless otherwise provided for by existing treaties, persons who are natives of islands not possessed by the United States adjacent to the Continent of Asia, situate south of the twentieth parallel latitude north, west of the one hundred and sixtieth meridian of longitude east from Greenwich, and north of the tenth parallel of latitude south, or who are natives of any country, province, or dependency situate on the Continent of Asia west of the one hundred and tenth meridian of longitude east from Greenwich and east of the fiftieth meridian of longitude east from Greenwich and south of the fiftieth parallel of latitude north, except that portion of said territory situate between the fiftieth and the sixty-fourth meridians of longitude east from Greenwich and the twenty-fourth and thirty-eighth parallels of latitude north; and no alien now in any way excluded from, or prevented from entering, the United States shall be admitted to the United States. The provision next foregoing, however, shall not apply to persons of the following status or occupations: Government officers, ministers or religious teachers, missionaries, lawyers, physicians, chemists, civil engineers, teachers, students, authors, artists, merchants, and travelers for curiosity or pleasure, nor to their legal wives or their children under sixteen years of age who shall accompany them or who subsequently may apply for admission to the United States, but such persons or their legal wives or foreign-born children who fail to maintain in the United States a status or occupation placing them within the excepted classes shall be deemed to be in the United States contrary to law, and shall be subject to deportation as provided in section 155 of this title—

(o) Illiterates.

All aliens over sixteen years of age, physically capable of reading, who cannot read the English language, or some other language or dialect, including Hebrew or Yiddish: *Provided,* That any admissible alien, or any alien heretofore or hereafter legally admitted, or any citizen of the United States, may bring in or send for his father or grandfather over fifty-five years of age, his wife, his mother, his grandmother, or his unmarried or widowed daughter, if otherwise admissible, whether such relative can read or not; and such relative shall be permitted to enter. That for the purpose of ascertaining whether aliens can read the immigrant inspectors shall be furnished with slips of uniform size, prepared under the direction of the Attorney General, each containing not less than thirty nor more than forty words in ordinary use, printed in plainly legible type in some one of the various languages or dialects of immigrants. Each alien may designate the particular language or dialects in which he desires the examination to be made, and shall be required to read the words printed on the slip in such language or dialect. The following classes of persons shall be exempt from the operation of the illiteracy test, to wit: All aliens who shall prove to the satisfaction of the proper immigration officer or to the Attorney General that they are seeking admission to the United States to avoid religious persecution in the country of their last permanent residence, whether such persecution be evidenced by overt acts or by laws or governmental regulations that discriminate against the alien or the race to which he belongs because of his religious faith; all aliens who have been lawfully admitted to the United States and who have resided therein continuously for five years and who return to the United States within six months from the date of their departure therefrom; all aliens in transit through the United States; all aliens who have been lawfully admitted to the United States and who later shall go in transit from one part of the United States to another through foreign contiguous territory: *Provided,* That nothing in the reading-test provisions of sections 136 or 137 of this title shall be construed to prevent, hinder, or restrict any alien exhibitor, or holder of concession or privilege for any fair or exposition authorized by Act of Congress, from bringing into the United States, under contract, such otherwise admissible alien mechanics, artisans, agents, or other employees, natives of his country as may be necessary for installing or conducting his exhibit or for preparing for installing or conducting any business authorized or permitted under any concession or privilege which may have been or may be granted by any such fair or exposition in connection therewith, under such rules and regulations as the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, may prescribe both as to the admission and return of such persons: *And provided further,* That an alien who could not read, if otherwise admissible, was properly admitted where, within five years after June 5, 1920, a citizen of the United States who had served in the military or naval forces of the United States during the war with the Imperial German Government, requested that such alien be admitted, and with the approval of the Attorney General, married such alien at a United States immigration station—

(p) Aliens returning to unrelinquished domicile.

Aliens returning after a temporary absence to an unrelinquished United States domicile of seven consecutive years may be admitted in the discretion of the Attorney General, and under such conditions as he may prescribe—

(q) Bonds for admission and return of inadmissible aliens.

The Commissioner of Immigration and Naturalization with the approval of the Attorney General shall issue rules and prescribe conditions, including exaction of such bonds as may be necessary, to control and regulate the admission and return of otherwise inadmissible aliens applying for temporary admission—

(r) Accredited officials of foreign governments, etc.

Nothing in sections 101, 102, 105, 108, 109, 113, 115, 116, 132, 136, 138, 139, 142–156, 158–166, 168, 169, 171, 173, 175, 177, and 178 of this title shall be construed to apply to accredited officials of foreign governments, nor to their suites, families, or guests. (Feb. 5, 1917, ch. 29, § 3, 39 Stat. 875; June 5, 1920, ch. 243, 41 Stat. 981; Mar. 4, 1929, ch. 690, § 1 (d), 45 Stat. 1551; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Sept. 27, 1944, ch. 418, § 2, 58 Stat. 746.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1944—Act Sept. 27, 1944, cited to text, amended section by adding new clause (d) (1).

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1875, ch. 141, §§ 3, 5, 18 Stat. 477; Aug. 3, 1882, ch. 376, § 2, 22 Stat. 214; Feb. 26, 1885, ch. 164, §§ 1, 5, 6, 23 Stat. 332, 333; Mar. 3, 1891, ch. 551, § 1, 26 Stat. 1084; Mar. 3, 1903, ch. 1012, § 2, 32 Stat. 1214; Feb. 20, 1907, ch. 1134, §§ 2, 41, 34 Stat. 898, 910; Mar. 26, 1910, ch. 128, § 1, 36 Stat. 263.

READMISSION OF ALIENS CONSCRIPTED OR VOLUNTEERING FOR SERVICE DURING WORLD WAR I

Res. Oct. 19, 1918, ch. 190, 40 Stat. 1014, provided as follows: "That, notwithstanding the provisions of section three of the immigration act of February fifth, nineteen hundred and seventeen (this section), * * * aliens lawfully resident in the United States when heretofore or hereafter enlisted or conscripted for the military or naval service of the United States, or of any one of the nations cobelligerent of the United States in the present war; and aliens lawfully resident in the United States who have enlisted for service with Czecho-Slovak, Polish, or other independent forces attached to the United States Army or to the army or navy of any one of the cobelligerents of the United States in the present war, who may during or within one year after the termination of the war apply for readmission to this country, after being honorably discharged or granted furlough abroad by the proper military or naval authorities, or after being rejected on final examination in connection with their enlistment or conscription shall, within two years after the termination of the war, be readmitted; and that any

alien of either of the foregoing descriptions who would otherwise be excluded under said section of the immigration act (this section) on the ground that he is idiotic, imbecile, feeble-minded, epileptic, insane, or has had one or more attacks of insanity, or on the ground that he is afflicted with constitutional psychopathic inferiority, tuberculosis, a loathsome or dangerous contagious disease, or mental defect, shall be readmitted if it is proved that the disability was acquired while the alien was serving in the military or naval forces of the United States or of any one of the nations cobelligerent of the United States in the present war or in an independent force of the kind hereinbefore described, if such alien returns to a port of the United States within two years after the termination of the war; and that the head tax provided in the immigration act of February fifth, nineteen hundred and seventeen, shall not be collected from aliens readmitted into the United States under the provisions of this resolution."

CROSS REFERENCES

Eligibility for naturalization, see sections 702–726 of this title.

Law making it unlawful to stow away on vessels to have no effect on immigration laws, see section 471 of Title 18, Criminal Code and Criminal Procedure.

§ 137. Same; anarchists, etc.

Any alien who, at any time, shall be or shall have been a member of any one of the following classes shall be excluded from admission into the United States:

(a) Anarchists.

Aliens who are anarchists—

(b) Opposers of organized government.

Aliens who advise, advocate, or teach, or who are members of or affiliated with any organization, association, society, or group, that advises, advocates, or teaches, opposition to all organized government—

(c) Advocates of violent overthrow of Government, assault on Government officers, or destruction of property.

Aliens who believe in, advise, advocate, or teach, or who are members of or affiliated with any organization, association, society, or group, that believes in, advises, advocates, or teaches: (1) the overthrow by force or violence of the Government of the United States or of all forms of law, or (2) the duty, necessity, or propriety of the unlawful assaulting or killing of any officer or officers (either of specific individuals or of officers generally) of the Government of the United States, or of any other organized government, because of his or their official character, or (3) the unlawful damage, injury or destruction of property, or (4) sabotage—

(d) Publishers, etc., of such doctrines.

Aliens who write, publish, or cause to be written or published, or who knowingly circulate, distribute, print, or display, or knowingly cause to be circulated, distributed, printed, published, or displayed, or who knowingly have in their possession for the purpose of circulation, distribution, publication, or display, any written or printed matter, advising, advocating, or teaching, opposition to all organized government, or advising, advocating, or teaching: (1) the overthrow by force or violence of the Government of the United States or of all forms of law, or (2) the duty, necessity or propriety of the unlawful assaulting or killing of any officer or officers (either of specific individuals or of officers generally) of the Government of the United States or of any other organized government, or (3) the unlawful damage, injury or destruction of property, or (4) sabotage—

(e) Affiliates of such publishers, etc.

Aliens who are members of or affiliated with any organization, association, society, or group, that writes, circulates, distributes, prints, publishes, or displays, or causes to be written, circulated, distributed, printed, published, or displayed, or that has in its possession for the purpose of circulation, distribution, publication, issue, or display, any written or printed matter of the character described in paragraph (d).

(f) Definition of advising, advocacy, teaching, or affiliation.

For the purpose of this section: (1) the giving, loaning, or promising of money or anything of value to be used for the advising, advocacy, or teaching of any doctrine above enumerated shall constitute the advising, advocacy, or teaching of such doctrine; and (2) the giving, loaning, or promising of money or anything of value to any organization, association, society, or group of the character above described shall constitute affiliation therewith; but nothing in this paragraph shall be taken as an exclusive definition of advising, advocacy, teaching, or affiliation.

(g) Deportation.

Any alien who was at the time of entering the United States, or has been at any time thereafter, a member of any one of the classes of aliens enumerated in this section, shall, upon the warrant of the Attorney General, be taken into custody and deported in the manner provided in sections 101, 102, 105, 108, 109, 113, 115, 116, 132, 136, 138, 139, 142–156, 158–166, 168, 169, 171, 173, 175, 177, and 178 of this title. The provisions of this section shall be applicable to the classes of aliens mentioned therein, irrespective of the time of their entry into the United States.

(h) Reentry after deportation; punishment.

Any alien who shall, after he has been excluded and deported or arrested and deported in pursuance of the provisions of this section, thereafter return to or enter the United States or attempt to return to or enter the United States shall be deemed guilty of a felony, and upon conviction thereof shall be punished by imprisonment for a term of not more than five years; and shall, upon the termination of such imprisonment, be taken into custody, upon the warrant of the Attorney General, and deported in the manner provided in sections 101, 102, 105, 108, 109, 113, 115, 116, 132, 136, 138, 139, 142–156, 158–166, 168, 169, 171, 173, 175, 177, and 178 of this title. (Oct. 16, 1918, ch. 186, §§ 1–3, 40 Stat. 1012; June 5, 1920, ch. 251, 41 Stat. 1008; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; June 28, 1940, ch. 439, title II, § 23, 54 Stat. 673.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SEPARABILITY AND SHORT TITLE

Separability and Short Title of act June 28, 1940, cited to text, which amended opening paragraph and subsection (g) of this section, see note under section 451 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1903, ch. 1012, §§ 2, 38, 32 Stat. 1214, 1221; Feb. 20, 1907, ch. 1134, §§ 2, 38, 34 Stat. 898, 908; Feb. 5, 1917, ch. 29, § 3, 39 Stat. 875.

CROSS REFERENCES

Eligibility for naturalization, see sections 702–726 of this title.

Provisions suspending deportation of an alien where serious economic detriment would result or permitting an alien of good character to depart at his own expense to a country of his choice not to apply to aliens deportable under this section, see section 155 (d) of this title.

§ 137a. Repealed. May 24, 1934, ch. 344, § 5, 48 Stat. 798.

Section, act Sept. 22, 1922, ch. 411, § 8, as added by act July 8, 1930, ch. 826, 46 Stat. 849, provided as follows:

"§ 137a. Married woman whose husband is native-born citizen and veteran of World War. Any woman eligible by race to citizenship who has married a citizen of the United States before July 3, 1930, whose husband shall have been a native-born citizen and a member of the military or naval forces of the United States during the World War, and separated therefrom under honorable conditions; if otherwise admissible, shall not be excluded from admission into the United States under section 136 of this title, unless she be excluded under the provisions of that section relating to—

"(a) Persons afflicted with a loathsome or dangerous contagious disease, except tuberculosis in any form;

"(b) Polygamy;

"(c) Prostitutes, procurers, or other like immoral persons;

"(d) Persons convicted of crime: *Provided,* That no such wife shall be excluded because of offenses committed during legal infancy, while a minor under the age of twenty-one years, and for which the sentences imposed were less than three months, and which were committed more than five years previous to July 3, 1930;

"(e) Persons previously deported;

"(f) Contract laborers.

"After admission to the United States she shall be subject to all other provisions of sections 9 and 10 and 367–370 of this title."

SAVINGS CLAUSE

Section 5 of act May 24, 1934, cited to repeal note, provided that the repeal of this section should "not affect any right or privilege or terminate any citizenship acquired under" it before such repeal.

§ 137b. Alien instrumental musicians; applicability of contract labor provisions.

The contract labor provisions of the immigration laws shall be applicable to alien instrumental musicians, whether coming for permanent residence or for a temporary period. (Mar. 17, 1932, ch. 85, § 1, 47 Stat. 67.)

§ 137c. Same; when "artist" or "professional actor."

No alien instrumental musician shall, as such, be considered an "artist" or a "professional actor" within the meaning of the second proviso of section 136 (h) of this title unless—

(1) he is of distinguished merit and ability as an instrumental musician, or is a member of a musical organization of distinguished merit and is applying for admission as such; and

(2) his professional engagements (or, if the exemption is claimed on account of membership in an organization, the professional engagements of such organization) within the United States are of a character requiring superior talent. (Mar. 17, 1932, ch. 85, § 2, 47 Stat. 67.)

§ 137d. Same; admission for temporary period; conditions; bond.

In the case of an alien instrumental musician coming for a temporary period, who is exempted from the contract labor provisions of the second proviso of section 136 (h) of this title as limited by section 137c of this title, his admission to the United States shall be under such conditions as may be by regulations prescribed by the Attorney General (including where deemed necessary the giving of bond with sufficient surety) to insure that at the termination of his contract he will depart from the United States. (Mar. 17, 1932, ch. 85, § 3, 47 Stat. 67; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 138. Importation of aliens for immoral purposes; attempt to reenter after deportation; penalty.

The importation into the United States of any alien for the purpose of prostitution, or for any other immoral purpose, is forbidden; and whoever shall, directly or indirectly, import, or attempt to import, into the United States any alien for the purpose of prostitution or for any other immoral purpose, or shall hold or attempt to hold any alien for any such purpose in pursuance of such illegal importation, or shall keep, maintain, control, support, employ, or harbor in any house or other place, for the purpose of prostitution or for any other immoral purpose, any alien, in pursuance of such illegal importation, shall in every such case be deemed guilty of a felony, and on conviction thereof shall be punished by imprisonment for a term of not more than ten years and by a fine of not more than $5,000. Jurisdiction for the trial and punishment of the felonies hereinbefore set forth shall be in any district to or into which said alien is brought in pursuance of said importation by the person or persons accused, or in any district in which a violation of any of the foregoing provisions of this section occurs. Any alien who shall, after he has been excluded and deported or arrested and deported in pursuance of the provisions of this subchapter which relate to prostitutes, procurers, or other like immoral persons, attempt thereafter to return to or to enter the United States shall be deemed guilty of a misdemeanor, and on conviction thereof shall be punished by imprisonment for a term of not more than two years. In all prosecutions under this section the testimony of a husband or wife shall be admissible and competent evidence against each other. (Feb. 5, 1917, ch. 29, § 4, 39 Stat. 878.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1875, ch. 141, § 3, 13 Stat. 477; Mar. 3, 1903, ch. 1012, § 3, 32 Stat. 1214; Feb. 20, 1907, ch. 1134, § 3, 34 Stat. 899; Mar. 26, 1910, ch. 128, § 2, 36 Stat. 264.

CROSS REFERENCES

Felonies, offense punishable by death or imprisonment for term exceeding one year as, see section 541 of Title 18, Criminal Code and Criminal Procedure.

§ 139. Contract laborers; prepaying transportation or assisting importation; forfeiture and punishment.

It shall be unlawful for any person, company, partnership, or corporation, in any manner whatsoever, to prepay the transportation or in any way to induce, assist, encourage, or solicit, or attempt to induce, assist, encourage, or solicit the importation or migration of any contract laborer or contract laborers into the United States, unless such contract laborer or contract laborers are exempted under the second proviso of paragraph (h) of section 136 of this title or have been imported with the permission of the Attorney General in accordance with said paragraph (h), and for every violation of any of the provisions of this section the person, partnership, company, or corporation violating the same shall forfeit and pay for every such offense the sum of $1,000, which may bo sued for and recovered by the United States, as debts of like amount are now recovered in the courts of the United States. For every violation of the provisions hereof the person violating the same may be prosecuted in a criminal action for a misdemeanor, and on conviction thereof shall be punished by a fine of $1,000, or by imprisonment for a term of not less than six months nor more than two years; and under either the civil or the criminal procedure mentioned separate suits or prosecutions may be brought for each alien thus offered or promised employment as aforesaid. The Department of Justice may from any fines or penalties received pay rewards to persons other than Government employees who may furnish information leading to the recovery of any such penalties, or to the arrest and punishment of any person, as in this section provided. (Feb. 5, 1917, ch. 29, § 5, 39 Stat. 879; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Feb. 26, 1885, ch. 164, §§ 1, 3, 4, 23 Stat. 332, 333; Mar. 3, 1903, ch. 1012, §§ 4, 5, 32 Stat. 1214; Feb. 20, 1907, ch. 1134, §§ 4, 5, 34 Stat. 900.

CROSS REFERENCES

Felony, offense punishable by death or imprisonment for term exceeding one year as, see section 541 of Title 18, Criminal Code and Criminal Procedure.

§ 140. Same; reward to informer.

The Attorney General is authorized to pay to an informer who furnishes original information that the law has been violated such a share of the penalties recovered as he may deem reasonable and just, not exceeding 50 per centum, where it appears that the recovery was had in consequence of the information thus furnished. (Oct. 19, 1888, ch. 1210, § 1, 25 Stat. 566; Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Act Apr. 28, 1904, cited to text, substituted Secretary of Commerce and Labor for Secretary of the Treasury; act Mar. 4, 1913, cited to text, transferred jurisdiction of immigration matters from Department of Commerce and Labor to Department of Labor; and Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 141. Same; validity of contracts for labor of aliens made before importation.

All contracts or agreements, express or implied, parol, or special, which may be made by and between any person, company, partnership, or corporation, and any foreigner or foreigners, alien or aliens, to perform labor or service or having reference to the performance of labor or service by any person in the United States, its Territories, or the District of Columbia previous to the migration or importation of the person or persons whose labor or service is contracted for into the United States, shall be utterly void and of no effect. (Feb. 26, 1885, ch. 164, § 2, 23 Stat. 332.)

§ 142. Same; advertisement of employment.

It shall be unlawful and be deemed a violation of section 139 of this title to induce, assist, encourage, or solicit, or attempt to induce, assist, encourage, or solicit, any alien to come into the United States by promise of employment through advertisements printed, published, or distributed in any foreign country, whether such promise is true or false, and either the civil or criminal penalty or both imposed by said section shall be applicable to such a case. (Feb. 5, 1917, ch. 29, § 6, 39 Stat. 879.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 3, 26 Stat. 1084; Mar. 3, 1903, ch. 1012, § 6, 32 Stat. 1215; Feb. 20, 1907, ch. 1134, § 6, 34 Stat. 900.

§ 143. Solicitation of immigration by transportation companies.

It shall be unlawful for any person, association, society, company, partnership, corporation, or others engaged in the business of transporting aliens to or within the United States, including owners, masters, officers, and agents of vessels, directly or indirectly, by writing, printing, oral representation, payment of any commissions to an alien coming into the United States, allowance of any rebates to an alien coming into the United States, or otherwise, to solicit, invite, or encourage or attempt to solicit, invite, or encourage, any alien to come into the United States, and anyone violating any provision hereof shall be subject to either the civil or the criminal prosecution, or both, prescribed by section 139 of this title; or if it shall appear to the satisfaction of the Attorney General that any owner, master, officer, or agent of a vessel has brought or caused to be brought to a port of the United States any alien so solicited, invited, or encouraged to come by such owner, master, officer, or agent, such owner, master, officer, or agent shall pay to the collector of customs of the customs district in which the port of arrival is located, or in which any vessel of the line may be found, the sum

of $400 for each and every such violation; and no vessel shall be granted clearance pending the determination of the question of the liability to the payment of such fine, or while the fine imposed remains unpaid, nor shall such fine be remitted or refunded; but clearance may be granted prior to the determination of such questions upon the deposit with the collector of customs of a sum sufficient to cover such fine. Whenever it shall be shown to the satisfaction of the Attorney General that the provisions of this section are persistently violated by or on behalf of any transportation company, it shall be the duty of said Secretary to deny to such company the privilege of landing alien immigrant passengers of any or all classes at United States ports for such a period as in his judgment may be necessary to insure an observance of such provisions. This section shall not be held to prevent transportation companies from issuing letters, circulars, or advertisements, confined strictly to stating the sailing of their vessels and terms and facilities of transportation therein. Under this section and sections 139 and 142 of this title it shall be presumed from the fact that any person, company, partnership, corporation, association, or society induces, assists, encourages, solicits, or invites, or attempts to induce, assist, encourage, solicit, or invite, the importation, migration, or coming of an alien from a country foreign to the United States that the offender had knowledge of such person's alienage. (Feb. 5, 1917, ch. 29, § 7, 39 Stat. 879; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 4, 26 Stat. 1084; Mar. 3, 1903, ch. 1012, § 7, 32 Stat. 1215; Feb. 20, 1907, ch. 1134, § 7, 34 Stat. 900.

§ 144. Bringing in or harboring or concealing certain aliens.

Any person, including the master, agent, owner, or consignee of any vessel, who shall bring into or land in the United States, by vessel or otherwise, or shall attempt, by himself or through another, to bring into or land in the United States, by vessel or otherwise, or shall conceal or harbor or attempt to conceal or harbor, or assist or abet another to conceal or harbor, in any place, including any building, vessel, railway car, conveyance, or vehicle, any alien not duly admitted by an immigrant inspector or not lawfully entitled to enter or to reside within the United States, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine not exceeding $2,000 and by imprisonment for a term not exceeding five years for each and every alien so landed or brought in or attempted to be landed or brought in. (Feb. 5, 1917, ch. 29, § 8, 39 Stat. 880.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Feb. 26, 1885, ch. 164, § 4, 23 Stat. 333; Mar. 3, 1891, ch. 551, § 6, 26 Stat. 1085; Mar. 3, 1903, ch. 1012, § 8, 32 Stat. 1215; Feb. 20, 1907, ch. 1134, § 8, 34 Stat. 900.

CROSS REFERENCES

Felony, offense punishable by death or imprisonment for term exceeding one year as, see section 541 of Title 18, Criminal Code and Criminal Procedure.

§ 145. Bringing in aliens subject to disability or afflicted with disease.

It shall be unlawful for any person, including any transportation company other than railway lines entering the United States from foreign contiguous territory, or the owner, master, agent, or consignee of any vessel, to bring to the United States either from a foreign country or any insular possession of the United States any alien afflicted with idiocy, insanity, imbecility, feeble-mindedness, epilepsy, constitutional psychopathic inferiority, chronic alcoholism, tuberculosis in any form, or a loathsome or dangerous contagious disease, and if it shall appear to the satisfaction of the Attorney General that any alien so brought to the United States was afflicted with any of the said diseases or disabilities at the time of foreign embarkation, and that the existence of such disease or disability might have been detected by means of a competent medical examination at such time, such person or transportation company, or the master, agent, owner, or consignee of any such vessel, shall pay to the collector of customs of the customs district in which the port of arrival is located the sum of $1,000, and in addition a sum equal to that paid by such alien for his transportation from the initial point of departure, indicated in his ticket, to the port of arrival, for each and every violation of the provisions of this section, such latter sum to be delivered by the collector of customs to the alien on whose account assessed. It shall also be unlawful for any such person to bring to any port of the United States any alien afflicted with any mental defect other than those above specifically named, or physical defect of a nature which may affect his ability to earn a living, as contemplated in section 136 of this title, and if it shall appear to the satisfaction of the Attorney General that any alien so brought to the United States was so afflicted at the time of foreign embarkation, and that the existence of such mental or physical defect might have been detected by means of a competent medical examination at such time such person shall pay to the collector of customs of the customs district in which the port of arrival is located the sum of $250, and in addition a sum equal to that paid by such alien for his transportation from the initial point of departure, indicated in his ticket, to the port of arrival, for each and every violation of this provision, such latter sum to be delivered by the collector of customs to the alien for whose account assessed. It shall also be unlawful for any such person to bring to any port of the United States any alien who is excluded by the provisions of said section 136 because unable to read, or who is excluded by its terms as a native of that portion of the Continent of Asia and the islands adjacent thereto described in said section, and if it shall appear to the satisfaction of the Attorney General that these disabilities might have been detected by the exercise of reasonable precaution prior to the departure of such

aliens from a foreign port, such person shall pay to the collector of customs of the customs district in which the port of arrival is located the sum of $1,000, and in addition a sum equal to that paid by such alien for his transportation from the initial point of departure, indicated in his ticket, to the port of arrival, for each and every violation of this provision, such latter sum to be delivered by the collector of customs to the alien on whose account assessed.

If a fine is imposed under this section for the bringing of an alien to the United States, and if such alien is accompanied by another alien who is excluded from admission by the last proviso of section 154 of this title, the person liable for such fine shall pay to the collector of customs, in addition to such fine but as a part thereof, a sum equal to that paid by such accompanying alien for his transportation from his initial point of departure indicated in his ticket, to the point of arrival, such sum to be delivered by the collector of customs to the accompanying alien when deported. No vessel shall be granted clearance papers pending the determination of the question of the liability to the payment of such fines, or while the fines remain unpaid, nor shall such fines be remitted or refunded; but clearance may be granted prior to the determination of such question upon the deposit of a sum sufficient to cover such fines or of a bond with sufficient surety to secure the payment thereof, approved by the collector of customs. Nothing contained in this section shall be construed to subject transportation companies to a fine for bringing to ports of the United States aliens who are by any of the provisions or exceptions to section 136 of this title exempted from the excluding provisions of said section. (Feb. 5, 1917, ch. 29, § 9, 39 Stat. 880; May 26, 1924, ch. 190, § 26, 43 Stat. 166; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SHORT TITLE AND POPULAR NAME

Short title and popular name of act May 26, 1924, cited to text, see section 201 of this title and note thereunder.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 1, 26 Stat. 1084; Mar. 3, 1903, ch. 1012, § 9, 32 Stat. 1215; Feb. 20, 1907, ch. 1134, § 9, 34 Stat. 901.

§ 146. Prevention of unauthorized landing of aliens; prima facie proof of landing.

(a) It shall be the duty of every person, including owners, masters, officers, and agents of vessels of transportation lines, or international bridges or toll roads, other than railway lines which may enter into a contract as provided in section 102 of this title, bringing an alien to, or providing a means for an alien to come to, the United States, to prevent the landing of such alien in the United States at any time or place other than as designated by the immigration officers. Any such person, owner, master, officer, or agent who fails to comply with the foregoing requirements shall be guilty of a misdemeanor and on conviction thereof shall be punished by a fine in each case of not less than $200 nor more than $1,000, or by imprisonment for a term not exceeding one year, or by both such fine and imprisonment; or, if in the opinion of the Attorney General, it is impracticable or inconvenient to prosecute the person, owner, master, officer, or agent of any such vessel, such person, owner, master, officer, or agent shall be liable to a penalty of $1,000, which shall be a lien upon the vessel whose owner, master, officer, or agent violates the provisions of this section, and such vessel shall be libeled therefor in the appropriate United States court.

(b) Proof that the alien failed to present himself at the time and place designated by the immigration officers shall be prima facie evidence that such alien has landed in the United States at a time or place other than as designated by the immigration officers. (Feb. 5, 1917, ch. 29, § 10, 39 Stat. 881; May 26, 1924, ch. 190, § 27, 43 Stat. 167; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SHORT TITLE AND POPULAR NAME

Short title and popular name of act May 26, 1924, cited to text, see section 201 of this title and note thereunder.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891 ch. 551, § 8, 26 Stat. 1085; Mar. 3, 1903, ch. 1012, § 18, 32 Stat. 1217; Feb. 20, 1907, ch. 1134, § 18, 34 Stat. 904.

§ 147. Detention of aliens for observation and examination; inspectors to report condition of vessels.

For the purpose of determining whether aliens arriving at ports of the United States belong to any of the classes excluded, either by reason of being afflicted with any of the diseases or mental or physical defects or disabilities mentioned in section 136 of this title, or otherwise, or whenever the Attorney General has received information showing that any aliens are coming from a country or have embarked at a place where any of said diseases are prevalent or epidemic, the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, may direct that such aliens shall be detained on board the vessel bringing them, or in a United States immigration station at the expense of such vessel, as circumstances may require or justify, a sufficient time to enable the immigration officers and medical officers stationed at such ports to subject aliens to an observation and examination sufficient to determine whether or not they belong to the said excluded classes by reason of being afflicted in the manner indicated. In order to avoid undue delay in landing passengers or interference with commerce, the Commissioner of Immigration and Naturalization may, with the approval of the Attorney General, issue such regulations, not inconsistent with law, as may be deemed necessary to effect the purposes of this section. It shall be the duty of immigrant inspectors to report to the Commissioner of Immigration and Naturalization the condition of all vessels bringing aliens to United States ports. (Feb. 5, 1917, ch. 29, § 11, 39 Stat. 881; Ex. Ord. No.

6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 148. Lists of alien passengers arriving or departing; record of resident aliens and citizens leaving for foreign country.

Upon the arrival of any alien by water at any port within the United States on the North American Continent from a foreign port or a port of Guam, Puerto Rico, or Hawaii, or at any port of the said insular possessions from any foreign port, from a port in the United States on the North American Continent, or from a port of another insular possession of the United States, it shall be the duty of the master or commanding officer, owners, or consignees of the steamer, sailing, or other vessel having said alien on board to deliver to the immigration officers at the port of arrival typewritten or printed lists or manifests made at the time and place of embarkation of such alien on board such steamer or vessel, which shall, in answer to questions at the top of said list, contain full and accurate information as to each alien as follows: Full name, age, and sex; whether married or single; calling or occupation; personal description (including height, complexion, color of hair and eyes, and marks of identification); whether able to read or write; nationality; country of birth; race; country of last permanent residence; name and address of the nearest relative in the country from which the alien came; seaport for landing in the United States; final destination, if any, beyond the port of landing; whether having a ticket through to such final destination; by whom passage was paid; whether in possession of $50, and if less, how much; whether going to join a relative or friend, and, if so, what relative or friend, and his or her name and complete address; whether ever before in the United States, and if so, when and where; whether ever in prison or almshouse or an institution or hospital for the care and treatment of the insane; whether ever supported by charity; whether a polygamist; whether an anarchist; whether a person who believes in or advocates the overthrow by force or violence of the Government of the United States or of all forms of law, or who disbelieves in or is opposed to organized government, or who advocates the assassination of public officials, or who advocates or teaches the unlawful destruction of property, or is a member of or affiliated with any organization entertaining and teaching disbelief in or opposition to organized government, or which teaches the unlawful destruction of property, or who advocates or teaches the duty, necessity, or propriety of the unlawful assaulting or killing of any officer or officers, either of specific individuals or of officers generally, of the Government of the United States or of any other organized government because of his or their official character; whether coming by reason of any offer, solicitation, promise, or agreement, express or implied, to perform labor in the United States; the alien's condition of health, mental and physical; whether deformed or crippled; and if so, for how long and from what cause; whether coming with the intent to return to the country whence such alien comes after temporarily engaging in laboring pursuits in the United States; and such other items of information as will aid in determining whether any such alien belongs to any of the excluded classes enumerated in section 136 of this title; and such master or commanding officer, owners, or consignees shall also furnish information in relation to the sex, age, class of travel, and the foreign port of embarkation of arriving passengers who are United States citizens. It shall further be the duty of the master or commanding officer of every vessel taking passengers from any port of the United States on the North American Continent to a foreign port or a port of Guam, Puerto Rico, or Hawaii, or from any port of the said insular possessions to any foreign port, to a port of the United States on the North American Continent, or to a port of another insular possession of the United States to file with the immigration officials before departure a list which shall contain full and accurate information in relation to the following matters regarding all alien passengers, and all citizens of the United States or insular possessions of the United States departing with the stated intent to reside permanently in a foreign country, taken on board: Name, age, and sex; whether married or single; calling or occupation; whether able to read or write; nationality; country of birth; country of which citizen or subject; race; last permanent residence in the United States or insular possessions thereof; if a citizen of the United States or of the insular possessions thereof, whether native born or naturalized; if, native born, the place and date of birth, or if naturalized the city or town in which naturalization has been had; intended future permanent residence; and time and port of last arrival in the United States, or insular possessions thereof; and such master or commanding officer shall also furnish information in relation to the sex, age, class of travel, and port of debarkation of the United States citizens departing who do not intend to reside permanently in a foreign country, and no master of any such vessel shall be granted clearance papers for his vessel until he has deposited such list or lists with the immigration officials at the port of departure and made oath that they are full and complete as to the name and other information herein required concerning each person of the classes specified taken on board his vessel; and any neglect or omission to comply with the requirements of this section shall be punishable as provided in section 150 of this title. In the case of vessels making regular trips to ports of the United States the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, may, when expedient, arrange for the delivery of such lists of outgoing aliens at a later date. It shall be the duty of immigration officials to record the following information regarding every resident alien and citizen leaving the United States by way of the Canadian or Mexican borders for permanent res-

idence in a foreign country: Name, age, and sex; whether married or single; calling or occupation; whether able to read or write; nationality; country of birth; country of which citizen or subject; race; last permanent residence in the United States; intended future permanent residence; and time and port of last arrival in the United States; and if a United States citizen, whether native born or naturalized. (Feb. 5, 1917, ch. 29, § 12, 39 Stat. 882; May 17, 1932, ch. 190, 47 Stat. 158; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Proc. No. 2695, July 4, 1946, 11 F. R. 7511, 60 Stat. 1352.)

CODIFICATION

Act May 17, 1932, cited to text, is authority for the substitution of "Puerto Rico" for "Porto Rico".

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

References to the Philippine Islands, near the beginning of the first and second sentences, respectively, were omitted as obsolete in view of the independence of the Philippine Islands, proclaimed by the President of the United States in Proc. No. 2695, cited to text and issued pursuant to section 1240 of Title 48, Territories and Insular Possessions, under which it is set out as a note.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1893, ch. 206, § 1, 27 Stat. 569; Mar. 3, 1903, ch. 1012, § 12, 32 Stat. 1216; Feb. 20, 1907, ch. 1134, § 12, 34 Stat. 901.

§ 149. Grouping of alien passengers in lists; identification tickets.

All aliens arriving by water at the ports of the United States shall be listed in convenient groups, the names of those coming from the same locality to be assembled so far as practicable, and no one list or manifest shall contain more than thirty names. To each alien or head of a family shall be given a ticket on which shall be written his name, a number or letter designating the list in which his name, and other items of information required by law, are contained, and his number on said list, for convenience of identification on arrival. Each list or manifest shall be verified by the signature and the oath or affirmation of the master or commanding officer, or the first or second below him in command, taken before an immigration officer at the port of arrival, to the effect that he has caused the surgeon of said vessel sailing therewith to make a physical and mental examination of each of said aliens, and that from the report of said surgeon and from his own investigation he believes that no one of said aliens is of any of the classes excluded from admission into the United States under section 136 of this title, and that also according to the best of his knowledge and belief the information in said lists or manifests concerning each of said aliens named therein is correct and true in every respect. The surgeon of said vessel sailing therewith shall also sign each of said lists or manifests and make oath or affirmation in like manner before an immigration officer at the port of arrival, stating his professional experience and qualifications as a physician and surgeon, and that he has made a personal examination of each of the said aliens named therein, and that the said list or manifest, according to the best of his knowledge and belief, is full, correct, and true in all particulars relative to the mental and physical condition of said aliens. If no surgeon sails with any vessel bringing aliens, the mental and physical examinations and the verifications of the lists or manifests shall be made by some competent surgeon employed by the owners of the said vessels, and the manifests shall be verified by such surgeon before a United States consular officer or other officer authorized to administer oaths. If any changes in the condition of such aliens occur or develop during the voyage of the vessel on which they are traveling, such changes shall be noted on the manifest before the verification thereof. (Feb. 5, 1917, ch. 29, § 13, 39 Stat. 884.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1893, ch. 206, §§ 2, 3, 27 Stat. 569; Mar. 3, 1903, ch. 1012, §§ 13, 14, 32 Stat. 1216, 1217; Feb. 20, 1907, ch. 1134, §§ 13, 14, 34 Stat. 902, 903.

§ 150. Refusal or failure to furnish lists of alien passengers.

It shall be unlawful for the master or commanding officer of any vessel bringing aliens into or carrying aliens out of the United States to refuse or fail to deliver to the immigration officials the accurate and full manifests or statements or information regarding all aliens on board or taken on board such vessel required by this chapter, and if it shall appear to the satisfaction of the Attorney General that there has been such a refusal or failure, or that the lists delivered are not accurate and full, such master or commanding officer shall pay to the collector of customs at the port of arrival or departure the sum of $10 for each alien concerning whom such accurate and full manifest or statement or information is not furnished, or concerning whom the manifest or statement or information is not prepared and sworn to as prescribed by this chapter. No vessel shall be granted clearance pending the determination of the question of the liability to the payment of such fine, or while it remains unpaid, nor shall such fine be remitted or refunded; but clearance may be granted prior to the determination of such question upon the deposit with the collector of customs of a sum sufficient to cover such fine. (Feb. 5, 1917, ch. 29, § 14, 39 Stat. 884; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act February 5, 1917, cited to text. Said act was incorporated into this code as sections 101, 102, 105, 108, 109, 113, 115, 116, 132, 136, 138, 139, 142–156, 158–166, 168, 169, 171, 173, 175, 177, and 178 of this title.

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1893, ch. 206, § 4, 27 Stat. 570; Mar. 3, 1903, ch. 1012, § 15, 32 Stat. 1217; Feb. 20, 1907, ch. 1134, § 15, 34 Stat. 903.

§ 151. Inspection of alien passengers on arrival; temporary removal for examination.

Upon the arrival at a port of the United States of any vessel bringing aliens it shall be the duty of the proper immigration officials to go or to send competent assistants to the vessel and there inspect all such aliens, or said immigration officials may order a temporary removal of such aliens for examination at a designated time and place, but such temporary removal shall not be considered a landing, nor shall it relieve vessels, the transportation lines, masters, agents, owners, or consignees of the vessel upon which said aliens are brought to any port of the United States from any of the obligations which, in case such aliens remain on board, would under the provisions of this subchapter bind the said vessels, transportation lines, masters, agents, owners, or consignees. Where removal is made to premises owned or controlled by the United States, said vessels, transportation lines, masters, agents, owners, or consignees, and each of them, shall, so long as detention there lasts, be relieved of responsibility for the safe-keeping of such aliens. Whenever a temporary removal of aliens is made the vessels or transportation lines which brought them and the masters, owners, agents, and consignees of the vessel upon which they arrive shall pay all expenses of such removal and all expenses arising during subsequent detention, pending decision on the aliens' eligibility to enter the United States and until they are either allowed to land or returned to the care of the line or to the vessel which brought them, such expenses to include those of maintenance, medical treatment in hospital or elsewhere, burial in the event of death, and transfer to the vessel in the event of deportation, excepting only where they arise under the terms of any of the provisos of section 154 of this title: *Provided further,* That in cases of aliens who arrive in possession of unexpired visas issued by United States consuls within sixty days of the aliens' foreign embarkation, detention expenses and expenses incident to detention shall not be assessed against the vessel if the sole cause of exclusion is one arising under section 213 (a) (1) or (3) of this title. Any refusal or failure to comply with the provisions hereof shall be punished in the manner specified in that section. (Feb. 5, 1917, ch. 29, § 15, 39 Stat. 885; Dec. 19, 1944, ch. 608, § 1, 58 Stat. 816.)

AMENDMENTS

1944—Act Dec. 19, 1944, cited to text, amended section by adding proviso to next to last sentence.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 8, 26 Stat. 1085; Mar. 3, 1903, ch. 1012, § 16, 32 Stat. 1217; Feb. 20, 1907, ch. 1134, § 16, 34 Stat. 903; Oct. 22, 1913, ch. 32, § 1, 38 Stat. 226.

§ 152. Physical and mental examination of alien passengers; regulations.

The physical and mental examination of all arriving aliens shall be made by medical officers of the United States Public Health Service who shall conduct all medical examinations and shall certify, for the information of the immigration officers and the boards of special inquiry hereinafter provided for, any and all physical and mental defects or diseases observed by said medical officers in any such alien; or, should medical officers of the United States Public Health Service be not available, civil surgeons of not less than four years' professional experience may be employed in such emergency for such service upon such terms as may be prescribed by the Commissioner of Immigration and Naturalization, under the direction or with the approval of the Attorney General. All aliens arriving at ports of the United States shall be examined by not less than two such medical officers at the discretion of the Attorney General, and under such administrative regulations as he may prescribe and under medical regulations prepared by the Surgeon General of the United States Public Health Service. Medical officers of the United States Public Health Service who have had especial training in the diagnosis of insanity and mental defects shall be detailed for duty or employed at all ports of entry designated by the Attorney General, and such medical officers shall be provided with suitable facilities for the detention and examination of all arriving aliens in whom insanity or mental defect is suspected, and the services of interpreters shall be provided for such examination. Any alien certified for insanity or mental defect may appeal to the board of medical officers of the United States Public Health Service, which shall be convened by the Surgeon General of the United States Public Health Service, and said alien may introduce before such board one expert medical witness at his own cost and expense. The inspection, other than the physical and mental examination, of aliens, including those seeking admission or readmission to or the privilege of passing through or residing in the United States, and the examination of aliens arrested within the United States under this section, shall be conducted by immigrant inspectors, except as hereinafter provided in regard to boards of special inquiry. All aliens arriving at ports of the United States shall be examined by at least two immigrant inspectors at the discretion of the Attorney General and under such regulations as he may prescribe. Immigrant inspectors are hereby authorized and empowered to board and search for aliens any vessel, railway car, or any other conveyance, or vehicle in which they believe aliens are being brought into the United States. Said inspectors shall have power to administer oaths and to take and consider evidence touching the right of any alien to enter, reenter, pass through, or reside in the United States, and, where such action may be necessary, to make a written record of such evidence; and any person to whom such an oath has been administered, under the provisions of this chapter, who shall knowingly or willfully give false evidence or swear to any false statement in any way affecting or in relation to the right of any alien to admission, or readmission to, or to pass through, or to reside in the United States shall be deemed guilty of perjury and be punished as provided by section 231 of Title 18. All aliens coming to the United States shall be required to state under oath the purposes for which they come, the length of time they intend to remain in the United States, whether or not they intend to abide in the United States permanently and become

citizens thereof, and such other items of information regarding themselves as will aid the immigration officials in determining whether they belong to any of the excluded classes enumerated in section 136 of this title. Any district director of immigration and naturalization designated by the Commissioner or any inspector in charge shall also have power to require by subpoena the attendance and testimony of witnesses before said inspectors and the production of books, papers, and documents touching the right of any alien to enter, reenter, reside in, or pass through the United States, and to that end may invoke the aid of any court of the United States; and any district court within the jurisdiction of which investigations are being conducted by an immigrant inspector may, in the event of neglect or refusal to respond to a subpoena issued by any such district director or inspector in charge or refusal to testify before said immigrant inspector, issue an order requiring such person to appear before said immigrant inspector, produce books, papers, and documents if demanded, and testify; and any failure to obey such order of the court may be punished by the court as a contempt thereof. Any person, including employees, officials, or agents of transportation companies, who shall assault, resist, prevent, impede, or interfere with any immigration official or employee in the performance of his duty under this chapter shall be deemed guilty of a misdemeanor, and on conviction thereof shall be punished by imprisonment for a term of not more than one year, or by a fine of not more than $2,000, or both; and any person who shall use any deadly or dangerous weapon in resisting any immigration official or employee in the performance of his duty shall be deemed guilty of a felony and shall, on conviction thereof, be punished by imprisonment for not more than ten years. Every alien who may not appear to the examining immigrant inspector at the port of arrival to be clearly and beyond a doubt entitled to land shall be detained for examination in relation thereto by a board of special inquiry. In the event of rejection by the board of special inquiry, in all cases where an appeal to the Attorney General is permitted by this chapter, the alien shall be so informed and shall have the right to be represented by counsel or other adviser on such appeal. The decision of an immigrant inspector, if favorable to the admission of any alien, shall be subject to challenge by any other immigrant inspector, and such challenge shall operate to take the alien whose right to land is so challenged before a board of special inquiry for its investigation. (Feb. 5, 1917, ch. 29, § 16, 39 Stat. 885; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. III, § 6, eff. June 30, 1940, 5 F. R. 2108, 54 Stat. 1233; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; July 1, 1944, ch. 373, title VII, § 711, 58 Stat. 714, renumbered Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act", meaning act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration". See note preceding section 100 of this title.

"District director of immigration" referred to in text, originally read "commissioner of immigration." 1940 Reorg. Plan No. III, cited to text, abolished the commissioners of immigration at the ports and transferred their functions to "such district directors of immigration and naturalization as the Commissioner may designate."

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1944—Act July 1, 1944, cited to text, repealed words "who shall have had at least two years' experience in the practice of their profession since receiving the degree of doctor of medicine, and" following "Public Health Service" where appearing first in the first sentence.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1875, ch. 141, § 5, 18 Stat. 477; Mar. 3, 1891, ch. 551, § 8, 26 Stat. 1085; Mar. 3, 1893, ch. 206, §§ 5, 6, 27 Stat. 570; Mar. 3, 1903, ch. 1012, §§ 17, 24, 32 Stat. 1217, 1219; Feb. 20, 1907, ch. 1134, §§ 17, 24, 34 Stat. 903, 906; Mar. 4, 1909, ch. 299, § 1, 35 Stat. 969.

§ 153. Boards of special inquiry; appointment.

Boards of special inquiry shall be appointed by either the district director of immigration and naturalization designated by the Commissioner or by the inspector in charge at the various ports of arrival as may be necessary for the prompt determination of all cases of immigrants detained at such ports under the provisions of the law. Each board shall consist of three members, who shall be selected from such of the immigrant officials in the service as the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, shall from time to time designate as qualified to serve on such boards. When in the opinion of the Attorney General the maintenance of a permanent board of special inquiry for service at any sea or land border port is not warranted, regularly constituted boards may be detailed from other stations for temporary service at such port, or, if that be impracticable, the Attorney General shall authorize the creation of boards of special inquiry by the immigration and naturalization officials in charge at such ports, and shall determine what Government officials or other persons shall be eligible for service on such boards. Such boards shall have authority to determine whether an alien who has been duly held shall be allowed to land or shall be deported. All hearings before such boards shall be separate and apart from the public, but the immigrant may have one friend or relative present under such regulations as may be prescribed by the Attorney General. Such boards shall keep a complete permanent record of their proceedings and of all such testimony as may be produced before them; and the decisions of any two members of the board shall prevail, but either the alien or any dissenting member of the said board may appeal through the district director of immigration and naturalization at the port of arrival and the Commissioner of Immigration and Naturalization to the Attorney General, and the taking of such appeal shall operate to stay any action in regard to the final disposal of any alien whose case is so appealed until the receipt by the district director of immigration and naturalization at the port of arrival

of such decision which shall be rendered solely upon the evidence adduced before the board of special inquiry. In every case where an alien is excluded from admission into the United States, under any law or treaty now existing or hereafter made, the decision of a board of special inquiry adverse to the admission of such alien shall be final, unless reversed on appeal to the Attorney General. The decision of a board of special inquiry shall be based upon the certificate of the examining medical officer and, except as provided in section 158 of this title, shall be final as to the rejection of aliens affected with tuberculosis in any form or with a loathsome or dangerous contagious disease, or with any mental or physical disability which would bring such aliens within any of the classes excluded from admission to the United States under section 136 of this title. (Feb. 5, 1917, ch. 29, § 17, 39 Stat. 887; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. III, § 6, eff. June 30, 1940, 5 F. R. 2108, 54 Stat. 1233; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and "immigration and naturalization officials" for "immigration officials". See note preceding section 100 of this title.

"District director of immigration and naturalization designated by the Commissioner" was substituted for "commissioner of immigration"; and "district director of immigration and naturalization at the port of arrival" for "commissioner of immigration at the port of arrival". See note under section 152 of this title.

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 8, 26 Stat. 1085; Mar. 3, 1893, ch. 206, § 5, 27 Stat. 570; Mar. 3, 1903, ch. 1012, §§ 10, 25, 32 Stat. 1216, 1220; Feb. 20, 1907, ch. 1134, §§ 10, 25, 34 Stat. 901, 906.

§ 154. Immediate deportation of aliens brought in in violation of law; cost of maintenance and return.

All aliens brought to this country in violation of law shall be immediately sent back, in accommodations of the same class in which they arrived, to the country whence they respectively came, on the vessels bringing them, unless in the opinion of the Attorney General immediate deportation is not practicable or proper. The cost of their maintenance while on land, as well as the expense of the return of such aliens, shall be borne by the owner or owners of the vessels on which they respectively came, except that detention expenses and expenses incident to detention, shall not be assessed against the owner or owners of the vessels on which they respectively came when the aliens are in possession of unexpired visas issued by United States consuls within sixty days of the aliens' foreign embarkation if the sole cause of exclusion is one arising under section 213 (a) (1) or (3) of this title. It shall be unlawful for any master, purser, person in charge, agent, owner, or consignee of any such vessel to refuse to receive back on board thereof, or on board of any other vessel owned or operated by the same interests, such aliens; or to fail to detain them thereon; or to refuse or fail to return them in the manner aforesaid to the foreign port from which they came; or to fail to pay the cost of their maintenance while on land as required by this section or section 151 of this title; or to make any charge for the return of any such alien, or to take any security for the payment of such charge; or to take any consideration to be returned in case the alien is landed; or knowingly to bring to the United States any alien excluded or arrested and deported under any provision of law until such time as such alien may be lawfully entitled to reapply for admission to the United States; and if it shall appear to the satisfaction of the Attorney General that such master, purser, person in charge, agent, owner, or consignee has violated any of the foregoing provisions, or any of the provisions of section 151 of this title, such master, purser, person in charge, agent, owner, or consignee shall pay to the collector of customs of the district in which the port of arrival is located, or in which any vessel of the line may be found, the sum of $300 for each and every violation of any provision of said sections; and no vessel shall have clearance from any port of the United States while any such fine is unpaid, nor shall such fine be remitted or refunded: *Provided,* That clearance may be granted prior to the determination of such question upon the deposit with the collector of customs of a sum sufficient to cover such fine. If the vessel by which any alien ordered deported came has left the United States and it is impracticable for any reason to deport the alien within a reasonable time by another vessel owned by the same interests, the cost of deportation may be paid by the Government and recovered by civil suit from any agent, owner, or consignee of the vessel: *Provided further,* That the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, may suspend, upon conditions to be prescribed by the Commissioner of Immigration and Naturalization, the deportation of any aliens found to have come in violation of any provision of this chapter if, in his judgment, the testimony of such alien is necessary on behalf of the United States Government in the prosecution of offenders against any provision of this chapter or other laws of the United States; and the cost of maintenance of any person so detained resulting from such suspension of deportation, and a witness fee in the sum of $1 per day for each day such person is so detained, may be paid from the appropriation for the enforcement of this chapter, or such alien may be released under bond, in the penalty of not less than $500, with security approved by the Attorney General, conditioned that such alien shall be produced when required as a witness and for deportation. No alien certified, as provided in section 152 of this title, to be suffering from tuberculosis in any form, or from a loathsome or dangerous contagious disease other than one of quarantinable nature, shall be permitted to land for medical treatment thereof in any hospital in the United States, unless the Attorney General is satisfied that to refuse treatment would be inhumane or cause unusual hardship or suffering, in which case the alien shall be treated

in the hospital under the supervision of the immigration officials at the expense of the vessel transporting him: *Provided further*, That upon the certificate of an examining medical officer to the effect that the health or safety of an insane alien would be unduly imperiled by immediate deportation, such alien may, at the expense of the appropriation for the enforcement of this chapter, be held for treatment until such time as such alien may, in the opinion of such medical officer, be safely deported: *Provided further*, That upon the certificate of an examining medical officer to the effect that a rejected alien is helpless from sickness, mental or physical disability, or infancy, if such alien is accompanied by another alien whose protection or guardianship is required by such rejected alien, such accompanying alien may also be excluded, and the master, agent, owner, or consignee of the vessel in which such alien and accompanying alien are brought shall be required to return said alien and accompanying alien in the same manner as vessels are required to return other rejected aliens. (Feb. 5, 1917, ch. 29, § 18, 39 Stat. 887; Feb. 27, 1925, ch. 364, title IV, 43 Stat. 1049; Mar. 4, 1929, ch. 690, § 1 (e), 45 Stat. 1551; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Dec. 19, 1944, ch. 608, § 2, 58 Stat. 816.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act February 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1944—Act Dec. 19, 1944, cited to text, amended section by changing period to comma at end of second sentence following "respectively came" and adding "except that detention * * * section 213 (a) (1) or (3) of this title.", and adding after "maintenance while on land" the words "as required by this section or section 151 of this title".

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Aug. 3, 1882, ch. 376, § 4, 22 Stat. 214; Feb. 26, 1885, ch. 164, § 8, as added Feb. 23, 1887, ch. 220, 24 Stat. 415, and amended Oct. 19, 1888, ch. 1210, 25 Stat. 566; Mar. 3, 1891, ch. 206, § 10, 26 Stat. 1086; Mar. 3, 1903, ch. 1012, §§ 11, 19, 32 Stat. 1216, 1218; Feb. 20, 1907, ch. 1134, §§ 11, 19, 34 Stat. 901, 904.

§ 155. Deportation of undesirable aliens generally.

(a) At any time within five years after entry, any alien who at the time of entry was a member of one or more of the classes excluded by law; any alien who shall have entered or who shall be found in the United States in violation of this chapter, or in violation of any other law of the United States; any alien who at any time after entry shall be found advocating or teaching the unlawful destruction of property, or advocating or teaching anarchy, or the overthrow by force or violence of the Government of the United States or of all forms of law or the assassination of public officials; any alien who within five years after entry becomes a public charge from causes not affirmatively shown to have arisen subsequent to landing; except as hereinafter provided, any alien who is hereafter sentenced to imprisonment for a term of one year or more because of conviction in this country of a crime involving moral turpitude, committed within five years after the entry of the alien to the United States, or who is hereafter sentenced more than once to such a term of imprisonment because of conviction in this country of any crime involving moral turpitude, committed at any time after entry; any alien who shall be found an inmate of or connected with the management of a house of prostitution or practicing prostitution after such alien shall have entered the United States, or who shall receive, share in, or derive benefit from any part of the earnings of any prostitute; any alien who manages or is employed by, in, or in connection with any house of prostitution or music or dance hall or other place of amusement or resort habitually frequented by prostitutes, or where prostitutes gather, or who in any way assists any prostitute or protects or promises to protect from arrest any prostitute; any alien who shall import or attempt to import any person for the purpose of prostitution or for any other immoral purpose; any alien who, after being excluded and deported or arrested and deported as a prostitute, or as a procurer, or as having been connected with the business of prostitution or importation for prostitution or other immoral purposes in any of the ways hereinbefore specified, shall return to and enter the United States; any alien convicted and imprisoned for a violation of any of the provisions of section 138 of this title; any alien who was convicted, or who admits the commission, prior to entry, of a felony or other crime or misdemeanor involving moral turpitude; at any time within three years after entry, any alien who shall have entered the United States by water at any time or place other than as designated by immigration officials, or by land at any place other than one designated as a port of entry for aliens by the Commissioner of Immigration and Naturalization, or at any time not designated by immigration officials, or who enters without inspection, shall, upon the warrant of the Attorney General, be taken into custody and deported. The marriage to an American citizen of a female of the sexually immoral classes the exclusion or deportation of which is prescribed by this chapter shall not invest such female with United States citizenship if the marriage of such alien female shall be solemnized after her arrest or after the commission of acts which make her liable to deportation under this chapter. The provision of this section respecting the deportation of aliens convicted of a crime involving moral turpitude shall not apply to one who has been pardoned, nor shall such deportation be made or directed if the court, or judge thereof, sentencing such alien for such crime shall, at the time of imposing judgment or passing sentence or within thirty days thereafter, due notice having first been given to representatives of the State, make a recommendation to the Attorney General that such alien shall not be deported in pursuance of this chapter; nor shall any alien convicted as aforesaid be deported until after the termination

of his imprisonment. The provisions of this section, with the exceptions hereinbefore noted, shall be applicable to the classes of aliens therein mentioned irrespective of the time of their entry into the United States; and shall also apply to the cases of aliens who come to the mainland of the United States from the insular possessions thereof. Any person who shall be arrested under the provisions of this section, on the ground that he has entered or been found in the United States in violation of any other law thereof which imposes on such person the burden of proving his right to enter or remain, and who shall fail to establish the existence of the right claimed, shall be deported to the place specified in such other law. In every case where any person is ordered deported from the United States under the provisions of this chapter, or of any law or treaty, the decision of the Attorney General shall be final.

(b) Any alien of any of the classes specified in this subsection, in addition to aliens who are deportable under other provisions of law, shall, upon warrant of the Attorney General, be taken into custody and deported:

(1) Any alien who, at any time within five years after entry, shall have, knowingly and for gain, encouraged, induced, assisted, abetted, or aided any other alien to enter or to try to enter the United States in violation of law.

(2) Any alien who, at any time after entry, shall have on more than one occasion, knowingly and for gain, encouraged, induced, assisted, abetted, or aided any other alien or aliens to enter or to try to enter the United States in violation of law.

(3) Any alien who, at any time after entry, shall have been convicted of possessing or carrying in violation of any law any weapon which shoots or is designed to shoot automatically or semiautomatically more than one shot without manual reloading, by a single function of the trigger, or a weapon commonly called a sawed-off shotgun.

(4) Any alien who, at any time within five years after entry, shall have been convicted of violating the provisions of sections 9–13 of Title 18.

(5) Any alien who, at any time after entry, shall have been convicted more than once of violating the provisions of sections 9–13 of Title 18.

No alien who is deportable under the provisions of paragraph (3), (4), or (5) of this subsection shall be deported until the termination of his imprisonment or the entry of an order releasing him on probation or parole.

(c) In the case of any alien (other than one to whom subsection (d) is applicable) who is deportable under any law of the United States and who has proved good moral character for the preceding five years, the Attorney General may (1) permit such alien to depart the United States to any country of his choice at his own expense, in lieu of deportation, or (2) suspend deportation of such alien if not racially inadmissible or ineligible to naturallzation in the United States if he finds that such deportation would result in serious economic detriment to a citizen or legally resident alien who is the spouse, parent, or minor child of such deportable alien. If the deportation of any alien is suspended under the provisions of this subsection for more than six months, all of the facts and pertinent provisions of law in the case shall be reported to the Congress, with the reasons for such suspension. These reports shall be submitted on the 1st and 15th day of each calendar month in which the Congress is in session. If during the session of the Congress at which a case is reported, or if a case is reported less than thirty days prior to the close of the session, then during the next session of the Congress, the two Houses pass a concurrent resolution stating in substance that the Congress does not favor the suspension of such deportation, the Attorney General shall thereupon deport such alien in the manner provided by law. If during the session of the Congress at which a case is reported, or if a case is reported less than thirty days prior to the close of the session, then during the next session of the Congress, the two Houses do not pass such a resolution, the Attorney General shall cancel deportation proceedings upon the termination of such session, except that such proceedings shall not be canceled in the case of any alien who was not legally admitted for permanent residence at the time of his last entry into the United States, unless such alien pays the Commissioner of Immigration and Naturalization a fee of $18 (which fee shall be deposited in the Treasury of the United States as miscellaneous receipts). Upon the cancelation of such proceedings in any case in which such fee has been paid, the Commissioner shall record the alien's admission for permanent residence as of the date of his last entry into the United States and the Secretary of State shall, if the alien was a quota immigrant at the time of entry and was not charged to the appropriate quota, reduce by one the immigration quota of the country of the alien's nationality as defined in section 212 of this title, for the fiscal year then current or next following.

(d) The provisions of subsection (c) shall not be applicable in the case of any alien who is deportable under (1) section 137 of this title; (2) section 175 of Title 21; (3) section 156a of this title; (4) any of the provisions of so much of subsection (a) of this section as relates to criminals, prostitutes, procurers, or other immoral persons, the mentally and physically deficient, anarchists, and similar classes; or (5) subsection (b) of this section. (Feb. 5, 1917, ch. 29, § 19, 39 Stat. 889; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; June 28, 1940, ch. 439, title II, § 20, 54 Stat. 671; Dec. 8, 1942, ch. 697, 56 Stat. 1044.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1942—Act Dec. 8, 1942, cited to text, amended subsec. (c) of section by striking out words "within ten days after the beginning of its next regular session" following words "shall be reported to the Congress" in the second sentence, by adding the third sentence, by repealing former third sentence which read "The Clerk of the House shall have such report printed as a public document," and by substituting words "If during the session of the Congress at which a case is reported, or if a case is reported less than thirty days prior to the close of the session, then during the next session of the Congress" in lieu of words "If during that session" at the beginning of the fourth and fifth sentences.

EFFECTIVE DATE

Section 38 of act Feb. 5, 1917, cited to text, provided that this section should take effect and be enforced on and after May 1, 1917.

RETROACTIVE EFFECT

Section 22 of act June 28, 1940, cited to text, provided that no alien should be deportable by reason of the amendment of this section and section 156a by said act, on account of any act committed prior to the date of enactment of said act.

SEPARABILITY AND SHORT TITLE

Separability clause and short title of act June 28, 1940, cited to text, see note under section 451 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Oct. 19, 1888, ch. 1210, § 1, 25 Stat. 566; Mar. 3, 1891, ch. 551, § 11, 26 Stat. 1086; Mar. 3, 1903, ch. 1012, § 20, 82 Stat. 1218; Feb. 20, 1907, ch. 1134, §§ 3, 20, 36, 34 Stat. 899, 904, 908; Mar. 26, 1910, ch. 128, § 2, 36 Stat. 264.

CROSS REFERENCES

Convicted aliens, deportation after imprisonment, see section 180b of this title.

Status of women marrying citizens or persons becoming naturalized, see section 710 note of this title.

Surreptitious entry, penalty for, see section 180a of this title.

§ 156. Ports to which aliens to be deported; cost of deportation.

The deportation of aliens provided for in this chapter shall, at the option of the Attorney General, be to the country whence they came or to the foreign port at which such aliens embarked for the United States; or, if such embarkation was for foreign contiguous territory, to the foreign port at which they embarked for such territory; or, if such aliens entered foreign contiguous territory from the United States and later entered the United States, or, if such aliens are held by the country from which they entered the United States not to be subjects or citizens of such country, and such country refuses to permit their reentry, or imposes any condition upon permitting reentry, then to the country of which such aliens are subjects or citizens, or to the country in which they resided prior to entering the country from which they entered the United States. If the United States is at war and the deportation, in accordance with the preceding provisions of this section, of any alien who is deportable under any law of the United States, shall be found by the Attorney General to be impracticable or inconvenient because of enemy occupation of the country whence such alien came or wherein is located the foreign port at which he embarked for the United States or because of other reasons connected with the war, such alien may, at the option of the Attorney General, be deported (a) if such alien is a citizen or subject of a country whose recognized government is in exile, to the country wherein is located that government in exile, if that country will permit him to enter its territory; or (b) if such alien is a citizen or subject of a country whose recognized government is not in exile, then, to a country or any political or territorial subdivision thereof which is proximate to the country of which the alien is a citizen or subject, or, with the consent of the country of which the alien is a citizen or subject, to any other country. If deportation proceedings are instituted at any time within five years after the entry of the alien, such deportation, including one-half of the entire cost of removal to the port of deportation, shall be at the expense of the contractor, procurer, or other person by whom the alien was unlawfully induced to enter the United States, or, if that can not be done, then the cost of removal to the port of deportation shall be at the expense of the appropriation for the enforcement of the laws regulating immigration of aliens into the United States, and the deportation from such port shall be at the expense of the owner or owners of such vessels or transportation line by which such aliens respectively came, or, if that is not practicable, at the expense of the appropriation for the enforcement of the laws regulating immigration of aliens into the United States. If deportation proceedings are instituted later than five years after the entry of the alien, or, if the deportation is made by reason of causes arising subsequent to entry, the cost thereof shall be payable from said appropriation. A failure or refusal on the part of the masters, agents, owners, or consignees of vessels to comply with the order of the Attorney General to take on board, guard safely, and transport to the destination specified any alien ordered to be deported under the provisions of this chapter shall be punished by the imposition of the penalties prescribed in section 154 of this title. When in the opinion of the Attorney General the mental or physical condition of such alien is such as to require personal care and attendance, the Attorney General shall when necessary employ a suitable person for that purpose, who shall accompany such alien to his or her final destination, and the expense incident to such service shall be defrayed in the same manner as the expense of deporting the accompanied alien is defrayed. Pending the final disposal of the case of any alien so taken into custody, he may be released under a bond in the penalty of not less than $500 with security approved by the Attorney General, conditioned that such alien shall be produced when required for a hearing or hearings in regard to the charge upon which he has been taken into custody, and for deportation if he shall be found to be unlawfully within the United States. (Feb. 5, 1917, ch. 29, § 20, 39 Stat. 890; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; July 13, 1943, ch. 230, 57 Stat. 553.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1943—Act July 13, 1943, cited to text, inserted sentence beginning "If the United States is at war".

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1903, ch. 1012, §§ 20, 21, 35, 32 Stat. 1218, 1221; Feb. 20, 1907, ch. 1134, §§ 20, 21, 35, 34 Stat. 904, 905, 908.

§ 156a. Deportation of aliens engaged in narcotic traffic.

Any alien (except an addict who is not a dealer in, or peddler of, any of the narcotic drugs mentioned in this section) who, after February 18, 1931, shall be convicted for violation of or conspiracy to violate any statute of the United States or of any State, Territory, possession, or of the District of Columbia taxing, prohibiting, or regulating the manufacture, production, compounding, transportation, sale, exchange, dispensing, giving away, importation, or exportation of opium, coca leaves, heroin, marihuana, or any salt, derivative, or preparation of opium or coca leaves, shall be taken into custody and deported in manner provided in sections 155 and 156 of this title. (Feb. 18, 1931, ch. 224, 46 Stat. 1171; June 28, 1940, ch. 439, title II, § 21, 54 Stat. 673.)

RETROACTIVE EFFECT

Section 22 of act June 28, 1940, cited to text, provided that no alien should be deportable by reason of the amendments to this section and section 155 by said act, on account of any act committed prior to the date of enactment of said act.

SEPARABILITY AND SHORT TITLE

Separability clause and short title of act June 28, 1940, cited to text, see note under section 451 of this title.

CROSS REFERENCES

Provisions suspending deportation of an alien where serious economic detriment would result or permitting an alien of good character to depart at his own expense to a country of his choice not to apply to aliens deportable under this section, see section 155 (d) of this title.

§ 157. Deportation of aliens convicted of certain wartime offenses.

Aliens of the following classes, in addition to those for whose expulsion from the United States provision is made in the existing law, shall, upon the warrant of the Attorney General, be taken into his custody and deported in the manner provided in sections 155 and 156 of this title, if the Attorney General, after hearing, finds that such aliens are undesirable residents of the United States, to wit:

(1) All aliens who since August 1, 1914, have been or may hereafter be convicted of any violation or conspiracy to violate any of the following sections, the judgment on such conviction having become final, namely:

(a) Sections 25, 27, 31–39, 98, 130–133, 288, 343–346, 349, 381, 502, 535, 536, 574, 611–633 of Title 18, sections 213, 220–222, 231, 232, 234, 235, 401–408, 601 of Title 22, and sections 31–42, 191, 192–194 of Title 50;

(b) Sections 121–133, 135–143 of Title 50;

(c) Sections 223–226 of Title 22;

(d) Sections 101–103 of Title 50;

(e) Sections 201–211, 213, 214 of Appendix to Title 50;

(f) Section 89 of Title 18;

(g) Sections 1–6, 7–38 of Appendix to Title 50;

(h) Section 6 of Title 18.

(2) All aliens who have been or may hereafter be convicted of any offense against section 25 of Title 18 committed during the period of August 1, 1914, to April 6, 1917, or of a conspiracy occurring within said period to commit an offense under said section 25, or of any offense committed during said period against sections 1–7 of Title 15, in aid of a belligerent in the World War. In every case in which any such alien is ordered expelled or excluded from the United States under the provisions of this section the decision of the Attorney General shall be final. All persons who shall be expelled under any of the provisions of this section shall be excluded from readmission into the United States. (May 10, 1920, ch. 174, §§ 1–3, 41 Stat. 593, 594; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 158. Admission, upon security, of aliens liable to be excluded as public charges or physically disabled.

Any alien liable to be excluded because likely to become a public charge or because of physical disability other than tuberculosis in any form or a loathsome or dangerous contagious disease may, if otherwise admissible, nevertheless be admitted in the discretion of the Attorney General upon the giving of a suitable and proper bond or undertaking, approved by said Attorney General, in such amount and containing such conditions as he may prescribe, to the United States and to all States, Territories, counties, towns, municipalities, and districts thereof, holding the United States and all States, Territories, counties, towns, municipalities, and districts thereof harmless against such alien becoming a public charge. In lieu of such bond, such alien may deposit in cash with the Attorney General such amount as the Attorney General may require, which amount shall be deposited by him in the United States Postal Savings Bank, a receipt therefor to be given the person furnishing said sum, showing the fact and object of its receipt and such other information as said Attorney General may deem advisable. All accruing interest on said deposit during the time same shall be held in the United States Postal Savings Bank shall be paid to the person furnishing the sum for deposit. In the event of such alien becoming a public charge, the Attorney General shall dispose of said deposit in the same manner as if same had been collected under a bond as provided in this section. In the event of the permanent departure from the United States, the naturalization, or the death of such alien, the said sum shall be returned to the person by whom furnished, or to his legal representatives. The admission of such alien shall be a consideration for the giving of such bond, undertaking, or cash deposit. Suit may be brought thereon in the name and by the proper law officers either of the United States Government or of any State, Territory, district, county, town, or municipality in which such alien becomes a public charge. (Feb. 5,

1917, ch. 29, § 21, 39 Stat. 891; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1893, ch. 206, § 7, 27 Stat. 570; Mar. 3, 1903, ch. 1012, § 26, 32 Stat. 1220; Feb. 20, 1907, ch. 1134, § 26, 34 Stat. 907.

§ 159. Temporary detention and admission or deportation, in case of contagious disorder, of wife or minor child of naturalized alien or resident alien.

Whenever an alien shall have been naturalized or shall have taken up his permanent residence in this country, and thereafter shall send for his wife or minor children to join him, and said wife or any of said minor children shall be found to be affected with any contagious disorder, such wife or minor children shall be held, under such regulations as the Attorney General shall prescribe, until it shall be determined whether the disorder will be easily curable or whether they can be permitted to land without danger to other persons; and they shall not be either admitted or deported until such facts have been ascertained; and if it shall be determined that the disorder is easily curable and the husband or father or other responsible person is willing to bear the expense of the treatment, they may be accorded treatment in hospital until cured and then be admitted, or if it shall be determined that they can be permitted to land without danger to other persons, they may, if otherwise admissible, thereupon be admitted. If the person sending for wife or minor children is naturalized, a wife to whom married or a minor child born subsequent to such husband or father's naturalization shall be admitted without detention for treatment in hospital, and with respect to a wife to whom married or a minor child born prior to such husband or father's naturalization the provisions of this section shall be observed, even though such person is unable to pay the expense of treatment, in which case the expense shall be paid from the appropriation for the enforcement of the laws regulating immigration of aliens into the United States. (Feb. 5, 1917, ch. 29, § 22, 39 Stat. 891; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1903, ch. 1012, § 37, 32 Stat. 1221; Feb. 20, 1907, ch. 1134, § 37, 34 Stat. 908.

§ 160. Landing stations for alien passengers transported from Canada or Mexico.

No person, company, or transportation line engaged in carrying alien passengers for hire from Canada or Mexico to the United States, whether by land or water, shall be allowed to land any such passengers in the United States without providing suitable and approved landing stations, conveniently located, at the point or points of entry. The Commissioner of Immigration and Naturalization is hereby authorized and empowered to prescribe the conditions, not inconsistent with law, under which the above-mentioned landing stations shall be deemed suitable within the meaning of this section. Any person, company, or transportation line landing an alien passenger in the United States without compliance with the requirement herein set forth shall be deemed to have violated section 144 of this title, and upon conviction shall be subject to the penalty therein prescribed. (Feb. 5, 1917, ch. 29, § 23, 39 Stat. 892; Ex. Ord. No. 6166, § 14, June 10, 1933.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration". See note preceding section 100 of this title.

§ 161. Interior immigrant stations.

For the purpose of making effective the provisions of section 102 of this title relating to the protection of aliens from fraud and loss, and also the provisions of section 105 of this title relating to the distribution of aliens, the Attorney General shall establish and maintain immigrant stations at such interior places as may be necessary, and, in the discretion of the Attorney General, aliens in transit from ports of landing to such interior stations shall be accompanied by immigrant inspectors. (Feb. 5, 1917, ch. 29, § 23, 39 Stat. 892; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in act Feb. 25, 1913, ch. 73, § 1, 37 Stat. 682.

§ 162. Discrimination in rules and contracts for entry and inspection of aliens.

In prescribing rules and making contracts for the entry and inspection of aliens applying for admission from or through foreign contiguous territory, due care shall be exercised to avoid any discriminatory action in favor of foreign transportation companies transporting to such territory aliens destined to the United States, and all such transportation companies shall be required, as a condition precedent to the inspection or examination under such rules and contracts at the ports of such contiguous territory of aliens brought thereto by them, to submit to and comply with all the requirements of this chapter which would apply were they bringing such aliens directly to seaports of the United States, and no alien applying for admission from foreign contiguous territory shall be permitted to enter the United States unless upon proving that he was brought to such territory by a transportation company which had submitted to and complied with all the requirements of this chapter, or that he entered or has resided in, such territory more than two years prior to the date of his application for admission to the United States. (Feb. 5, 1917, ch. 29, § 23, 39 Stat. 893.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

§ 163. Aiding or assisting anarchists, etc., to enter; penalty.

Any person who knowingly aids or assists any anarchist or any person who believes in or advocates the overthrow by force or violence of the Government of the United States, or who disbelieves in or is opposed to organized government, or all forms of law, or who advocates the assassination of public officials, or who is a member of or affiliated with any organization entertaining or teaching disbelief in or opposition to organized government, or who advocates or teaches the duty, necessity, or propriety of the unlawful assaulting or killing of any officer or officers, either of specific individuals or of officers generally, of the Government of the United States or of any other organized government, because of his or their official character, to enter the United States, or who connives or conspires with any person or persons to allow, procure, or permit any such anarchist or person aforesaid to enter therein, shall be deemed guilty of a felony, and on conviction thereof shall be punished by a fine of not more than $5,000 or by imprisonment for not more than five years, or both.

Any person who knowingly aids or assists any alien who advocates or teaches the unlawful destruction of property to enter the United States shall be deemed guilty of a misdemeanor and on conviction thereof shall be punished by a fine of not more than $1,000, or by imprisonment for not more than six months, or by both such fine and imprisonment. (Feb. 5, 1917, ch. 29, § 28, 39 Stat. 894.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 8, 1903, ch. 1012, § 38, 32 Stat. 1221; Feb. 20, 1907, ch. 1134, § 38, 34 Stat. 908.

§ 164. Jurisdiction of district courts; duties of district attorneys.

The district courts of the United States are invested with full jurisdiction of all causes, civil and crimmal, arising under any of the provisions of this chapter. It shall be the duty of the United States district attorney of the proper district to prosecute every such suit when brought by the United States under this chapter. Such prosecutions or suits may be instituted at any place in the United States at which the violation may occur or at which the person charged with such violation may be found. No suit or proceeding for a violation of the provisions of this chapter shall be settled, compromised, or discontinued without the consent of the court in which it is pending, entered of record, with the reasons therefor. (Feb. 5, 1917, ch. 29, § 25, 39 Stat. 893.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, §§ 2, 13, 26 Stat. 1084, 1086; Mar. 3, 1903, ch. 1012, §§ 27, 29, 32 Stat. 1220; Feb. 20, 1907, ch. 1134, §§ 27, 29, 34 Stat. 907.

FEDERAL RULES OF CIVIL PROCEDURE

Dismissal of actions, see Rule 41, following section 723c of Title 28, Judicial Code and Judiciary.

Preservation of section under Rule 41, see note by Advisory Committee under said Rule 41.

CROSS REFERENCES

Immigration or contract labor laws, jurisdiction of district courts, see section 41 (22) of Title 28, Judicial Code and Judiciary.

§ 165. Signing alien on ship's articles with intent to permit landing in violation of laws.

Any person, including the owner, agent, consignee, or master of any vessel arriving in the United States from any foreign port or place, who shall knowingly sign on the ship's articles, or bring to the United States as one of the crew of such vessel, any alien, with intent to permit such alien to land in the United States in violation of the laws and treaties of the United States regulating the immigration of aliens, or who shall falsely and knowingly represent to the immigration authorities at the port of arrival that any such alien is a bona fide member of the crew, shall be liable to a penalty not exceeding $5,000, for which sum the said vessel shall be liable and may be seized and proceeded against by way of libel in any district court of the United States having jurisdiction of the offense. (Feb. 5, 1917, ch. 29, § 31, 39 Stat. 895.)

§ 166. Landing of excluded seamen prohibited; temporary landing; deportation within three years.

No alien seaman excluded from admission into the United States under the immigration laws and employed on board any vessel arriving in the United States from any place outside thereof, shall be permitted to land in the United States, except temporarily for medical treatment, or pursuant to such regulations as the Attorney General may prescribe for the ultimate departure, removal, or deportation of such alien from the United States. Any alien seaman who shall land in a port of the United States contrary to the provisions of this chapter shall be deemed to be unlawfully in the United States, and shall, at any time within three years thereafter, upon the warrant of the Attorney General, be taken into custody and brought before a board of special inquiry for examination as to his qualifications for admission to the United States, and if not admitted said alien seaman shall be deported at the expense of the appropriation provided in section 156 of this title. (Feb. 5, 1917, ch. 29, § 34, 39 Stat. 896; May 26, 1924, ch. 190, § 19, 43 Stat. 164; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this code, see note under section 150 of this title.

CODIFICATION

First sentence was from act May 26, 1924, cited to text.

Second sentence was from act Feb. 5, 1917, cited to text.

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SHORT TITLE AND POPULAR NAME

Short title and popular name of act May 26, 1924, cited to text, see section 201 of this title and note thereunder.

SIMILAR PROVISIONS

Provisions similar to first sentence were contained in section 32 of act Feb. 5, 1917, cited to text, which was repealed by section 20 (d) of act May 26, 1924, also cited.

§ 167. Control of alien seamen—(a) Detention of seamen on board vessel until after inspection; detention or deportation; penalty; clearance to vessels.

The owner, charterer, agent, consignee, or master of any vessel arriving in the United States from any place outside thereof who fails to detain on board any alien seaman employed on such vessel until the immigration officer in charge at the port of arrival has inspected such seaman (which inspection in all cases shall include a personal physical examination by the medical examiners), or who fails to detain such seaman on board after such inspection or to deport such seaman if required by such immigration officer or the Attorney General to do so, shall pay to the collector of customs of the customs district in which the port of arrival is located the sum of $1,000 for each alien seaman in respect of whom such failure occurs. No vessel shall be granted clearance pending the determination of the liability to the payment of such fine, or while the fine remains unpaid, except that clearance may be granted prior to the determination of such question upon the deposit of a sum sufficient to cover such fine, or of a bond with sufficient surety to secure the payment thereof approved by the collector of customs. The Attorney General may, upon application in writing therefor, mitigate such penalty to not less than $200 for each seaman in respect of whom such failure occurs, upon such terms as the Attorney General in his discretion shall think proper. This section, as amended, shall apply to all penalties arising subsequent to June 5, 1940.

(b) Prima facie evidence of failure to detain or deport.

Proof that an alien seaman did not appear upon the outgoing manifest of the vessel on which he arrived in the United States from any place outside thereof, or that he was reported by the master of such vessel as a deserter, shall be prima facie evidence of a failure to detain or deport after requirement by the immigration officer or the Attorney General.

(c) Deportation; procedure.

If the Attorney General finds that deportation of the alien seaman on the vessel on which he arrived would cause undue hardship to such seaman he may cause him to be deported on another vessel at the expense of the vessel on which he arrived, and such vessel shall not bo granted clearance until such expense has been paid or its payment guaranteed to the satisfaction of the Attorney General. (May 26, 1924, ch. 190, § 20 (a–c), 43 Stat. 164; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Dec. 19, 1944, ch. 608, § 4, 58 Stat. 817.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1944—Subsec. (a) amended by act Dec. 19, 1944, cited to text, which added last two sentences.

SHORT TITLE AND POPULAR NAME

Short title and popular name of act May 26, 1924, cited to text, see section 201 of this title and note thereunder.

SIMILAR PROVISIONS

Act Feb. 5, 1917, ch. 29, § 32, 39 Stat. 895, imposed a penalty for negligent failure to detain on board alien seamen after written notice by the immigration officer in charge at the port of arrival, made the vessel liable for such penalty, and authorized proceedings against her by way of libel.

§ 168. Paying off or discharging excluded aliens employed on vessels; landing to allow reshipping.

It shall be unlawful to pay off or discharge any alien employed on board any vessel arriving in the United States from any foreign port or place, unless duly admitted pursuant to the laws and treaties of the United States regulating the immigration of aliens. In case any such alien intends to reship on board any other vessel bound to any foreign port or place, he shall be allowed to land for the purpose of so reshipping, under such regulations as the Attorney General may prescribe to prevent aliens not admissible under any law, convention, or treaty from remaining permanently in the United States, and may be paid off, discharged, and permitted to remove his effects, anything in such laws or treaties or in this chapter to the contrary notwithstanding, provided due notice of such proposed action be given by the master or the seaman himself to the principal immigration officer in charge at the port of arrival. (Feb. 5, 1917, ch. 29, § 33, 39 Stat. 896; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this code, see note under section 150 of this title.

CODIFICATION

Act Feb. 5, 1917, cited to text, contained in addition to the text set out here, the clause "and be deemed a violation of the preceding section" after the words "It shall be unlawful" in first sentence. This clause was omitted from the section because section 32 of said act Feb. 5, 1917, "the preceding section," referred to in such omitted clause, was repealed by act May 26, 1924, ch. 190, § 20 (d), subsections (a–c) of which repealing section constitute section 167 of this title.

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

CROSS REFERENCES

Bond of master to guaranty observance of provisions of this section, see section 450 of Title 22, Foreign Relations and Intercourse.

§ 169. Employment on passenger vessels of aliens afflicted with idiocy, etc.

It shall be unlawful for any vessel carrying passengers between a port of the United States and a port of a foreign country, upon arrival in the United States, to have on board employed thereon any alien afflicted with idiocy, imbecility, insanity, epilepsy, tuberculosis in any form, or a loathsome or dangerous contagious disease, if it appears to the satisfaction of the Attorney General, from an examination made by a medical officer of the United States Public Health Service, and is so certified by such officer, that any such alien was so afflicted at the time he was shipped or engaged and taken on

board such vessel and that the existence of such affliction might have been detected by means of a competent medical examination at such time; and for every such alien so afflicted on board any such vessel at the time of arrival the owner, agent, consignee, or master thereof shall pay to the collector of customs of the customs district in which the port of arrival is located the sum of $50, and pending departure of the vessel the alien shall be detained and treated in hospital under supervision of immigration officials at the expense of the vessel; and no vessel shall be granted clearance pending the determination of the question of the liability to the payment of such fine and while it remains unpaid; but clearance may be granted prior to the determination of such question upon the deposit of a sum sufficient to cover such fine. Such fine may, in the discretion of the Attorney General, be mitigated or remitted. (Feb. 5, 1917, ch. 29, § 35, 39 Stat. 896; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 170. Treatment in hospitals of alien seamen afflicted with certain diseases.

Alien seamen found on arrival in ports of the United States to be afflicted with any of the disabilities or diseases mentioned in section 169 of this title shall be placed in a hospital designated by the immigration official in charge at the port of arrival and treated, all expenses connected therewith, including burial in the event of death, to be borne by the owner, agent, consignee, or master of the vessel, and not to be deducted from the seamen's wages, and no such vessel shall be granted clearance until such expenses are paid or their payment appropriately guaranteed and the collector of customs so notified by the immigration official in charge. Alien seamen suspected of being afflicted with any such disability or disease may be removed from the vessel on which they arrive to an immigration station or other appropriate place for such observation as will enable the examining surgeons definitely to determine whether or not they are so afflicted, all expenses connected therewith to be borne in the manner hereinbefore prescribed. In cases in which it shall appear to the satisfaction of the immigration and naturalization official in charge that it will not be possible within a reasonable time to effect a cure, the return of the alien seamen shall be enforced on or at the expense of the vessel on which they came, upon such conditions as the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, shall prescribe, to insure that the aliens shall be properly cared for and protected, and that the spread of contagion shall be guarded against. (Dec. 26, 1920, ch. 4, 41 Stat. 1082; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration", and for the substitution of "immigration and naturalization official" for "immigration official"; 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 171. Lists of aliens employed on vessels arriving from foreign ports; reports of aliens illegally landed.

Upon arrival of any vessel in the United States from any foreign port or place it shall be the duty of the owner, agent, consignee, or master thereof to deliver to the principal immigration and naturalization officer in charge of the port of arrival lists containing the names of all aliens employed on such vessel, stating the positions they respectively hold in the ship's company, when and where they were respectively shipped or engaged, and specifying those to be paid off and discharged in the port of arrival; or lists containing so much of such information as the Attorney General shall by regulation prescribe; and after the arrival of any such vessel it shall be the duty of such owner, agent, consignee, or master to report to such immigration and naturalization officer, in writing, as soon as discovered, all cases in which any such alien has illegally landed from the vessel, giving a description of such alien, together with any information likely to lead to his apprehension; and before the departure of any such vessel it shall be the duty of such owner, agent, consignee, or master to deliver to such immigration and naturalization officer a further list containing the names of all alien employees who were not employed thereon at the time of the arrival but who will leave port thereon at the time of her departure, and also the names of those, if any, who have been paid off and discharged, and of those, if any, who have deserted or landed; and in case of the failure of such owner, agent, consignee, or master so to deliver either of the said lists of such aliens arriving and departing, respectively, or so to report such cases of desertion or landing, such owner, agent, consignee, or master shall, if required by the Attorney General, pay to the collector of customs of the customs district in which the port of arrival is located the sum of $10 for each alien concerning whom correct lists are not delivered or a true report is not made as above required. No such vessel shall be granted clearance pending the determination of the question of the liability to the payment of such fine, and, in the event such fine is imposed, while it remains unpaid; nor shall such fine be remitted or refunded. Clearance may be granted prior to the determination of such question upon deposit of a sum sufficient to cover such fine. (Feb. 5, 1917, ch. 29, § 36, 39 Stat. 896; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General of Immigration", and of "immigration and naturalization officer" for "immigration officer"; 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 172. Posting of laws by agents of steamship companies.

All steamship or transportation companies, and other owners of vessels, regularly engaged in trans-

porting alien immigrants to the United States, shall twice a year file a certificate with the Attorney General that they have furnished to be kept conspicuously exposed to view in the office of each of their agents in foreign countries authorized to sell emigrant tickets, a copy of the laws of this country relative to immigration, printed in large letters, in the language of the country where the copy of the law is to be exposed to view, and that they have instructed their agents to call the attention thereto of persons contemplating emigration before selling tickets to them; and in case of the failure for sixty days of any such company or any such owners to file such a certificate, or in case they file a false certificate, they shall pay a fine of not exceeding $500, to be recovered in the proper United States court, and said fine shall also be a lien upon any vessel of said company or owners found within the United States. (Mar. 3, 1893, ch. 206, § 8, 27 Stat. 570; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 173. Definitions; alien; United States; seaman; person.

The word "alien" wherever used in this chapter shall include any person not a native-born or naturalized citizen of the United States; but this definition shall not be held to include citizens of the islands under the jurisdiction of the United States.

The term "United States" shall be construed to mean the United States, and any waters, territory, or other place subject to the jurisdiction thereof, except the Isthmian Canal Zone; but if any alien shall leave the Canal Zone or any insular possession of the United States and attempt to enter any other place under the jurisdiction of the United States, nothing contained in this chapter shall be construed as permitting him to enter under any other conditions than those applicable to all aliens.

The term "seaman" shall include every person signed on the ship's articles and employed in any capacity on board any vessel arriving in the United States from any foreign port or place.

The word "person" shall be construed to import both plural and the singular, as the case may be, and shall include corporations, companies, and associations.

When construing and enforcing the provisions of this chapter, the act, omission, or failure of any director, officer, agent, or employee of any corporation, company, or association acting within the scope of his employment or office shall in every case be deemed to be the act, omission, or failure of such corporation, company, or association, as well as that of the person acting for or in behalf of such corporation, company, or association. (Feb. 5, 1917, ch. 29, §§ 1, 37, 39 Stat. 874, 897; June 2, 1924, ch. 233, 43 Stat. 253.)

REFERENCES IN TEXT

Reference in this section to "this chapter" was originally to act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

CODIFICATION

First three paragraphs were from section 1 of act Feb. 5, 1917, cited to text. Last two paragraphs were from section 37 of that act, also cited.

Act June 2, 1924, cited to text, was authority for deleting, before "citizens of the islands" in the first paragraph, the words "Indians of the United States not taxed or". That act, formerly section 3 of this title and now set out in note under section 601 hereof, declared all Indians born within the territorial limits of the United States to be citizens of the United States.

SIMILAR PROVISIONS

Provisions defining "United States" were contained in acts Mar. 3, 1903, ch. 1012, § 33, 32 Stat. 1221; Feb. 20, 1907, ch. 1134, § 33, 34 Stat. 903.

§ 174. Finality of decisions of immigration officers.

In every case where an alien is excluded from admission into the United States under any law or treaty, the decision of the appropriate immigration officers, if adverse to the admission of such alien, shall be final, unless reversed on appeal to the Attorney General. (Aug. 18, 1894, ch. 301, § 1, 28 Stat. 390; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Similar provisions on this subject were contained in acts Mar. 3, 1891, ch. 551, § 8, 26 Stat. 1085; Mar. 3, 1893, ch. 206, § 5, 27 Stat. 570. Later provisions were contained in acts Mar. 3, 1903, ch. 1012, § 25, 32 Stat. 1220; Feb. 20, 1907, ch. 1134, § 25, 34 Stat. 906. See also section 153 of this title.

CROSS REFERENCES

Board of Special Inquiry's decision to be final unless reversed on appeal to the Attorney General, see section 153 of this title.

§ 175. Application of laws to Philippine Islands.

CODIFICATION

Section, act Feb. 5, 1917, ch. 29, § 1, 39 Stat. 874, which provided that the provisions of this chapter should be enforced in the Philippine Islands by officers of the general government thereof, unless and until superseded by an act passed by the Philippine Legislature and approved by the President of the United States to regulate immigration in the Philippine Islands as authorized in section 1042 of Title 48, is now obsolete in view of the independence of the Philippine Islands proclaimed by the President of the United States in Proc. No. 2695, July 4, 1946, 11 F. R. 7517, 60 Stat. 1352, under direction of section 1240 of Title 48.

§ 176. Disposition of moneys received or paid for expenses of detained aliens.

CODIFICATION

Subject matter of this section, act Mar. 15, 1934, ch. 70, § 1, 48 Stat. 435, and prior appropriation acts, was contained in former section 117 of this title until the repeal of such section 117 by act July 1, 1944, ch. 373, title VII, § 711, 58 Stat. 714 (renumbered by act Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049). See note under said section 117.

§ 177. International conference for regulation of immigration of aliens; special commissioners.

The President of the United States is authorized, in the name of the Government of the United States, to call, in his discretion, an international conference, to assemble at such point as may be agreed upon,

or to send special commissioners to any foreign country, for the purpose of regulating by international agreement, subject to the advice and consent of the Senate of the United States, the immigration of aliens to the United States; of providing for the mental, moral, and physical examination of such aliens by American consuls or other officers of the United States Government at the ports of embarkation, or elsewhere; of securing the assistance of foreign governments in their own territories to prevent the evasion of the laws of the United States governing immigration to the United States; of entering into such international agreements as may be proper to prevent the immigration of aliens who, under the laws of the United States, are or may be excluded from entering the United States, and of regulating any matters pertaining to such immigration. (Feb. 5, 1917, ch. 29, § 29, 39 Stat. 894.)

§ 178. Laws unaffected; effect on repealed laws.

This chapter shall not be construed to repeal, alter, or amend existing laws relating to the immigration or exclusion of Chinese persons or persons of Chinese descent, except as provided in section 155 of this title, nor to repeal, alter, or amend section 1013 of Title 48, nor to repeal, alter, or amend sections 151–162, inclusive, and 171, of Title 46, except as provided in section 147 of this title. Nothing contained in this chapter shall be construed to affect any prosecution, suit, action, or proceedings brought, or any act, thing, or matter, civil or criminal, done or existing on February 5, 1917, except as mentioned in section 155 of this title; but as to all such prosecutions, suits, actions, proceedings, acts, things, or matters, the laws or parts of laws repealed or amended by Act February 5, 1917, chapter 29, are continued in force and effect. (Feb. 5, 1917, ch. 29, § 38, 39 Stat. 897.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act Feb. 5, 1917, cited to text. For distribution of said act in this Code, see note under section 150 of this title.

Section 1013 of Title 48, referred to in the text, was from act Feb. 6, 1905, ch. 453, § 6, 33 Stat. 692. It provided for the administration of the immigration laws of the United States in force in the Philippine Islands by the officers of the general government thereof and for the disposition of moneys collected under said laws. It is now obsolete in view of the independence of the Philippine Islands proclaimed by the President of the United States in Proc. No. 2695, July 4, 1946, 11 F. R. 7517, 60 Stat. 1352, under direction of section 1240 of said Title 48, Territories and Insular Possessions.

REPEAL OF CHINESE EXCLUSION LAWS

Repeal of Chinese Exclusion Laws, see sections 262–297, 299 of this title, and notes thereunder.

REPEALS

Acts expressly repealed by act Feb. 5, 1917, ch. 29, were: act Mar. 3, 1903, ch. 1012, 32 Stat. 1213 (except section 34); act Feb. 20, 1907, ch. 1134, 34 Stat. 898 (except section 34); act Mar. 26, 1910, ch. 128, 36 Stat. 263. Other acts, provisions of which were included in said act Feb. 5, 1917, were: a provision of act Oct. 19, 1888, ch. 1210, § 1, 25 Stat. 566, as amended Apr. 28, 1904, No. 34, 33 Stat. 591; act Apr. 29, 1902, ch. 641, § 3, 32 Stat. 177, as amended Apr. 28, 1904, No. 34, 33 Stat. 591; a provision of act Mar. 4, 1909, ch. 299, § 1, 35 Stat. 969; act Mar. 4, 1909, ch. 305, 35 Stat. 1060; act Feb. 25, 1913, ch. 73, § 1, 37 Stat. 682; a provision of act Oct. 22, 1913, ch. 32, 38 Stat. 226.

§ 179. Blank forms of manifests and crew lists.

The Public Printer is authorized to print for sale to the public by the Superintendent of Public Documents, upon prepayment, additional copies of blank forms of manifests and crew lists to be prescribed by the Attorney General pursuant to the provisions of sections 148–150 and 171 of this title. (May 26, 1924, ch. 190, § 21 (b), 43 Stat. 165; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SHORT TITLE AND POPULAR NAME

Short title and popular name of act May 26, 1924, cited to text, see section 201 of this title and note thereunder.

§ 180. Reentry or attempted reentry of deported alien; penalty; deported seamen as entitled to landing privileges.

(a) If any alien has been arrested and deported in pursuance of law, he shall be excluded from admission to the United States whether such deportation took place before or after March 4, 1929, and if he enters or attempts to enter the United States after the expiration of sixty days after said date, he shall be guilty of a felony and upon conviction thereof shall, unless a different penalty is otherwise expressly provided by law, be punished by imprisonment for not more than two years or by a fine of not more than $1,000, or by both such fine and imprisonment: *Provided*, That this section and sections 136, 154 and 180a–180d of this title shall not apply to any alien arrested and deported before March 4, 1929, in pursuance of law, in whose case prior to his reembarkation at a place outside the United States, or his application in foreign contiguous territory for admission to the United States, and prior to March 4, 1929, the Attorney General has granted such alien permission to reapply for admission.

(b) For the purposes of this section any alien ordered deported (whether before or after March 4, 1929) who has left the United States shall be considered to have been deported in pursuance of law, irrespective of the source from which the expenses of his transportation were defrayed or of the place to which he departed.

(c) An alien subject to exclusion from admission to the United States under this section who is employed upon a vessel arriving in the United States shall not be entitled to any of the landing privileges allowed by law to seamen. (Mar. 4, 1929, ch. 690, § 1 (a–c), 45 Stat. 1551; June 24, 1929, ch. 40, 46 Stat. 41; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

CROSS REFERENCES

Deported aliens allowed to reenter on permission granted by Attorney General notwithstanding this section, see section 181 of this title.

§ 180a. Entry of alien at improper time or place; eluding examination or inspection; misrepresentation and concealment of facts; penalty.

Any alien who after March 4, 1929, enters the United States at any time or place other than as designated by immigration officials or eludes examination or inspection by immigration officials, or obtains entry to the United States by a willfully false or misleading representation or the willful concealment of a material fact, shall be guilty of a misdemeanor and, upon conviction, shall be punished by imprisonment for not more than one year or by a fine of not more than $1,000, or by both such fine and imprisonment. (Mar. 4, 1929, ch. 690, § 2, 45 Stat. 1551.)

CROSS REFERENCES

Deportation for surreptitious entry, see section 155 of this title.

§ 180b. Deportation of alien sentenced to imprisonment.

An alien sentenced to imprisonment shall not be deported under any provision of law until after the termination of the imprisonment. For the purposes of this section the imprisonment shall be considered as terminated upon the release of the alien from confinement, whether or not he is subject to rearrest or further confinement in respect of the same offense. (Mar. 4, 1929, ch. 690, § 3, 45 Stat. 1552.)

CROSS REFERENCES

Termination of imprisonment prior to deportation, see section 155 (a) of this title.

§ 180c. Information supplied Attorney General by Clerk of Court concerning convicted alien.

Upon the final conviction of any alien of any offense under sections 136, 154, and 180–180d of this title in any court of record it shall be the duty of the clerk of the court to notify the Attorney General, giving the name of the alien convicted, the nature of the offense of which convicted, the sentence imposed, and, if imprisoned, the place of imprisonment, and, if known, the place of birth of such alien, his nationality, and the time when and place where he entered the United States. (Mar. 4, 1929, ch. 690, § 4, 45 Stat. 1552; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 180d. Definition of terms used in sections 180–180d.

Terms defined in sections 203–205 and 224 of this title, when used in sections 136, 154 and 180–180d of this title, have the meaning assigned to such terms in said sections. (Mar. 4, 1929, ch. 690, § 5, 45 Stat. 1552.)

§ 181. Deported aliens; reentry on permission granted by Attorney General.

Despite the provisions of subdivision (a) of section 180 of this title, an alien, if otherwise admissible, shall not be excluded from admission to the United States under the provisions of such subdivision after the expiration of one year after the date of deportation if, prior to his reembarkation at a place outside of the United States, or prior to his application in foreign contiguous territory for admission to the United States, the Attorney General, in his discretion, shall have granted such alien permission to reapply for admission. (May 25, 1932, ch. 203, § 7, 47 Stat. 166; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SUBCHAPTER III.—QUOTA AND NONQUOTA IMMIGRANTS

§ 201. Short title.

The act of May 26, 1924, ch. 190, 43 Stat. 153, may be cited as the "Immigration Act of 1924." (May 26, 1924, ch. 190, § 1, 43 Stat. 153.)

REFERENCES IN TEXT

The Immigration Act of 1924, to which reference is made in this section, was incorporated in the code as sections 145, 146, 166, 167, 179, 201–204, 205–212, 213, 214–226, and 229 of this title.

EFFECTIVE DATE

Section 31 of act May 26, 1924, cited to text, provided as follows:

"(a) Sections 2, 8, 13, 14, 15, and 16, and subdivision (f) of section 11 [sections 202, 208, 213, 214, 215, 216, and 211 (f) of this title, respectively], shall take effect on July 1, 1924, except that immigration visas and permits may be issued prior to that date, which shall not be valid for admission to the United States before July 1, 1924. In the case of quota immigrants of any nationality, the number of immigration visas to be issued prior to July 1, 1924, shall not be in excess of 10 per centum of the quota for such nationality, and the number of immigration visas so issued shall be deducted from the number which may be issued during the month of July 1924. In the case of immigration visas issued before July 1, 1924, the four-month period referred to in subdivision (c) of section 2 [section 202 (c) of this title] shall begin to run on July 1, 1924, instead of at the time of the issuance of the immigration visa.

"(b) The remainder of this Act shall take effect upon its enactment.

"(c) If any alien arrives in the United States before July 1, 1924, his right to admission shall be determined without regard to the provisions of this Act, except section 23 [section 221 of this title]."

POPULAR NAME

Act May 26, 1924, cited to text, is popularly known as the "Johnson Act".

SIMILAR PROVISIONS

Provisions limiting the admission of aliens to fixed percentage of foreign born persons of such nationality resident in the United States in 1910 were contained in act May 19, 1921, ch. 8, 42 Stat. 5, as amended and extended by Res. May 11, 1922, ch. 187, 42 Stat. 540.

§ 202. Immigration visas—(a) Authority to issue; contents.

A consular officer upon the application of any immigrant (as defined in section 203 of this title) may (under the conditions hereinafter prescribed and subject to the limitations prescribed in this chapter or regulations made thereunder as to the number of immigration visas which may be issued by such officer) issue to such immigrant an immigration visa which shall consist of one copy of the application provided for in section 207 of this title, visaed by such consular officer. Such visa shall specify (1) the nationality of the immigrant; (2) whether he is

a quota immigrant (as defined in section 205 of this title) or a non-quota immigrant (as defined in section 204 of this title); (3) the date on which the validity of the immigration visa shall expire; and (4) such additional information necessary to the proper enforcement of the immigration laws and the naturalization laws as may be by regulations prescribed.

(b) Photograph of immigrant.

The immigrant shall furnish two copies of his photograph to the consular officer. One copy shall be permanently attached by the consular officer to the immigration visa and the other copy shall be disposed of as may be by regulations prescribed.

(c) Period of validity of visa.

The validity of an immigration visa shall expire at the end of such period, specified in the immigration visa, not exceeding four months, as shall be by regulations prescribed. In the case of an immigrant arriving in the United States by water, or arriving by water in foreign contiguous territory on a continuous voyage to the United States, if the vessel, before the expiration of the validity of his immigration visa, departed from the last port outside the United States and outside foreign contiguous territory at which the immigrant embarked, and if the immigrant proceeds on a continuous voyage to the United States, then, regardless of the time of his arrival in the United States, the validity of his immigration visa shall not be considered to have expired.

(d) Notation on passport of number of visa.

If an immigrant is required by any law, or regulations or orders made pursuant to law, to secure the visa of his passport by a consular officer before being permitted to enter the United States, such immigrant shall not be required to secure any other visa of his passport than the immigration visa issued under this chapter, but a record of the number and date of his immigration visa shall be noted on his passport without charge therefor. This subdivision shall not apply to an immigrant who is relieved, under subdivision (b) of section 213 of this title, from obtaining an immigration visa.

(e) Entry on manifests or passenger lists of data concerning visas; surrender of visas at ports of inspection and transmittal to Department of Justice.

The manifest or list of passengers required by the immigration laws shall contain a place for entering thereon the date, place of issuance, and number of the immigration visa of each immigrant. The immigrant shall surrender his immigration visa to the immigration officer at the port of inspection, who shall at the time of inspection indorse on the immigration visa the date, the port of entry, and the name of the vessel, if any, on which the immigrant arrived. The immigration visa shall be transmitted forthwith by the immigration and naturalization officer in charge at the port of inspection to the Department of Justice under regulations prescribed by the Attorney General.

(f) Visas not to be issued, when.

No immigration visa shall be issued to an immigrant if it appears to the consular officer, from statements in the application, or in the papers submitted therewith, that the immigrant is inadmissible to the United States under the immigration laws, nor shall such immigration visa be issued if the application fails to comply with the provisions of this chapter, nor shall such immigration visa be issued if the consular officer knows or has reason to believe that the immigrant is inadmissible to the United States under the immigration laws.

(g) Visas not to entitle inadmissible aliens to entry.

Nothing in this chapter shall be construed to entitle an immigrant, to whom an immigration visa has been issued, to enter the United States, if, upon arrival in the United States, he is found to be inadmissible to the United States under the immigration laws. The substance of this subdivision shall be printed conspicuously upon every immigration visa.

(h) Fee for visa.

A fee of $9 shall be charged for the issuance of each immigration visa, which shall be covered into the Treasury as miscellaneous receipts.

(i) Reduction or abolition of visa fees.

Notwithstanding existing law fixing the fees to be collected for visas of passports of aliens and for executing applications for such visas, the President is authorized, to the extent consistent with the public interest, to reduce such fees or to abolish them altogether, in the case of any class of aliens desiring to visit the United States who are not "immigrants" as defined in this chapter, and who are citizens or subjects of countries which grant similar privileges to citizens of the United States of a similar class visiting such countries. (May 26, 1924, ch. 190, § 2, 43 Stat. 153; Feb. 25, 1925, ch. 316, 43 Stat. 976; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

Subds. (a)–(h) were from act May 26, 1924, cited to text. Subd. (i) was from act Feb. 25, 1925, also cited. Ex. Ord. No. 6166, cited to text, is authority for the substitution of "immigration and naturalization officer" for "immigration officer" in the last sentence of subd. (e); and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" and "Department of Justice" for "Secretary of Labor" and "Department of Labor", respectively. See note preceding section 100 of this title.

EFFECTIVE DATE

Effective date of this section, see note under section 201 of this title.

§ 203. Immigrant defined.

When used in this chapter the term "immigrant" means any alien departing from any place outside the United States destined for the United States, except (1) an accredited official of a foreign government recognized by the Government of the United States, his family, attendants, servants, and employees, (2) an alien visiting the United States temporarily as a tourist or temporarily for business

or pleasure, (3) an alien in continuous transit through the United States, (4) an alien lawfully admitted to the United States who later goes in transit from one part of the United States to another through foreign contiguous territory, (5) a bona fide alien seaman serving as such on a vessel arriving at a port of the United States and seeking to enter temporarily the United States solely in the pursuit of his calling as a seaman, and (6) an alien entitled to enter the United States solely to carry on trade between the United States and the foreign state of which he is a national under and in pursuance of the provisions of a treaty of commerce and navigation, and his wife, and his unmarried children under twenty-one years of age, if accompanying or following to join him, and (7) a representative of a foreign government in or to an international organization entitled to enjoy privileges, exemptions, and immunities as an international organizatlon under this section and section 215 of this title, sections 288–288f of Title 22, sections 116, 1426, 1607, 1621, 3466, 3469, 3475, and 3797 of Title 26, and section 409 of Title 42, or an alien officer or employee of such an international organization, and the family, attendants, servants, and employees of such a representative, officer, or employee. (May 26, 1924, ch. 190, § 3, 43 Stat. 154; July 6, 1932, ch. 434, 47 Stat. 607; July 1, 1940, ch. 502, § 1, 54 Stat. 711; Dec. 29, 1945, ch. 652, title I, § 7 (c), 59 Stat. 672.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

AMENDMENTS

1945—Act Dec. 29, 1945, cited to text, amended section by striking the period following "to join him" and adding ", and (7) * * * officer, or employee."

SIMILAR PROVISIONS

Provisions on this subject were contained in acts May 19, 1921, ch. 8, § 2, 42 Stat. 5; May 11, 1922, ch. 187, § 2, 42 Stat. 540.

§ 204. Nonquota immigrant defined.

When used in this chapter the term "nonquota immigrant" means—

(a) An immigrant who is the unmarried child under twenty-one years of age, or the wife, or the husband of a citizen of the United States: *Provided,* That the marriage shall have occurred prior to issuance of visa and, in the case of husbands of citizens, prior to July 1, 1932.

(b) An immigrant previously lawfully admitted to the United States, who is returning from a temporary visit abroad;

(c) An immigrant who was born in the Dominion of Canada, Newfoundland, the Republic of Mexico, the Republic of Cuba, the Republic of Haiti, the Dominican Republic, the Canal Zone, or an independent country of Central or South America, and his wife, and his unmarried children under eighteen years of age, if accompanying or following to join him;

(d) An immigrant who continuously for at least two years immediately preceding the time of his application for admission to the United States has been, and who seeks to enter the United States solely for the purpose of, carrying on the vocation of minister of any religious denomination, or professor of a college, academy, seminary, or university; and his wife, and his unmarried children under eighteen years of age, if accompanying or following to join him; or an immigrant arriving in the United States before July 1, 1927, who is the wife, or the unmarried child under eighteen years of age, of an alien resident of the United States who entered the United States prior to July 1, 1924, and who continuously for at least two years immediately preceding the time of his admission to the United States for permanent residence was, and who entered the United States solely for the purpose of carrying on the vocation of minister of any religious denomination or professor of a college, academy, seminary, or university, if such immigrant is following to join such alien;

(e) An immigrant who is a bona fide student at least fifteen years of age and who seeks to enter the United States solely for the purpose of study at an accredited school, college, academy, seminary, or university, particularly designated by him and approved by the Attorney General, which shall have agreed to report to the Attorney General the termination of attendance of each immigrant student, and if any such institution of learning fails to make such reports promptly the approval shall be withdrawn; or

(f) A woman who was a citizen of the United States and lost her citizenship by reason of her marriage to an alien, or the loss of United States citizenship by her husband, or by marriage to an alien and residence in a foreign country. (May 26, 1924, ch. 190, § 4, 43 Stat. 155; July 3, 1926, ch. 738, § 1, 44 Stat. 812; May 29, 1928, ch. 914, §§ 1, 2, 45 Stat. 1009; July 3, 1930, ch. 835, § 3, 46 Stat. 854; July 11, 1932, ch. 471, § 1, 47 Stat. 656; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Somewhat similar provisions were contained in acts May 19, 1921, ch. 8, § 2 (d), 42 Stat. 6; Res. May 11, 1922, ch. 187, § 1, 42 Stat. 540.

WIFE OR CHILD OF MINISTER OR PROFESSOR

Section 2 of act July 3, 1926, cited to text, section 1 of which amended subd. (d) of this section, provided as follows: "Sec. 2. Despite the provisions of the Immigration Act of 1924 [sections 145, 146, 166, 167, 179, 201–204, 205–212, 213, 214–226, and 229 of this title], the Secretary of Labor is authorized to admit to the United States for permanent residence any otherwise admissible alien who (1) is the wife or the unmarried child under eighteen years of age of an alien resident of the United States who entered the United States prior to July 1, 1924, and who continuously for at least two years immediately preceding the time of his admission to the United States for permanent residence was, and who entered the United States solely for the purpose of, carrying on the vocation of minister of any religious denomination or professor

of a college, academy, seminary, or university, and (2) who arrived at a United States port of entry between May 26, 1924, and July 1, 1924, and were thereafter temporarily admitted."

§§ 204a, 204b. Native of Virgin Islands residing in foreign countries.

CODIFICATION

Sections related to natives of the Virgin Islands residing in foreign countries on June 22, 1932, and were based upon act June 28, 1932, ch. 283, §§ 1, 2, 47 Stat. 336. Former section 204b of this title provided that section 204a should not apply after June 28, 1934.

§ 204c. Same; deportation as public charge.

An alien admitted to the United States under former section 204a of this title, relating to the immigration of natives of the Virgin Islands of the United States who were residing in foreign countries on June 28, 1932, shall not be subject to deportation on the ground that he has become a public charge. (June 28, 1932, ch. 283, § 3, 47 Stat. 336.)

§ 204d. Same; definitions.

Terms defined in sections 203, 204, 205, and 224 of this title shall, when used in sections 5b and 204c of this title, have the meaning assigned to such terms in said sections 203, 204, 205, and 224. (June 28, 1932, ch. 283, § 4, 47 Stat. 336.)

REFERENCES IN TEXT

Former section 5b of this title, referred to in the text of this section, was affected by the Nationality Act of 1940, section 501 et seq. of this title, and is now set out as a note under section 601 of this title.

§ 205. Quota immigrant defined.

When used in this chapter the term "quota immigrant" means any immigrant who is not a nonquota immigrant. An alien who is not particularly specified in this chapter as a nonquota immigrant or a nonimmigrant shall not be admitted as a nonquota immigrant or a nonimmigrant by reason of relationship to any individual who is so specified or by reason of being excepted from the operation of any other law regulating or forbidding immigration. (May 26, 1924, ch. 190, § 5, 43 Stat. 155.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

§ 206. Enumeration of preferences within quotas.

(a) Immigration visas to quota immigrants shall be issued in each fiscal year as follows:

(1) Fifty per centum of the quota of each nationality for such year shall be made available in such year for the issuance of immigration visas to the following classes of immigrants, without priority of preference as between such classes;

(A) Quota immigrants who are the fathers or the mothers of citizens of the United States who are twenty-one years of age or over or who are the husbands of citizens of the United States by marriages occurring on or after July 1, 1932; and (B) in the case of any nationality the quota for which is three hundred or more, quota immigrants who are skilled in agriculture, and the wives, and the dependent children under the age of eighteen years, of such immigrants skilled in agriculture, if accompanying or following to join them.

(2) The remainder of the quota of each nationality for such year, plus any portion of the 50 per centum referred to in paragraph (1) not required in such year for the issuance of immigration visas to the classes specified in such paragraph, shall be made available in such year for the issuance of immigration visas to quota immigrants of such nationality who are the unmarried children under twenty-one years of age, or the wives, of alien residents of the United States who are lawfully admitted to the United States for permanent residence.

(3) Any portion of the quota of each nationality for such year not required for the issuance of immigration visas to the classes specified in paragraphs (1) and (2) shall be made available in such year for the issuance of immigration visas to other quota immigrants of such nationality.

(b) The preference provided in paragraphs (1) and (2) of subdivision (a) shall, in the case of quota immigrants of any nationality, be given in the calendar month in which the right to preference is established, if the number of immigration visas which may be issued in such month to quota immigrants of such nationality has not already been issued; otherwise, in the next calendar month. (May 26, 1924, ch. 190, § 6, 43 Stat. 155; May 29, 1928, ch. 914, § 3, 45 Stat. 1009; July 11, 1932, ch. 471, § 2, 47 Stat. 656.)

SIMILAR PROVISIONS

Provisions on this subject were contained in acts May 19, 1921, ch. 8, § 2, 42 Stat. 5; May 11, 1922, ch. 187, § 2, 42 Stat. 540.

§ 207. Applications for visas—(a) Duplicate applications; form.

Every immigrant applying for an immigration visa shall make application therefor in duplicate in such form as shall be by regulations prescribed.

(b) Contents.

In the application the immigrant shall state (1) the immigrant's full and true name; age, sex, and race; the date and place of birth; places of residence for the five years immediately preceding his application; whether married or single, and the names and places of residence of wife or husband and minor children, if any; calling or occupation; personal description (including height, complexion, color of hair and eyes, and marks of identification); ability to speak, read, and write; names and addresses of parents, and if neither parent living, then the name and address of his nearest relative in the country from which he comes; port of entry into the United States; final destination, if any, beyond the port of entry; whether he has a ticket through to such final destination; whether going to join a relative or friend, and, if so, what relative or friend and his name and complete address; the purpose for which he is going to the United States; the length of time he intends to remain in the United States; whether or not he intends to abide in the United States permanently; whether ever in prison or almshouse; whether he or either of his parents has ever been in an institution or hospital for the care and treatment of the insane; (2) if he claims to be a nonquota immigrant, the

facts on which he bases such claim; and (3) such additional information necessary to the proper enforcement of the immigration laws and the naturalization laws, as may be by regulations prescribed.

(c) Copies of dossier and other records.

The immigrant shall furnish, if available, to the consular officer, with his application, two copies of his "dossier" and prison record and military record, two certified copies of his birth certificate, and two copies of all other available public records concerning him kept by the Government to which he owes allegiance. One copy of the documents so furnished shall be permanently attached to each copy of the application and become a part thereof. An immigrant having an unexpired permit issued under the provisions of section 210 of this title shall not be subject to this subdivision.

(d) Statement as to membership in classes of aliens excluded.

In the application the immigrant shall also state (to such extent as shall be by regulations prescribed) whether or not he is a member of each class of individuals excluded from admission to the United States under the immigration laws, and such classes shall be stated on the blank in such form as shall be by regulations prescribed, and the immigrant shall answer separately as to each class.

(e) Statement as to exemption from exclusion.

If the immigrant is unable to state that he does not come within any of the excluded classes, but claims to be for any legal reason exempt from exclusion, he shall state fully in the application the grounds for such alleged exemption.

(f) Signature to and verification of application; one copy to be immigration visa when visaed; disposition of other copy.

Each copy of the application shall be signed by the immigrant in the presence of the consular officer and verified by the oath of the immigrant administered by the consular officer. One copy of the application, when visaed by the consular officer, shall become the immigration visa, and the other copy shall be disposed of as may be by regulations prescribed.

(g) Verification of application by immigrant under age of eighteen.

In the case of an immigrant under eighteen years of age the application may be made and verified by such individual as shall be by regulations prescribed.

(h) Fee for furnishing and verification of application.

A fee of $1 shall be charged for the furnishing and verification of each application, which shall include the furnishing and verification of the duplicate, and shall be covered into the Treasury as miscellaneous receipts. (May 26, 1924, ch. 190, § 7, 43 Stat. 156.)

§ 208. Nonquota immigration visas; when and how issued.

A consular officer may, subject to the limitations provided in sections 202 and 209 of this title, issue an immigration visa to a nonquota immigrant as such upon satisfactory proof, under regulations prescribed under this chapter, that the applicant is entitled to be regarded as a nonquota immigrant. (May 26, 1924, ch. 190, § 8, 43 Stat. 157.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

EFFECTIVE DATE

Effective date of this section, see note under section 201 of this title.

§ 209. Visas of nonquota and preferred immigrants— (a) Authority to issue.

In case of any immigrant claiming in his application for an immigration visa to be a nonquota immigrant by reason of relationship under the provisions of subdivision (a) of section 204 of this title, or to be entitled to preference by reason of relationship to a citizen of the United States under the provisions of section 206 of this title, the consular officer shall not issue such immigration visa or grant such preference until he has been authorized to do so as hereinafter in this section provided.

(b) Persons entitled to; petition for; form and contents.

Any citizen of the United States claiming that any immigrant is his relative, and that such immigrant is properly admissible to the United States as a nonquota immigrant under the provisions of subdivision (a) of section 204 of this title or is entitled to preference as a relative under section 206 of this title, may file with the Commissioner of Immigration and Naturalization a petition in such form as may be by regulations prescribed, stating (1) the petitioner's name and address; (2) if a citizen by birth, the date and place of his birth; (3) if a naturalized citizen, the date and place of his admission to citizenship and the number of his certificate, if any; (4) the name and address of his employer or the address of his place of business or occupation if he is not an employee; (5) the degree of the relationship of the immigrant for whom such petition is made, and the names of all the places where such immigrant has resided prior to and at the time when the petition is filed; (6) that the petitioner is able to and will support the immigrant if necessary to prevent such immigrant from becoming a public charge; and (7) such additional information necessary to the proper enforcement of the immigration laws and the naturalization laws as may be by regulations prescribed.

(c) Verification of petition; documentary evidence accompanying.

The petition shall be made under oath administered by any individual having power to administer oaths, if executed in the United States, but, if executed outside the United States, administered by a consular officer. The petition shall be supported by any documentary evidence required by regulations prescribed under this chapter. Application may be made in the same petition for admission of more than one individual.

(d) Supporting statements accompanying.

The petition shall be accompanied by the statements of two or more responsible citizens of the United States, to whom the petitioner has been per-

sonally known for at least one year, that to the best of their knowledge and belief the statements made in the petition are true and that the petitioner is a responsible individual able to support the immigrant or immigrants for whose admission application is made. These statements shall be attested in the same way as the petition.

(e) Action of Commissioner, Attorney General, and Secretary of State.

If the Commissioner of Immigration and Naturalization finds the facts stated in the petition to be true, and that the immigrant in respect of whom the petition is made is entitled to be admitted to the United States as a nonquota immigrant under subdivision (a) of section 204 of this title or is entitled to preference as a relative under section 206 of this title, he shall, with the approval of the Attorney General, inform the Secretary of State of his decision, and the Secretary of State shall then authorize the consular officer with whom the application for the immigration visa has been filed to issue the immigration visa or grant the preference.

(f) Effect on rights of nonquota immigrants.

Nothing in this section shall be construed to entitle an immigrant, in respect of whom a petition under this section is granted, either to enter the United States as a nonquota immigrant if, upon arrival in the United States, he is found not to be a nonquota immigrant, or to enter the United States as a preference-quota immigrant if, upon arrival in the United States, he is found not to be a preference-quota immigrant. (May 26, 1924, ch. 190, § 9, 43 Stat. 157; Ex. Ord. No. 6166, § 14, June 10, 1933; May 14, 1937, ch. 182, § 1, 50 Stat. 164; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act", meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General"; and 1940 Reorg. Plan No. V, cited te text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 210. Reentry permits—(a) Persons entitled to; application; form and contents; verification; photograph accompanying.

Any alien about to depart temporarily from the United States may make application to the Commissioner of Immigration and Naturalization for a permit to reenter the United States, stating the length of his intended absence, and the reasons therefor. Such application shall be made under oath, and shall be in such form and contain such information as may be by regulations prescribed, and shall be accompanied by two copies of the applicant's photograph.

(b) Issue by Commissioner with approval of Attorney General; life of permit; form and contents of permit; photograph attached.

If the Commissioner of Immigration and Naturalization finds that the alien has been legally admitted to the United States, and that the application is made in good faith, he shall, with the approval of the Attorney General, issue the permit, specifying therein the length of time, not exceeding one year, during which it shall be valid. The permit shall be in such form as shall be by regulations prescribed and shall have permanently attached thereto the photograph of the alien to whom issued, together with such other matter as may be deemed necessary for the complete identification of the alien.

(c) Extension of life of permit.

On good cause shown the validity of the permit may be extended for such period or periods, not exceeding six months each, and under such conditions, as shall be by regulations prescribed.

(d) Fee for permit.

For the issuance of the permit, and for each extension thereof, there shall be paid a fee of $3, which shall be covered into the Treasury as miscellaneous receipts.

(e) Surrender of permit on return to United States.

Upon the return of the alien to the United States the permit shall be surrendered to the immigration officer at the port of inspection.

(f) Effect of permit on rights of alien.

A permit issued under this section shall have no effect under the immigration laws, except to show that the alien to whom it is issued is returning from a temporary visit abroad; but nothing in this section shall be construed as making such permit the exclusive means of establishing that the alien is so returning. (May 26, 1924, ch. 190, § 10, 43 Stat. 158; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General"; and 1940 Reorg Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 211. Immigration quotas; determination of national origin—(a) Annual quota based on nationality; national origin; minimum quota.

The annual quota of any nationality shall be 2 per centum of the number of foreign-born individuals of such nationality resident in continental United States as determined by the United States census of 1890, but the minimum quota of any nationality shall be one hundred.

(b) Annual quota for fiscal year beginning July 1, 1929; minimum quota.

The annual quota of any nationality for the fiscal year beginning July 1, 1929, and for each fiscal year thereafter, shall be a number which bears the same ratio to one hundred and fifty thousand as the number of inhabitants in continental United States in 1920 having that national origin (ascertained as provided in this section) bears to the number of inhabitants in continental United States in 1920, but the minimum quota of any nationality shall be one hundred.

(c) Determination of national origin.

For the purpose of subdivision (b) national origin shall be ascertained by determining as nearly as

may be, in respect of each geographical area which under section 212 of this title is to be treated as a separate country (except the geographical areas specified in subdivision (c) of section 204 of this title), the number of inhabitants in continental United States in 1920 whose origin by birth or ancestry is attributable to such geographical area. Such determination shall not be made by tracing the ancestors or descendants of particular individuals, but shall be based upon statistics of immigration and emigration, together with rates of increase of population as shown by successive decennial United States censuses, and such other data as may be found to be reliable.

(d) Inhabitants in continental United States in 1920.

For the purpose of subdivisions (b) and (c) of this section the term "inhabitants in continental United States in 1920" does not include (1) immigrants from the geographical areas specified in subdivision (c) of section 204 of this title or their descendants, (2) aliens ineligible to citizenship or their descendants, (3) the descendants of slave immigrants, or (4) the descendants of American aborigines.

(e) Determination of national origin; by whom made; procedure; presidential proclamation of quotas to be made on or before April 1, 1929.

The determination provided for in subdivision (c) of this section shall be made by the Secretary of State, the Secretary of Commerce, and the Attorney General, jointly. In making such determination such officials may call for information and expert assistance from the Bureau of the Census. Such officials shall, jointly, report to the President the quota of each nationality, determined as provided in subdivision (b), and the President shall proclaim and make known the quotas so reported. Such proclamation shall be made on or before April 1, 1929. If the proclamation is not made on or before such date, quotas proclaimed therein shall not be in effect for any fiscal year beginning before the expiration of ninety days after the date of the proclamation. After the making of a proclamation under this subdivision the quotas proclaimed therein shall continue with the same effect as if specifically stated herein, and shall be final and conclusive for every purpose except (1) insofar as it is made to appear to the satisfaction of such officials and proclaimed by the President, that an error of fact has occurred in such determination or in such proclamation, or (2) in the case provided for in subdivision (c) of section 212 of this title. If for any reason quotas proclaimed under this subdivision are not in effect for any fiscal year, quotas for such year shall be determined under subdivision (a) of this section.

(f) Immigration visas limited to quotas; monthly issue.

There shall be issued to quota immigrants of any nationality (1) no more immigration visas in any fiscal year than the quota for such nationality, and (2) in any calendar month of any fiscal year no more immigration visas than 10 per centum of the quota for such nationality, except that if such quota is less than 300 the number to be issued in any calendar month shall be prescribed by the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, but the total number to be issued during the fiscal year shall not be in excess of the quota for such nationality.

(g) Issue of visa to nonquota immigrant as quota immigrant.

Nothing in this chapter shall prevent the issuance (without increasing the total number of immigration visas which may be issued) of an immigration visa to an immigrant as a quota immigrant even though he is a nonquota immigrant. (May 26, 1924, ch. 190, § 11, 43 Stat. 159; Mar. 4, 1927, ch. 514, 44 Stat. 1455; Mar. 31, 1928, ch. 306, 45 Stat. 400; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

EFFECTIVE DATE

Effective date of subsec. (f) of this section, see note under section 201 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts May 19, 1921, ch. 8, § 2, 42 Stat. 5; May 11, 1922, ch. 187, § 2, 42 Stat. 540.

PROC. No. 2283. IMMIGRATION QUOTAS

Proc. No. 2283, Apr. 28, 1938, 52 Stat. 1544, 1545, provided:

Whereas the Acting Secretary of State, the Secretary of Commerce, and the Secretary of Labor have reported to the President that pursuant to the duty imposed and the authority conferred upon them in and by sections 11 and 12 of the Immigration Act approved May 26, 1924 (43 Stat. 161) [this section and section 212 of this title], they jointly have made the revision provided for in section 12 of the said act and have fixed the quota of each respective nationality in accordance therewith to be as hereinafter set forth:

Now, therefore, I, Franklin D. Roosevelt, President of the United States of America, acting under and by virtue of the power in me vested by the aforesaid act of Congress, do hereby proclaim and make known that the annual quota of each nationality effective for the remainder of the fiscal year ending June 30, 1938, and for each fiscal year thereafter, has been determined in accordance with the law to be, and shall be, as follows:

NATIONAL ORIGIN IMMIGRATION QUOTAS

Country or Area	*Quota*
Afghanistan	100
Albania	100
Andorra	100
Arabian peninsula (except Muscat, Aden Settlement and Protectorate, and Saudi Arabia)	100
Australia (including Tasmania, Papua, and all islands appertaining to Australia)	100
Belgium	1,304
Bhutan	100
Bulgaria	100
Cameroons (British mandate)	100
Cameroun (French mandate)	100
China	100
Czechoslovakia	2,874
Danzig, Free City of	100
Denmark	1,181
Egypt	100
Estonia	116

NATIONAL ORIGIN IMMIGRATION QUOTAS—continued

Country or Area	*Quota*
Ethiopia (Abyssinia)	100
Finland	569
France	3,086
Germany	27,370
Great Britain and Northern Ireland	65,721
Greece	307
Hungary	869
Iceland	100
India	100
Iran	100
Iraq	100
Ireland (Eire)	17,853
Italy	5,802
Japan	100
Latvia	236
Liberia	100
Liechtenstein	100
Lithuania	386
Luxemburg	100
Monaco	100
Morocco (French and Spanish zones and Tangier)	100
Muscat (Oman)	100
Nauru (British mandate)	100
Nepal	100
Netherlands	3,153
New Guinea, Territory of (including appertaining islands) (Australian mandate)	100
New Zealand	100
Norway	2,377
Palestine (with Trans-Jordan) (British mandate)	100
Poland	6,524
Portugal	440
Ruanda and Urundi (Belgian mandate)	100
Rumania	377
Samoa, Western (mandate of New Zealand)	100
San Marino	100
Saudi Arabia	100
Siam	100
South Africa, Union of	100
South-West Africa (mandate of the Union of South Africa)	100
Spain	252
Sweden	3,314
Switzerland	1,707
Syria and the Lebanon (French mandate)	123
Tanganyika Territory (British mandate)	100
Togoland (British mandate)	100
Togoland (French mandate)	100
Turkey	226
Union of Soviet Socialist Republics	2,712
Yap and other Pacific islands under Japanese mandate	100
Yugoslavia	845

The immigration quotas assigned to the various countries and quota areas are designed solely for purposes of compliance with the pertinent provisions of the Immigration Act of 1924 and are not to be regarded as having any significance extraneous to this object.

This proclamation shall take effect immediately, and shall supersede Proclamation No. 2048 of June 16, 1933.

PROC. NO. 2603. CHINESE QUOTA

Proc. No. 2603, Feb. 9, 1944, 9 F. R. 1587, 58 Stat. 1125, provided:

Whereas the Secretary of State, the Secretary of Commerce, and the Attorney General have reported to the President that pursuant to the authority conferred and the duty imposed upon them by sections 11 and 12 of the Immigration Act of 1924 approved May 26, 1924 (43 Stat. 161), as amended [this section and section 212 of this title], and in effectuation of the provisions of the act of December 17, 1943, entitled "An Act to repeal the Chinese Exclusion Acts, to establish quotas, and for other purposes" (Public Law 199, 78th Cong., 1st sess.) [ch. 344, 57 Stat. 600], they jointly have fixed the quota for Chinese as hereinafter set forth:

Now, therefore, I, Franklin D. Roosevelt, President of the United States of America, acting under and by virtue of the power in me vested by the aforesaid acts of Congress, do hereby proclaim and make known that the annual quota for Chinese effective for the remainder of the fiscal year ending June 30, 1944, and for each fiscal year thereafter, has been determined in accordance with the law to be, and shall be, 105.

The immigration quota for Chinese is designed solely for the purpose of compliance with the pertinent provisions of the two aforesaid acts, and is not to be regarded as having any significance extraneous to this purpose.

The Chinese quota established by this proclamation does not affect the quota for China established by Proclamation No. 2283 of April 28, 1938 [52 Stat. 1544].

PROC. NO. 2666. AUSTRIAN AND GERMAN QUOTAS

Proc. No. 2666, Sept. 28, 1945, 10 F. R. 12301, 59 Stat. 883, provided:

Whereas the Secretary of State, the Secretary of Commerce, and the Attorney General have reported to the President that pursuant to the duty imposed and the authority conferred upon them in and by sections 11 and 12 of the Immigration Act approved May 26, 1924 (43 Stat. 159–161) [this section and section 212 of this title], and Reorganization Plan No. V (3 CFR Cum. Supp., Ch. IV), they jointly have made the revision provided for in section 12 of the said act and have fixed the quotas for Austria and Germany in accordance therewith to be as hereinafter set forth:

Now, therefore, I, Harry S. Truman, President of the United States of America, acting under and by virtue of the power in me vested by the aforesaid act of Congress, do hereby proclaim and make known that the annual quotas for Austria and Germany effective for the remainder of the fiscal year ending June 30, 1946, and for each fiscal year thereafter, have been determined in accordance with the law to be, and shall be, as follows:

Austria	1,413
Germany	25,957

The immigration quotas assigned to Austria and Germany are designed solely for purposes of compliance with the pertinent provisions of the Immigration Act of 1924 [sections 145, 146, 166, 167, 179, 201–204, 205–212, 213, 214–226, 229 of this title] and are not to be regarded as having any significance extraneous to this object.

This proclamation shall take effect immediately, and shall have the effect of amending Proclamation 2283 of April 28, 1938 [52 Stat. 1544].

PROC. NO. 2696. PHILIPPINE QUOTA

Proc. No. 2696, July 4, 1946, 11 F. R. 7517, 60 Stat. 1353, provided:

Whereas the Secretary of State, the Secretary of Commerce, and the Attorney General have reported to the President that pursuant to the duty imposed and the authority conferred upon them in and by sections 11 and 12 of the Immigration Act of 1924 approved May 26, 1924 (43 Stat. 159, 161) [this section and section 212 of this title] and Reorganization Plan No. V (3 CFR Cum. Supp., Ch. IV), they jointly have made the revision provided for in section 12 of the said act and have fixed the quota for the Philippine Islands in accordance therewith to be as hereinafter set forth.

Now, therefore, I, Harry S. Truman, President of the United States of America, acting under and by virtue of the power in me vested by the aforesaid act of Congress, do hereby proclaim and make known that the annual quota for the Philippine Islands effective July 4, 1946, for the remainder of the fiscal year ending June 30, 1947, and for each fiscal year thereafter, has been determined in accordance with the law to be, and shall be, 100.

The immigration quota of 50 authorized by section 8 (a) (1) of the Act approved March 24, 1934, entitled "An Act to provide for the complete independence of the Philippine Islands, to provide for the adoption of a constitution and a form of government for the Philippine Islands, and for other purposes" (48 Stat. 462; 53 Stat. 1230; 48 U. S. C. 1238), which Act was accepted by concurrent resolution of the Philippine Legislature on May 1, 1934, and which became effective on that date, will become inoperative on July 4, 1946, the date the Government of the United States recognizes the independence of the Philippine Islands as a separate and self-governing nation

The immigration quota assigned to the Philippine Islands is designed solely for purposes of compliance with the pertinent provisions of the Immigration Act of 1924 [sections 145, 146, 166, 167, 179, 201–204, 205–212, 213, 214–226, 229 of this title] and is not to be regarded as having any significance extraneous to this subject.

This proclamation shall have the effect of amending Proclamation 2283 of April 28, 1938 [52 Stat. 1544] and is the third amendment to that proclamation.

§ 212. Same; determination of nationality; reports—(a) Country of birth; nationality of married persons; children.

For the purposes of this chapter nationality shall be determined by country of birth, treating as separate countries the colonies, dependencies, or self-governing dominions, for which separate enumeration was made in the United States census of 1890; except that (1) the nationality of a child under twenty-one years of age not born in the United States, accompanied by its alien parent not born in the United States, shall be determined by the country of birth of such parent if such parent is entitled to an immigration visa, and the nationality of a child under twenty-one years of age not born in the United States, accompanied by both alien parents not born in the United States, shall be determined by the country of birth of the father if the father is entitled to an immigration visa; and (2) if a wife is of a different nationality from her alien husband and the entire number of immigration visas which may be issued to quota immigrants of her nationality for the calendar month has already been issued, her nationality may be determined by the country of birth of her husband if she is accompanying him and he is entitled to an immigration visa, unless the total number of immigration visas which may be issued to quota immigrants of the nationality of the husband for the calendar month has already been issued. An immigrant born in the United States who has lost his United States citizenship shall be considered as having been born in the country of which he is a citizen or subject, or if he is not a citizen or subject of any country, then in the country from which he comes.

(b) Statement of resident individuals of various nationalities.

The Secretary of State, the Secretary of Commerce, and the Attorney General, jointly, shall prepare a statement showing the number of individuals of the various nationalities resident in continental United States as determined by the United States census of 1890, which statement shall be the population basis for the purposes of subdivision (a) of section 211 of this title. In the case of a country recognized by the United States, but for which a separate enumeration was not made in the census of 1890, the number of individuals born in such country and resident in continental United States in 1890, as estimated by such officials jointly, shall be considered for the purposes of subdivision (a) of said section 211 as having been determined by the United States census of 1890. In the case of a colony or dependency existing before 1890, but for which a separate enumeration was not made in the census of 1890 and which was not included in the enumeration for the country to which such colony or dependency belonged, or in the case of territory administered under a protectorate, the number of individuals born in such colony, dependency, or territory, and resident in continental United States in 1890, as estimated by such officials jointly, shall be considered for the purposes of subdivision (a) of said section 211 as having been determined by the United States census of 1890 to have been born in the country to which such colony or dependency belonged or which administers such protectorate.

(c) Effect of changes in political boundaries in foreign countries.

In case of changes in political boundaries in foreign countries occurring subsequent to 1890 and resulting in the creation of new countries, the Governments of which are recognized by the United States, or in the establishment of self-governing dominions, or in the transfer of territory from one country to another, such transfer being recognized by the United States, or in the surrender by one country of territory, the transfer of which to another country has not been recognized by the United States, or in the administration of territories under mandates, (1) such officials, jointly, shall estimate the number of individuals resident in continental United States in 1890 who were born within the area included in such new countries or self-governing dominions or in such territory so transferred or surrendered or administered under a mandate, and revise (for the purposes of subdivision (a) of section 211 of this title) the population basis as to each country involved in such change of political boundary, and (2) if such changes in political boundaries occur after the determination provided for in subdivision (c) of said section 211 has been proclaimed, such officials, jointly, shall revise such determination, but only so far as necessary to allot the quotas among the countries involved in such change of political boundary. For the purpose of such revision and for the purpose of determining the nationality of an immigrant, (A) aliens born in the area included in any such new country or self-governing dominion shall be considered as having been born in such country or dominion, and aliens born in any territory so transferred shall be considered as having been born in the country to which such territory was transferred, and (B) territory so surrendered or administered under a mandate shall be treated as a separate country. Such treatment of territory administered under a mandate shall not constitute consent by the United States to the proposed mandate where the United States has not consented in a treaty to the administration of the territory by a mandatory power.

(d) Statements, etc., made annually.

The statements, estimates, and revisions provided in this section shall be made annually, but for any fiscal year for which quotas are in effect as proclaimed under subdivision (e) of section 211 of this title, shall be made only (1) for the purpose of determining the nationality of immigrants seeking admission to the United States during such year,

or (2) for the purposes of clause (2) of subdivision (c) of this section.

(e) Annual report to President of quota of nationalities; proclamation of quotas.

Such officials shall, jointly, report annually to the President the quota of each nationality under subdivision (a) of section 211 of this title, together with the statements, estimates, and revisions provided for in this section. The President shall proclaim and make known the quotas so reported and thereafter such quotas shall continue, with the same effect as if specifically stated herein, for all fiscal years except those years for which quotas are in effect as proclaimed under subdivision (e) of section 211 of this title, and shall be final and conclusive for every purpose. (May 26, 1924, ch. 190, § 12, 43 Stat. 160; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" read "this Act", meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in acts May 19, 1921, ch. 8, § 2, 42 Stat. 5; May 11, 1922, ch. 187, § 2, 42 Stat. 540.

§ 212a. Same; Chinese persons.

With the exception of Chinese alien wives of American citizens and those Chinese aliens coming under subsections (b), (d)–(f) of section 204 of this title, all Chinese persons entering the United States annually as immigrants shall be allocated to the quota for the Chinese computed under the provisions of section 211 of this title. A preference up to 75 per centum of the quota shall be given to Chinese born and resident in China. (Dec. 17, 1943, ch. 344, § 2, 57 Stat. 601; Aug. 9, 1946, ch. 945, § 2, 60 Stat. 975.)

AMENDMENTS

1946—Act Aug. 9, 1946, cited to text, substituted "Chinese alien wives of American citizens and those Chinese aliens", for "those", in first sentence.

REPEALS

Chinese exclusion laws repealed, see sections 262–297, 299, of this title.

§ 212b. Same; Indians and races indigenous to India.

With the exception of those covered by subsections (b), (d)–(f) of section 204 of this title, all persons of races indigenous to India entering the United States annually as immigrants shall be allocated to the quota for India computed under the provisions of section 211 of this title. A preference up to 75 per centum of the quota shall be given to Indians and other aliens racially eligible to naturalization, born and resident in India or its dependencies. (July 2, 1946, ch. 534, § 4, 60 Stat. 417.)

§ 212c. Same; definitions; allocation to quota.

(a) For the purposes of section 721a [1] of this title, the term "persons of races indigenous to India" shall mean any person who is as much as one-half of the blood of a race indigenous to India and who is eligible to naturalization under section 703 of this title.

(b) For the purposes of section 212a of this title, the term "Chinese person" shall mean any person who is as much as one-half Chinese blood and who is eligible to naturalization under section 703 of this title.

(c) Notwithstanding the two preceding subsections, any quota immigrant who is of one-half Chinese blood and one-half the blood of a race indigenous to India shall, if born in India, be chargeable to the quota for India; if born in China, to the quota for the Chinese, or if born in neither of those countries, to whichever of the said quotas has the least applications for visas against it at the time the application for visa is made. (July 2, 1946, ch. 534, § 5, 60 Stat. 417.)

§ 213. Compliance with immigration requirements; persons ineligible to citizenship; penalties—(a) Persons not to be admitted.

No immigrant shall be admitted to the United States unless he (1) has an unexpired immigration visa or was born subsequent to the issuance of the immigration visa of the accompanying parent; (2) is of the nationality specified in the visa in the immigration visa; (3) is a nonquota immigrant if specified in the visa in the immigration visa as such; (4) is a preference-quota immigrant if specified in the visa in the immigration visa as such; and (5) is otherwise admissible under the immigration laws.

(b) Readmission of legally admitted aliens who have temporarily departed without visas.

In such classes of cases and under such conditions as may be by regulations prescribed immigrants who have been legally admitted to the United States and who depart therefrom temporarily may be admitted to the United States without being required to obtain an immigration visa.

(c) Aliens ineligible to citizenship.

No alien ineligible to citizenship shall be admitted to the United States unless such alien (1) is admissible as a nonquota immigrant under the provisions of subdivision (b), (d), or (e) of section 204 of this title, or (2) is the wife, or the unmarried child under 18 years of age, of an immigrant admissible under such subdivision (d), and is accompanying or following to join him, or (3) is not an immigrant as defined in section 203 of this title.

(d) Aliens inadmissible under clauses 2 and 3 of subdivision (a) of this section.

The Attorney General may admit to the United States any otherwise admissible immigrant not admissible under clause (2) or (3) of subdivision (a) of this section, if satisfied that such inadmissibility was not known to, and could not have been ascertained by the exercise of reasonable diligence by, such immigrant prior to the departure of the vessel from the last port outside the United States and outside foreign contiguous territory, or, in the case of an immigrant coming from foreign contiguous territory, prior to the application of the immigrant for admission.

[1] So in original. Probably should read "212b".

(e) Same; exhaustion of permitted visas issuable to quota immigrants.

No quota immigrant shall be admitted under subdivision (d) if the entire number of immigration visas which may be issued to quota immigrants of the same nationality for the fiscal year has already been issued. If such entire number of immigration visas has not been issued, then the Secretary of State, upon the admission of a quota immigrant under subdivision (d), shall reduce by one the number of immigration visas which may be issued to quota immigrants of the same nationality during the fiscal year in which such immigrant is admitted; but if the Secretary of State finds that it will not be practicable to make such reduction before the end of such fiscal year, then such immigrant shall not be admitted.

(f) Fines not to be remitted or refunded.

Nothing in this section shall authorize the remission or refunding of a fine, liability to which has accrued under section 216 of this title. (May 26, 1924, ch. 190, § 13, 43 Stat. 161; June 13, 1930, ch. 476, 46 Stat. 581; May 14, 1937, ch. 187, § 2, 50 Stat. 165; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Aug. 9, 1946, ch. 945, § 1, 60 Stat. 975.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1946—Act Aug. 9, 1946, cited to text, in subsec. (c), added "or" at end of cl. (2), substituted a period for comma at end of cl. (3), and omitted former cl. (4).

EFFECTIVE DATE

Effective date of this section, see note under section 201 of this title.

CROSS REFERENCES

Refusal of visas to aliens whose admission might endanger the public safety of the United States, see section 228 of Title 22, Foreign Relations and Intercourse.

§ 213a. Deportation of alien securing visa through fraudulent marriage.

Any alien who at any time after entering the United States is found to have secured either nonquota or preference-quota visa through fraud, by contracting a marriage which, subsequent to entry into the United States, has been judicially annulled retroactively to date of marriage, shall be taken into custody and deported pursuant to the provisions of section 214 of this title on the ground that at time of entry he was not entitled to admission on the visa presented upon arrival in the United States. This section shall be effective whether entry was made before or after May 14, 1937.

When it appears that the immigrant fails or refuses to fulfill his promises for a marital agreement made to procure his entry as an immigrant he then becomes immediately subject to deportation. (May 14, 1937, ch. 182, § 3, 50 Stat. 165.)

§ 214. Deportation; procedure; alien children under age of sixteen.

Any alien who at any time after entering the United States is found to have been at the time of entry not entitled under this chapter to enter the United States, or to have remained therein for a longer time than permitted under this chapter or regulations made thereunder, shall be taken into custody and deported in the same manner as provided for in sections 155 and 156 of this title. The Attorney General may, under such conditions and restrictions as to support and care as he may deem necessary, permit permanently to remain in the United States, any alien child who, when under sixteen years of age was prior to May 26, 1924, temporarily admitted to the United States and who was within the United States on that date, and either of whose parents was a citizen of the United States. (May 26, 1924, ch. 190, § 14, 43 Stat. 162; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

EFFECTIVE DATE

Effective date of this section, see note under section 201 of this title.

§ 215. Admission of persons excepted from definition of immigrant and nonquota immigrants; maintenance of exempt status.

The admission to the United States of an alien excepted from the class of immigrants by clauses (1)–(6) or (7) of section 203 of this title, or declared to be a nonquota immigrant by subdivision (e) of section 204 of this title, shall be for such time and under such conditions as may be by regulations prescribed (including, when deemed necessary for the classes mentioned in clause (2)–(4), or (6) of section 203 of this title and subdivision (e) of section 204 of this title, the giving of bond with sufficient surety, in such sum and containing such conditions as may be by regulations prescribed) to insure that, at the expiration of such time or upon failure to maintain the status under which admitted, he will depart from the United States: *Provided,* That no alien who has been, or who may hereafter be, admitted into the United States under clause (1) or (7) of section 203 of this title, as an official of a foreign government, or as a member of the family of such official, or as a representative of a foreign government in or to an international organization or an officer or employee of an international organization, or as a member of the family of such representative, officer, or employee, shall be required to depart from the United States without the approval of the Secretary of State. (May 26, 1924, ch. 190, § 15, 43 Stat. 162; July 1, 1932, ch. 363, 47 Stat. 524; July 1, 1940, ch. 502, § 2, 54 Stat. 711; Dec. 29, 1945, ch. 652, § 7 (d), 59 Stat. 672.)

AMENDMENTS

1945—Act Dec. 29, 1945, cited to text, amended section by inserting "or (7)" wherever appearing, and by inserting "or as a representative * * * officer, or employee," following "family of such official".

EFFECTIVE DATE

Effective date of this section, see note under section 201 of this title.

§ 216. Unlawful bringing of alien into United States by water; penalty; amount; clearance to vessels; remission or refundment.

(a) It shall be unlawful for any person, including any transportation company, or the owner, master, agent, charterer, or consignee of any vessel, to bring to the United States by water from any place outside thereof (other than foreign contiguous territory) (1) any immigrant who does not have an unexpired immigration visa, or (2) any quota immigrant having an immigration visa the visa in which specifies him as a nonquota immigrant.

(b) If it appears to the satisfaction of the Attorney General that any immigrant has been so brought such person or transportation company, or the master, agent, owner, charterer, or consignee of any such vessel, shall pay to the collector of customs of the customs district in which the port of arrival is located the sum of $1,000 for each immigrant so brought, and in addition a sum equal to that paid by such immigrant for his transportation from the initial point of departure, indicated in his ticket, to the port of arrival, such latter sum to be delivered by the collector of customs to the immigrant on whose account assessed: *Provided,* That no fine nor refund, as provided for in this subsection, nor any expense incident to detention in connection with an application for admission to the United States, shall be assessed or required for bringing into the United States any alien, if such alien holds an unexpired visa issued by a United States consul within sixty days of the alien's foreign embarkation. No vessel shall be granted clearance pending the determination of the liability to the payment of such sums, or while such sums remain unpaid, except that clearance may be granted prior to the determination of such question upon the deposit of an amount sufficient to cover such sums, or of a bond with sufficient surety to secure the payment thereof approved by the collector of customs.

(c) Such sums shall not be remitted or refunded, unless it appears to the satisfaction of the Attorney General that such person, and the owner, master, agent, charterer, and consignee of the vessel, prior to the departure of the vessel from the last port outside the United States, did not know, and could not have ascertained by the exercise of reasonable diligence, (1) that the individual transported was an immigrant, if the fine was imposed for bringing an immigrant without an unexpired immigration visa, or (2) that the individual transported was a quota immigrant, if the fine was imposed for bringing a quota immigrant the visa in whose immigration visa specified him as being a nonquota immigrant. (May 26, 1924, ch. 190, § 16, 43 Stat. 163; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238; Dec. 19, 1944, ch. 608, § 3, 58 Stat. 817.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

AMENDMENTS

1944—Subsec. (b) amended by act Dec. 19, 1944, cited to text, which added proviso at end of first sentence.

EFFECTIVE DATE

Effective date of this section, see note under section 201 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in act May 19, 1921, ch. 8, § 6, as added May 11, 1922, ch. 187, § 3, 42 Stat. 540.

CROSS REFERENCES

Funds collected from steamship companies for deported aliens to be held in trust, see section 725s of Title 31, Money and Finance.

§ 217. Contracts with transportation lines; rules and regulations; entry from contiguous territory.

The Commissioner of Immigration and Naturalization, with the approval of the Attorney General, shall have power to enter into contracts with transportation lines for the entry and inspection of aliens coming to the United States from or through foreign contiguous territory. In prescribing rules and regulations and making contracts for the entry and inspection of aliens applying for admission from or through foreign contiguous territory due care shall be exercised to avoid any discriminatory action in favor of transportation companies transporting to such territory aliens destined to the United States, and all such transportation companies shall be required, as a condition precedent to the inspection or examination under such rules and contracts at the ports of such contiguous territory of aliens brought thereto by them, to submit to and comply with all the requirements of this chapter which would apply were they bringing such aliens directly to ports of the United States. No alien applying for admission from or through foreign contiguous territory (except an alien previously lawfully admitted to the United States who is returning from a temporary visit to such territory) shall be permitted to enter the United States unless upon proving that he was brought to such territory by a transportation company which had submitted to and complied with all the requirements of this chapter, or that he entered, or has resided in, such territory more than two years prior to the time of his application for admission to the United States. (May 26, 1924, ch. 190, § 17, 43 Stat. 163; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 218. Unused immigration visas; additional not to issue in lieu of.

If a quota immigrant of any nationality having an immigration visa is excluded from admission to the United States under the immigration laws and deported, or does not apply for admission to the United States before the expiration of the validity of the

immigration visa, or if an alien of any nationality having an immigration visa issued to him as a quota immigrant is found not to be a quota immigrant, no additional immigration visa shall be issued in lieu thereof to any other immigrant. (May 26, 1924, ch. 190, § 18, 43 Stat. 164.)

§ 219. Reentry permits; preparation, printing, and distribution.

Permits issued under section 210 of this title shall be printed on distinctive safety paper and shall be prepared and issued under regulations prescribed under this chapter. (May 26, 1924, ch. 190, § 21 (a), 43 Stat. 165.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

§ 220. Penalties and offenses—(a) Documents; forging, counterfeiting, etc., immigration visas or permits.

Any person who knowingly (1) forges, counterfeits, alters, or falsely makes any immigration visa or permit, or (2) utters, uses, attempts to use, possesses, obtains, accepts, or receives any immigration visa or permit, knowing it to be forged, counterfeited, altered, or falsely made, or to have been procured by means of any false claim or statement, or to have been otherwise procured by fraud or unlawfully obtained; or who, except under direction of the Attorney General or other proper officer, knowingly (3) possesses any blank permit, (4) engraves, sells, brings into the United States, or has in his control or possession any plate in the likeness of a plate designed for the printing of permits, (5) makes any print, photograph, or impression in the likeness of any immigration visa or permit, or (6) has in his possession a distinctive paper which has been adopted by the Attorney General for the printing of immigration visas or permits, shall, upon conviction thereof, be fined not more than $10,000 or imprisoned for not more than five years, or both.

(b) False personation of another; using assumed or fictitious name; unlawful sale, etc., of visa or permit.

Any individual who (1) when applying for an immigration visa or permit, or for admission to the United States, personates another, or falsely appears in the name of a deceased individual, or evades or attempts to evade the immigration laws by appearing under an assumed or fictitious name, or (2) sells or otherwise disposes of, or offers to sell or otherwise dispose of, or utters, an immigration visa or permit, to any person not authorized by law to receive such document, shall, upon conviction thereof, be fined not more than $10,000, or imprisoned for not more than five years, or both.

(c) False statements.

Whoever knowingly makes under oath any false statement in any application, affidavit, or other document required by the immigration laws or regulations prescribed thereunder, shall, upon conviction thereof, be fined not more than $10,000, or imprisoned for not more than five years, or both. (May 26, 1924, ch. 190, § 22, 43 Stat. 165; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

§ 221. Burden of proof upon entry of alien or in deportation proceedings.

Whenever any alien attempts to enter the United States the burden of proof shall be upon such alien to establish that he is not subject to exclusion under any provision of the immigration laws; and in any deportation proceeding against any alien the burden of proof shall be upon such alien to show that he entered the United States lawfully, and the time, place, and manner of such entry into the United States, but in presenting such proof he shall be entitled to the production of his immigration visa, if any, or of other documents concerning such entry, in the custody of the Department of Justice. (May 26, 1924, ch. 190, § 23, 43 Stat. 165; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

CODIFICATION

1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Department of Justice" for "Department of Labor". See note preceding section 100 of this title.

§ 222. Rules and regulations.

The Commissioner of Immigration and Naturalization, with the approval of the Attorney General, shall prescribe rules and regulations for the enforcement of the provisions of this chapter; but all such rules and regulations, insofar as they relate to the administration by consular officers, shall be prescribed by the Secretary of State on the recommendation of the Attorney General. (May 26, 1924, ch. 190, § 24, 43 Stat. 166; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act", meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

CODIFICATION

Ex. Ord. No. 6166, cited to text, is authority for the substitution of "Commissioner of Immigration and Naturalization" for "Commissioner General"; and 1940 Reorg. Plan No. V, cited to text, is authority for the substitution of "Attorney General" for "Secretary of Labor". See note preceding section 100 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in act May 19, 1921, ch. 8, § 3, 42 Stat. 6.

§ 223. Quota law additioual to other immigration laws.

The provisions of this chapter are in addition to and not in substitution for the provisions of the immigration laws, and shall be enforced as a part of such laws, and all the penal or other provisions of such laws, not inapplicable, shall apply to and be enforced in connection with the provisions of this chapter. An alien, although admissible under the provisions of this chapter, shall not be admitted to the United States if he is excluded by any provision of the immigration laws other than this chapter,

and an alien, although admissible under the provisions of the immigration laws other than this chapter, shall not be admitted to the United States if he is excluded by any provision of this chapter. (May 26, 1924, ch. 190, § 25, 43 Stat. 166.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text, For distribution of said act in this Code, see note under section 201 of this title.

SIMILAR PROVISIONS

Provisions on this subject were contained in act May 19, 1921, ch. 8, § 4, 42 Stat. 7.

§ 224. Definitions.

As used in this chapter—

(a) The term "United States", when used in a geographical sense, means the States, the Territories of Alaska and Hawaii, the District of Columbia, Puerto Rico, and the Virgin Islands; and the term "continental United States" means the States and the District of Columbia;

(b) The term "alien" includes any individual not a native-born or naturalized citizen of the United States, but this definition shall not be held to include citizens of the islands under the jurisdiction of the United States;

(c) The term "ineligible to citizenship", when used in reference to any individual, includes an individual who is debarred from becoming a citizen of the United States under sections 703 and 706 of this title, or section 303 (a) of Appendix to Title 50, or under any law amendatory of, supplementary to, or in substitution for, any such sections;

(d) The term "immigration visa" means an immigration visa issued by a consular officer under the provisions of this chapter;

(e) The term "consular officer" means any consular or diplomatic officer of the United States designated, under regulations prescribed under this chapter, for the purpose of issuing immigration visas under this chapter. In case of the Canal Zone and the insular possessions of the United States the term "consular officer" (except as used in section 222 of this title) means an officer designated by the President, or by his authority, for the purpose of issuing immigration visas under this chapter;

(f) The term "immigration laws" includes this chapter and all laws, conventions, and treaties of the United States relating to the immigration, exclusion, or expulsion of aliens;

(g) The term "person" includes individuals, partnerships, corporations, and associations;

(h) The term "Commissioner" means the Commissioner of Immigration and Naturalization;

(i) The term "application for admission" has reference to the application for admission to the United States and not to the application for the issuance of the immigration visa;

(j) The term "permit" means a permit issued under section 210 of this title;

(k) The term "unmarried", when used in reference to any individual as of any time, means an individual who at such time is not married, whether or not previously married;

(l) The terms "child", "father", and "mother", do not include a child or parent by adoption unless the adoption took place before January 1, 1924;

(m) The terms "wife" and "husband" do not include a wife or husband by reason of a proxy or picture marriage. (May 26, 1924, ch. 190, § 28 (a–e, g–n), 43 Stat. 168; June 2, 1924, ch. 233, 43 Stat. 253; May 17, 1932, ch. 190, 47 Stat. 158; Ex. Ord. No. 6166, § 14, June 10, 1933; Oct. 29, 1945, ch. 437, 59 Stat. 551.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text, and "this chapter" in subd. (f) reads "such act, this act, and * * *," meaning the Immigration Act of 1917 (act Feb. 5, 1917, ch. 29, 39 Stat. 874), and act May 26, 1924, cited to text. For distribution of said acts in this Code, see notes under sections 150 and 201 of this title.

CODIFICATION

Act June 2, 1924, cited to text, was authority for deleting, before "citizens of the islands" in subd. (b), the words "Indians of the United States not taxed, nor". That act, formerly section 3 of this title and now set out in note under section 601 hereof, declared all Indians born within the territorial limits of the United States to be citizens of the United States.

Res. May 17, 1932, cited to text, substituted "Puerto Rico" for "Porto Rico" in subd. (a).

Ex. Ord. No. 6166, cited to text, is authority for substituting "'Commissioner'" and "Commissioner of Immigration and Naturalization" for "'Commissioner General'" and "Commissioner General of Immigration", respectively, in subd. (h). See note preceding section 100 of this title.

AMENDMENTS

1945—Subsec. (c) amended by act Oct. 29, 1945, cited to text, which inserted "sections 703 or 706 * * * to Title 50" in lieu of "any of sections * * * 366 of this title".

SIMILAR PROVISIONS

Provisions on this subject were contained in act May 19, 1921, ch. 8, § 1, 42 Stat. 5.

§ 225. Appropriation authorized.

The appropriation of such sums as may be necessary for the enforcement of this chapter is authorized. (May 26, 1924, ch. 190, § 29, 43 Stat. 169.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

§ 226. Separability of provisions.

If any provision of this chapter, or the application thereof to any person or circumstances, is held invalid, the remainder thereof, and the application of such provision to other persons or circumstances, shall not be affected thereby. (May 26, 1924, ch. 190, § 32, 43 Stat. 169.)

REFERENCES IN TEXT

In the original "this chapter" reads "this Act," meaning act May 26, 1924, cited to text. For distribution of said act in this Code, see note under section 201 of this title.

§ 226a. American Indians born in Canada; right to cross Canadian border.

This chapter shall not be construed to apply to the right of American Indians born in Canada to pass the borders of the United States: *Provided,*

That this right shall not extend to persons whose membership in Indian tribes or families is created by adoption. (Apr. 2, 1928, ch. 308, 45 Stat. 401.)

REFERENCES IN TEXT

In the original "This chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, § 32, 43 Stat. 169. For distribution of said act in this Code, see note under section 201 of this title.

§§ 227, 228. Certain aliens admitted in excess of quotas permitted to remain.

CODIFICATION

Sections, acts Dec. 27, 1922, ch. 15, 42 Stat. 1065; June 7, 1924, ch. 379, 43 Stat. 669, ratified the admission of certain aliens in excess of the quotas prescribed by act May 19, 1921, ch. 8, 42 Stat. 5, who entered prior to July 1, 1924.

§ 229. Act May 19, 1921, chapter 8, in force for imposition, collection, and enforcement of penalties; deportation of aliens entering in violation thereof.

CODIFICATION

Act May 19, 1921, as amended, to which this section related, prescribed certain nationality quotas limiting the number of persons eligible for admission to the United States. The provisions of said act, which were in addition to the general immigration laws, expired on June 30, 1924.

Section, act May 26, 1924, ch. 190, § 30, 43 Stat. 169, continued said act in force for the purpose of deportation and punishment of violators thereof.

§ 230. Certain alien residents conscripted or volunteering for service during World War lawfully readmitted.

CODIFICATION

Section, Res. Oct. 19, 1918, ch. 190, 40 Stat. 1014, is now set out as note under section 136 of this title.

§ 231. Admission into Puerto Rico of certain resident Spanish subjects.

All Spanish subjects who on April 11, 1899 (whether adults or minors), were bona fide residents of Puerto Rico or adjacent islands which comprised the Province of Puerto Rico and who, in conformity with Article IX of the treaty between the United States and Spain of April 11, 1899, have preserved their allegiance to the Crown of Spain, may be admitted into Puerto Rico without regard to the provisions of this chapter, except section 221. (May 26, 1926, ch. 400, 44 Stat. 657; May 17, 1932, ch. 190, 47 Stat. 158.)

REFERENCES IN TEXT

In the original "this chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this code, see note under section 201 of this title.

CODIFICATION

Res. May 17, 1932, cited to text, changed "Porto Rico" to "Puerto Rico".

§ 232. Admission of alien spouses and minor children of members of United States armed forces during Second World War; medical examination.

Notwithstanding any of the several clauses of section 136 of this title, excluding physically and mentally defective aliens, and notwithstanding the documentary requirements of any of the immigration laws or regulations, Executive orders, or Presidential proclamations issued thereunder, alien spouses or alien children of United States citizens serving in, or having an honorable discharge certificate from the armed forces of the United States during the Second World War shall, if otherwise admissible under the immigration laws and if application for admission is made within three years of December 28, 1945, be admitted to the United States: *Provided,* That every alien of the foregoing description shall be medically examined at the time of arrival in accordance with the provisions of section 152 of this title, and if found suffering from any disability which would be the basis for a ground of exclusion except for the provision of sections 232–236 of this title, the Immigration and Naturalization Service shall forthwith notify the appropriate public medical officer of the local community to which the alien is destined: *Provided further,* That the provisions of sections 232–236 of this title shall not affect the duties of the United States Public Health Service so far as they relate to quarantinable diseases. (Dec. 28, 1945, ch. 591, § 1, 59 Stat. 659.)

TERMINATION OF HOSTILITIES

Termination of hostilities of World War II, see note under section 236 of this title.

§ 233. Same; nonquota immigrant.

Regardless of section 209 of this title, any alien admitted under section 232 of this title shall be deemed to be a nonquota immigrant as defined in section 204 (a) of this title. (Dec. 28, 1945, ch. 591, § 2, 59 Stat. 659.)

§ 234. Same; readmission after temporary absence abroad.

Any alien admitted under section 232 of this title who at any time returns to the United States after a temporary absence abroad shall not be excluded because of the disability or disabilities that existed at the time of that admission. (Dec. 28, 1945, ch. 591, § 3, 59 Stat. 659.)

§ 235. Same; non-imposition of fines or penalties because of transportation to United States.

No fine or penalty shall be imposed under sections 101, 102, 105, 108, 109, 113, 115, 116, 132, 136, 138, 139, 142–156, 158–166, 168, 169, 171, 173, 175, 177, and 178 of this title, except those arising under section 150 of this title, because of the transportation to the United States of any alien admitted under sections 232–236 of this title. (Dec. 28, 1945, ch. 591, § 4, 59 Stat. 659.)

§ 236. Same; commencement and termination of Second World War

For the purpose of sections 232–236 of this title, the Second World War shall be deemed to have commenced on December 7, 1941, and to have ceased upon the termination of hostilities as declared by the President or by a joint resolution of Congress. (Dec. 28, 1945, ch. 591, § 5, 59 Stat. 659.)

TERMINATION OF HOSTILITIES

The termination of hostilities of World War II was proclaimed at 12 o'clock noon of December 31, 1946, by Proc. No. 2714, set out as note under section 601 of Appendix to Title 50, War.

SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

§ 241. "Alien veteran" defined; definitions of sections 203–205 and 224 of this title adopted.

(a) As used in sections 241–246 and 392a of this title, the term "alien veteran" means an individual, a member of the military or naval forces of the United States at any time after April 5, 1917, and before November 12, 1918, who is now an alien not ineligible to citizenship; but does not include (1) any individual at any time during such period or thereafter separated from such forces under other than honorable conditions, (2) any conscientious objector who performed no military duty whatever or refused to wear the uniform, or (3) any alien at any time during such period or thereafter discharged from the military or naval forces on account of his alienage.

(b) Terms defined in sections 203, 204, 205 and 224 of this title shall, when used in sections 241–246 and 392a of this title, have the meaning assigned to such terms in said sections. (May 26, 1926, ch. 398, § 1, 44 Stat. 654.)

REFERENCES IN TEXT

Section 392a of this title, referred to in subsec. (a), is now set out in note under section 724 of this title.

§ 242. Alien veteran as nonquota immigrant; head tax or fees; grounds for exclusion.

An alien veteran shall for the purposes of subchapter III of this chapter be considered as a nonquota immigrant, but shall be subject to all the other provisions of said sections and of the immigration laws, except that—

(a) He shall not be subject to the head tax imposed by section 132 of this title.

(b) He shall not be required to pay any fee under section 202 or section 207 of this title.

(c) If otherwise admissible, he shall not be excluded under section 136 of this title, unless excluded under the provisions of that section relating to—

(1) Persons afflicted with a loathsome or dangerous contagious disease, except tuberculosis in any form.

(2) Polygamy.

(3) Prostitutes, procurers, or other like immoral persons.

(4) Contract laborers.

(5) Persons previously deported.

(6) Persons convicted of crime. (May 26, 1926, ch. 398, § 2, 44 Stat. 654.)

REFERENCES IN TEXT

In the original "subchapter III of this chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this Code, see note under section 201 of this title.

§ 243. Status of child or spouse of "alien veteran."

The unmarried child under eighteen years of age, the wife, or the husband, of an alien veteran shall, for the purposes of subchapter III of this chapter, be considered as a nonquota immigrant when accompanying or following within six months to join him, but shall be subject to all the other provisions of that subchapter and of the immigration laws. (May 26, 1926, ch. 398, § 3, 44 Stat. 655.)

REFERENCES IN TEXT

In the original "subchapter III of this chapter" and "that subchapter" reads "the Immigration Act of 1924," and "that Act," respectively, meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this code, see note under section 201 of this title.

§ 244. Immigration visa; issuance within one year.

The provisions of sections 241–243 of this title shall not apply to any alien unless the immigration visa is issued to him before the expiration of one year after May 26, 1926. (May 26, 1926, ch. 398, § 4, 44 Stat. 655.)

§ 245. Deportation as public charge; prohibition.

An alien veteran admitted to the United States under sections 241–246 and 392a of this title shall not be subject to deportation on the ground that he has become a public charge. (May 26, 1926, ch. 398, § 5, 44 Stat. 655.)

REFERENCES IN TEXT

Section 392a of this title, referred to in this section, is now set out in note under section 724 of this title.

§ 246. Person bringing admissible alien veteran to port not subject to fine.

Nothing in the immigration laws shall be construed as subjecting any person to a fine for bringing to a port of the United States an alien veteran who is admissible under the terms of sections 241–246 and 392a of this title, even though such alien would be subject to exclusion if said sections had not been enacted. (May 26, 1926, ch. 398, § 6, 44 Stat. 655.)

REFERENCES IN TEXT

Section 392a of this title, referred to in this section, is now set out in note under section 724 of this title.

Chapter 7.—EXCLUSION OF CHINESE

Sec.
261. Control of exclusion of Chinese.
262–297. Repealed.
298. Bertillon system of identification.
299. Repealed.

§ 261. Control of exclusion of Chinese.

CODIFICATION

Section, acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, conferred upon the Attorney General the authority, power, and jurisdiction by virtue of any law relating to the exclusion from and residence within the United States, its Territories and the District of Columbia, of Chinese and persons of Chinese descent, and vested in the collectors of customs and collectors of internal revenue, under control of the Commissioner of Immigration and Naturalization, as the Attorney General might designate therefor, the authority, power, and jurisdiction in relation to such exclusion previously vested in such officers. It is now obsolete in view of the repeal, by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, of sections 262–297, 299 of this title.

§§ 262–297. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Sections, acts May 6, 1882, ch. 126, §§ 1, 3, 6–13, 15, 16, 22 Stat. 59–61; July 5, 1884, ch. 220, 23 Stat. 115–118; Sept. 13, 1388, ch. 1015, §§ 5–11, 13, 14, 25 Stat. 477–479; Oct. 1, 1888, ch. 1064, §§ 1, 2, 25 Stat. 504; May 5, 1892, ch. 60, §§ 1–3, 5–8, 27 Stat. 25, 26; Nov. 3, 1893, ch. 14, §§ 1, 2, 28 Stat. 7, 8; July 7, 1898, No. 55, § 1 (part), 30 Stat. 751; Apr. 30, 1900, ch. 339, § 101, 31 Stat. 161; June 6, 1900, ch. 791, § 1 (part), 31 Stat. 611; Mar. 8, 1901,